

This is what Work Safe said on the 4th may 2021

If you have any further questions, please contact WorkSafe Advisory on 1800 136 089, between 7:30am and 6:30pm, Monday to Friday.

Best regards,
Stuart.

• Stuart • Advisor	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	
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Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

6th May

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

On 6 May 2021, at 12:03 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:

Dear Dr McLean

We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: I326583/I which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

- Email general.enquiries@comcare.gov.au and quote your claim number in the subject line.

- Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.
- If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.
- If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

Comcare
1300 366 979

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NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

10th May

Dear Richard William,

You have started completing a *Workers' Compensation Claim Form*.

Attachments you must supply

To complete this form, you must be able to supply:

your banking Electronic Funds Transfer (EFT) details for payments or reimbursements

your Medicare number, including your card reference number

In addition to the above, you will also need:

- A [Medical certificate for compensation](#) with diagnosis and causation (including what caused your condition), completed by your doctor or medical specialist describing your condition and symptoms.
- OR
- if you are only claiming for chiropractic, physiotherapy, dentistry or osteopathic treatment and not for time off work, you need to provide a certificate outlining your treatment needs
- if you are claiming for a psychological injury, a statement outlining the events that contributed to your injury in support of your claim - a [guide is available](#) to assist you with completing a statement.

Next steps

Click the link below to complete your *Workers' Compensation Claim Form*. This link will expire on Wednesday June 9, 2021.

[Workers' Compensation Claim Form](#) Please keep a copy of this email until you have submitted the completed form. You will need this link to go back to your form if you choose to save and exit the process at any stage before submitting.

If you have any questions, please contact us on **1300 366 979**.
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18th May

Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

• Cass • andr • a • Adv • sor	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	
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BE GREEN, READ FROM THE SCREEN

▼ Dr Rich Mclean ---13/05/2021 01:24:33 PM--- Dear Commcare, and Workcover... Is this claim assessed?

From: Dr Rich Mclean <rich@richmclean.com.au>

To: Rich McLean <rich@richmclean.com.au>, general.enquiries@comcare.gov.au, advisory_service,
Advisory_Service/Public_Affairs/VWA@WorkCover
Date: 13/05/2021 01:24 PM
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Commcare, and Workcover...

Is this claim assessed?

What is the process?

I spoke with someone at workcover and they said I am insured somewhere...

and they said I am a sole trader and I am not covered by commcare...

Workcover has pointed me again in your direction...

I want to stipulate that I am a registered provider with the NDIS as a registered provider, and I invoice directly to PRODA which is a government agency.

I want to determine quite urgently if despite being a sole trader if I get paid by the NDIS does that mean or not mean I am employable and our insured by Commcare?

This has come to my attention recently when my private insurer has rejected me outright unless I have a same claim with workcover.

Workcover has referred me to Commcare.

Can Amy please call me back, or even better, can she email me back please defining how within legislation I am NOT insured with commcare, and if not, what will I tell workcover?

TIA

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572

ABN: 72066207615

Advisory_Service@worksafe.vic.gov.au

On 8 May 2021, at 1:57 pm, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

On 6 May 2021, at 12:03 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:

Dear Dr McLean

We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

- [Email general.enquiries@comcare.gov.au](mailto:general.enquiries@comcare.gov.au) and quote your claim number in the subject line.
- Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.
- If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.
- If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

Comcare

1300 366 979

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20th May

Dear Cassandra, and NDIA, and WorkSafe,

This is a question for work safe and an FOI request for NDIS/ NIIA/NDIS Commission.

CommCare are refusing to acknowledge I am cover by them. (Amy),

However, they gave me a claim number and then a link to ask me to fill in a form, including details of the psychological injury.

If I am approved by CommCare, does this mean I am covered by 'WorkCover?' Or 'Worksafe'? As such?

What do you suggest I do now, coming from you at work safe who oversee workcover, whom I have made recordings of from saying 'every worker is covered', if I am rejected by Commcare?

The NDIA pay my wage, therefore they are my employer, wouldn't you agree? I have an advance payment below from NDIA. (During COVID with a registration number).

Here is proof: they gave me an advance payment in COVID that I did not request.

It confirms my employer framed by the COVID crisis - is the NDIA.

Thanks in advance for your response.

Please also see my FOI below

Dear Pascal, (NDIA), and also to the NDIS,

Thanks for your call.

In my FOI please release:

- 1) Documents relate to why someone in NDIS/NDIA told a plan manager I dot have permission to charge my 'therapy other' rate, ie who was it? Why?
- 2) One of my clients hand funding review, I have been involved in. Why was I removed from further reviews?
- 3) Why does NDIS/NDIS not accept I am 'employed' by them for composure purposes when I have an advance payment from NDIA for covid?
- 4) Whether NDIA thinks I have qualifications for work I do, if not why not?
- 5) Documents mention my name.business www.richmclean.com.au and complaints made about me or my role?
- 6) My former partner worked for ASIO and promised to 'ruin' me he promised an threatened to call NDIS / NDIA to deregister me-any record of this?
- 7) Any thing related to my work or my person (Both NDIS and NDIA please).
- 8) if insolvency and incarceration exonerates me from working for the NDIS? Or NDIA? Or being registered?

Thanks, please forward to NDIA as well for an FOI request to them.

I will await your receipt and feedback.

Kindly

Rich



P<AUSMCLEAN<<RICHARD<WILLIAM<<<<<<<<<<<<<<
N6363290<8AUS7304084M2302111<23123470K<<<<42

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**Rich is a registered NDIS Therapeutic Support Provider,
as an Artist-Life-Coach, Author, & Advocate, in
Melbourne.**

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

20th may

Thank you for emailing the NDIS Quality and Safeguards Commission.

This inbox is monitored between 9 am and 5 pm (AEST), Monday to Friday and we will respond to your enquiry within 5 business days.

Alternatively you can contact us on 1800 035 544, or visit the website at www.ndiscommission.gov.au for information and resources.

This is an automated email. Please do not respond.

25th may

Lara,

I require an outcome today.

No excuses.

Regards

Rich

On 24 May 2021, at 5:24 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:

Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group |Comcare
P: (02) 6225 2391

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25th May

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Also if I am not employed or covered by NDIS / NDIA

Then why have I got an advance payment from them?

Please consider this when you 'assess' me for eligibility which I have already proven, and I bade a warning below.

Please bear in mind you sent me this information:

'During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

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- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

Your Boss, in so called 'quality assurance' Lara Fleming, says this is not the case, yet she seems unsure or unable to say with any surety or confidence one way or the other.

Additionally a cc'd email states from Worksafe that commcare are my insurer in their opinion:

(In addition, I have only worked in Victoria too, but have the agency for national work),

,

On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:
Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

• Cassandra • Advisor	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	• <14590346.gif>	<ecblank.gif>
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,

Additionally Lara said she would give me an update and outcome today, this email is from yesterday:

'Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare

P: (02) 6225 2391

I also emailed all of you with this URGENT request and this evidence of an advance payment from the NDIA:

'As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in wages, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicitly work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them | ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo
<Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

***I interrupt* Amy Delzoppo has OFFICIALLY stated she has attached the emails that NDIA provided to ComCare - but THERE WAS NOTHING ATTACHED and the NDIA has not responded**

You further go on...and I correct you on the points below:

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government

- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA ‘approved’ me, and can indeed, fire me.

-
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- *The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.*

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your

claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can contact us via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our COVID-19 guidance.

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

**Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA
[SEC=OFFICIAL]**

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

Here is the evidence:

- Their ABN is: 25617475104
-
- The date of the invoice in which they 'reserve its rights' ie: I owe them, is stated above.
-
- It is a TAX INVOICE (ie: an employer).
-
- Document number: 300063677318
-
- My NDIA number (ie my employee number), is stated clearly as: 4050046572
-
- It is addressed to me personally- not my business
www.richmclean.com.au
-
- It is for an advance payment from my employer in the time of COVID:
-
- The number of that advance payment issued is: 300063667057
-
- I also have a vendor number of: 4050046572
-
- The account I have to pay it back to is The NDIA - so obviously and without a doubt - I am employed by them - and workcover are right - Comminsure is my insurer for workcover.
-

- The invoice is invoiced to me personally.
-
- It is none of your nor Lara's Fleming's business if I do or do not have private health insurance cover for my business, and whether if I do they pay me or not- that is irrelevant.
-
- I have a recording of Lara asking me such questions.

I wish to state that as a person who has been prejudiced to be in debt and homeless, I exercise my right, and have also informed you both, that I have recorded our conversations - and additionally have a record of our emails that would not satisfy a court that I am exempt from cover.

Any further delay will affect my mallows hierarchy of needs, (ie, housing and shelter), and so I have no choice but to exercise my right of publishing this evidence identifying both yourself as rejecting my claim and Lara Fleming's weak arguments to me on the phone calls that I have recorded.

You are both clearly identified and recorded rejecting me and then un-rejecting me, then rejecting me again, and now you are doing what most organisations institutes and organisations do with my human rights and that is...kick the can down the road and elongate it knowing full well it will leave me starving and destitute.

If it is not resolved in my favour tomorrow, I will have no other option but to add both your names and the cover up at ComCare to my whistleblower Statement for the Federal Police and for the Independent Broad based Anti Corruption Commission (IBAC) or other agency.

This will result in you both being civilly pursued as agents of a force that are rejecting my health my wealth freedom prosperity and my livelihood.

And I deserve better and I indeed think you could both do without the 10-15 years jail that 'Conspiracy to pervert the course of justice' attracts when it goes to the federal court.

Both of you do not know the circumstances by which you are being told by someone senior or 'higher than you' to 'kick the can down the road', and reject me as not being covered.

This is the way I have been victimised for many years now, and I will hold all pawns of public office of the veneer of disadvantaging me as

such to that whistleblower complaint of agents that disrupt, persecute me, deny my freedoms and my agency to have prosperity.

You are both in above your head, for only I know the reason you are being told to reject me.

Please do not self demonise yourselves with jail time via my whistleblower statement simply because you are told to.

You are both better than that.

I have proven a valid case and failure to demonstrate that will lead to conviction via my whistleblower statement- so either hand it to someone who is identifiable senior to you, or I dare say suffer the consequences.

Here is the evidence, below, which the federal conspiracy has been watching and deleted off of my computer, but which I will publish along with this email.



Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
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DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

So in fact, Comcare are a faceless identity - and I will not be rejected by someone I cannot civilly identify - so I will be placing the criminal offence of 'conspiracy to pervert the course of justice' on the highest named individuals complicit in the crime.

1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

Failure to do so will convince me that the powers that be are denying me prosperity civil and legal rights and freedom, and I will publish the entire email thread above, including telephone calls I have exemption to publish under a whistleblower statement.

I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

26th may

Dear Diane, at Worksafe, and additionally Monash social Work Clinic, (Can you help with this issue?)

CC ATT: [Business.vic.gov.au](https://business.vic.gov.au) can you please assist me?

CC Victorian Chamber of Commerce and Industry - Can you identify who I am covered for with workcover please?

Commcare has REJECTED me.

This is extremely URGENT

Comcare have refused that I am covered by them.

If that is true, and apparently she is sending me the legislation which backs up her claim, then who am I covered by please?

My workcover certificates have been going since January and I am now homeless after having battled to find who I am covered by.

Additionally, when they originally rejected me - I sent them this long email in my defence - which as you can see is thorough and it defends my rights to make a whistleblower statement.

Email:

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Also if I am not employed or covered by NDIS / NDIA

Then why have I got an advance payment from them?

Please consider this when you 'assess' me for eligibility which I have already proven, and I bade a warning below.

Please bear in mind you sent me this information:

'During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

Your Boss, in so called 'quality assurance' Lara Fleming, says this is not the case, yet she seems unsure or unable to say with any surety or confidence one way or the other.

Additionally a cc'd email states from Worksafe that commcare are my insurer in their opinion:

(In addition, I have only worked in Victoria too, but have the agency for national work),

,

On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:
Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

• Cas sand ra • Advi sor	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	• <14590346.gif>	<ecblank.gif>
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,

Additionally Lara said she would give me an update and outcome today, this email is from yesterday:

'Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

I also emailed all of you with this URGENT request and this evidence of an advance payment from the NDIA:

'As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in wages, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicably work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them | ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo
<Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage.
Please find attached the emails NDIA provided to Comcare.

***I interrupt* Amy Delzoppo has OFFICIALLY stated she has attached the emails that NDIA provided to ComCare - but THERE WAS NOTHING ATTACHED and the NDIA has not responded**

You further go on...and I correct you on the points below:

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA ‘approved’ me, and can indeed, fire me.

-
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- ***The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.***

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

**Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA
[SEC=OFFICIAL]**

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

Here is the evidence:

- Their ABN is: 25617475104
-
- The date of the invoice in which they 'reserve its rights' ie: I owe them, is stated above.
-
- It is a TAX INVOICE (ie: an employer).
-
- Document number: 300063677318
-
- My NDIA number (ie my employee number), is stated clearly as: 4050046572
-
- It is addressed to me personally- not my business
www.richmclean.com.au
-
- It is for an advance payment from my employer in the time of COVID:
-

- The number of that advance payment issued is: 300063667057
-
- I also have a vendor number of: 4050046572
-
- The account I have to pay it back to is The NDIA - so obviously and without a doubt - I am employed by them - and workcover are right - Comminsure is my insurer for workcover.
-
- The invoice is invoiced to me personally.
-
- It is none of your nor Lara's Fleming's business if I do or do not have private health insurance cover for my business, and whether if I do they pay me or not- that is irrelevant.
-
- I have a recording of Lara asking me such questions.

I wish to state that as a person who has been prejudiced to be in debt and homeless, I exercise my right, and have also informed you both, that I have recorded our conversations - and additionally have a record of our emails that would not satisfy a court that I am exempt from cover.

Any further delay will affect my mallovs hierarchy of needs, (ie, housing and shelter), and so I have no choice but to exercise my right of publishing this evidence identifying both yourself as rejecting my claim and Lara Fleming's weak arguments to me on the phone calls that I have recorded.

You are both clearly identified and recorded rejecting me and then un-rejecting me, then rejecting me again, and now you are doing what most organisations institutes and organisations do with my human rights and that is...kick the can down the road and elongate it knowing full well it will leave me starving and destitute.

If it is not resolved in my favour tomorrow, I will have no other option but to add both your names and the cover up at ComCare to my whistleblower Statement for the Federal Police and for the Independent Broad based Anti Corruption Commission (IBAC) or other agency.

This will result in you both being civilly pursued as agents of a force that are rejecting my health my wealth freedom prosperity and my livelihood.

And I deserve better and I indeed think you could both do without the 10-15 years jail that 'Conspiracy to pervert the course of justice' attracts when it goes to the federal court.

Both of you do not know the circumstances by which you are being told by someone senior or 'higher than you' to 'kick the can down the road', and reject me as not being covered.

This is the way I have been victimised for many years now, and I will hold all pawns of public office of the veneer of disadvantaging me as such to that whistleblower complaint of agents that disrupt, persecute me, deny my freedoms and my agency to have prosperity.

You are both in above your head, for only I know the reason you are being told to reject me.

Please do not self demonise yourselves with jail time via my whistleblower statement simply because you are told to.

You are both better than that.

I have proven a valid case and failure to demonstrate that will lead to conviction via my whistleblower statement- so either hand it to someone who is identifiable senior to you, or I dare say suffer the consequences.

Here is the evidence, below, which the federal conspiracy has been watching and deleted off of my computer, but which I will publish along with this email.



Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
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DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

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Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

So in fact, Comcare are a faceless identity - and I will not be rejected by someone I cannot civilly identify - so I will be placing the criminal offence of 'conspiracy to pervert the course of justice' on the highest named individuals complicit in the crime.

1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

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I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

On 25 May 2021, at 1:29 pm, Advisory_Service@worksafe.vic.gov.au wrote:
To Rich

Thankyou for your e-mail

If you are being paid by the NDIA then your claim would fall under COMCARE

• Diane • Advisor	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	• 	
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Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

BE GREEN, READ FROM THE SCREEN

 Dr Rich Mclean ---20/05/2021 07:31:28 PM---Dear Cassandra, and NDIA, and WorkSafe, This is a question for work safe and an FOI request for NDI

From: Dr Rich Mclean <rich@richmclean.com.au>
To: Advisory_Service/Public_Affairs/VWA@WorkCover, "Ndia. Review" <ndia.review@ndis.gov.au>, foi@ndis.gov.au, "FOI (NDIS Commission)" <FOI@ndiscommission.gov.au>
Date: 20/05/2021 07:31 PM
Subject: Re: GT47 - Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Cassandra, and NDIA, and WorkSafe,

This is a question for work safe and an FOI request for NDIS/NIA/NDIS Commission.

CommCare are refusing to acknowledge I am cover by them. (Amy),

However, they gave me a claim number and then a link to ask me to fill in a form, including details of the psychological injury.

If I am approved by CommCare, does this mean I am covered by 'WorkCover'? Or 'Worksafe'? As such?

What do you suggest I do now, coming from you at work safe who oversee workcover, whom I have made recordings of from saying 'every worker is covered', if I am rejected by Commsure?

The NDIA pay my wage, therefore they are my employer, wouldn't you agree? I have an advance payment below from NDIA. (During COVID with a registration number).

Here is proof: they gave me an advance payment in COVID that I did not request.

It confirms my employer framed by the COVID crisis - is the NDIA.

Thanks in advance for your response.

Please also see my FOI below

Dear Pascal, (NDIA), and also to the NDIS,

Thanks for your call.

In my FOI please release:

- 1) Documents relate to why someone in NDIS/NDIA told a plan manager I do not have permission to charge my 'therapy other' rate, ie who was it? Why?
- 2) One of my clients hand funding review, I have been involved in. Why was I removed from further reviews?
- 3) Why does NDIS/NDIS not accept I am 'employed' by them for compliance purposes when I have an advance payment from NDIA for covid?

- 4) Whether NDIA thinks I have qualifications for work I do, if not why not?
- 5) Documents mention my name.business www.richmclean.com.au and complaints made about me or my role?
- 6) My former partner worked for ASIO and promised to 'ruin ' me he promised an threatened to call NDIS / NDIA to deregister me-any record of this?
- 7) Any thing related to my work or my person (Both NDIS and NDIA please).
- 8) if insolvency and incarceration exonerates me from working for the NDIS? Or NDIA? Or being registered?

Thanks, please forward to NDIA as well for an FOI request to them.

I will await your receipt and feedback.

Kindly

Rich

<27811182.jpg>

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:

Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

• Cassandra • Advisory	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	• <14590346.gif>	• <ecblank.gif>
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BE GREEN, READ FROM THE SCREEN

<graycol.gif>Dr Rich Mclean ---13/05/2021 01:24:33 PM--- Dear Commcare, and Workcover... Is this claim assessed?

From: Dr Rich Mclean <rich@richmclean.com.au>
To: Rich McLean <rich@richmclean.com.au>, general.enquiries@comcare.gov.au, advisory_service, Advisory_Service/Public_Affairs/VWA@WorkCover
Date: 13/05/2021 01:24 PM
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Commcare, and Workcover...

Is this claim assessed?

What is the process?

I spoke with someone at workcover and they said I am insured somewhere...

and they said I am a sole trader and I am not covered by commcare...

Workcover has pointed me again in your direction...

I want to stipulate that I am a registered provider with the NDIS as a registered provider, and I invoice directly to PRODA which is a government agency.

I want to determine quite urgently if despite being a sole trader if I get paid by the NDIS does that mean or not mean I am employable and our insured by Commcare?

This has come to my attention recently when my private insurer has rejected me outright unless I have a same claim with workcover.

Workcover has referred me to Commcare.

Can Amy please call me back, or even better, can she email me back please defining how within legislation I am NOT insured with commcare, and if not, what will I tell workcover?

TIA

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

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*NDIS Registered Provider ID: 4050046572
ABN: 72066207615*

Advisory_Service@worksafe.vic.gov.au

On 8 May 2021, at 1:57 pm, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

On 6 May 2021, at 12:03 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:

Dear Dr McLean

We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

- [Email general.enquiries@comcare.gov.au](mailto:general.enquiries@comcare.gov.au) and quote your claim number in the subject line.
- Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.

- If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.
- If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

<smime.p7s>

28th May

HIGHLY CONFIDENTIAL

Delete if not appropriate to you.

Subject to my legal privilege.

For the NDIA

Dear NDIA,

This email has legal privileges to it and cannot be shared outside its purpose not stored as outlined below.

For the purposes of a workers compensation application I am required to send this to the NDIA to the agency that I am paid from, for acknowledgement and validation and to complete the process for CommCare

Commcare will provide notification when you validate this essential cover for my distress and homelessness after becoming ill from work as explicated in the evidence below.

This email contains legally privileged information about myself Dr Rich Mclean and in addition further identifies participants I worked with only essentially for the purposes of this application in the further down the track I may provide the VOCAT statement I prepared for him collating data and information over a year and a half which was parallel to my struggles as described.

In no way is this expected to be shared, distributed or copied anywhere other than the explicit purposes of the NDIA's validation and response, acknowledgement and submission to CommCare.

Other than that, I instruct anyone in possession of it to please delete it immediately.

Sincerely,

Dr Rich Mclean

If you have any questions please do not hesitate to email me on rich@rich [mclean.com.au](mailto:rich@richmclean.com.au) or richarddrawsstuff@gmail.com or call on 0400639248.

Begin forwarded message:

From: Intelledox Infiniti <DoNotReply@comcare.gov.au>

Subject: Workers' Compensation Claim Form – steps to complete submission [SEC=OFFICIAL]

Date: 27 May 2021 at 2:20:12 pm AEST

To: <rich@richmclean.com.au>

Dear Richard William,

Thank you for completing your *Workers' Compensation Claim Form*. A copy of your form is attached for your reference.

Next steps

Please forward these forms to your agency for completion.

Note: this information has not yet been received for processing. You must now submit these forms to your employer. Your employer will then submit the completed forms to us.

We will advise you when your claim has been submitted by your agency. You will be notified of any decisions we make.

If you have paid for treatment related to your claim, please complete a [Medical Services Claim Form](#) and submit it with your receipts. You can do this now or later if your claim is accepted.

If you have any questions please contact us on **1300 366 979**.

NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

Begin forwarded message:

From: "Contact Centre (NDIS Commission)"

<ContactCentre@ndiscommission.gov.au>

Subject: RE: Workers' Compensation Claim Form – steps to complete submission [SEC=OFFICIAL]

Date: 28 May 2021 at 11:39:12 am AEST

To: Dr Rich Mclean <rich@richmclean.com.au>

Dear Dr Richard Mclean,

Thank you for your recent correspondence outlined below, for our records registration ID: 4-433J-962.

The general e-mail address for the NDIA is provider.support@ndis.gov.au
I don't have a direct e-mail that I can advise of in this situation.

Whilst I do not believe that they will be able to assist you in this matter, it is for them to confirm whether they consider you an employee. The Commission can only advise that you are a registered provider, but as to whether this means that the NDIA was your employer- again we are not best placed to advise in this matter.

I believe the NDIA are advising that they cannot assist you because they do not consider you an employee BUT if they are incorrectly referring you to the NDIS Commission in this matter please provide them with this e-mail chain, including the summation I provided you on 14/5/2021.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely

Holly Withers

Senior Registration Team Liaison



NDIS Quality
and Safeguards
Commission

P: 1800 035 544 | **E:** registration@ndiscommission.gov.au
www.ndiscommission.gov.au

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

From: Dr Rich Mclean <rich@richmclean.com.au>

Sent: Friday, 28 May 2021 11:04 AM

To: Contact Centre (NDIS Commission)

<ContactCentre@ndiscommission.gov.au>

Subject: Re: Workers' Compensation Claim Form – steps to complete submission [SEC=OFFICIAL]

Hi Holly

Thanks for responding.

As you can see- I am struggling to find the right person to send this ti.

Do you have the email I can send to for the NDIA directly who may be able to assist?

I get confused with the NDIS NDIS Commission Quality and Safeguards, NDIA, and there seems to me no contact person anywhere I look!

The Ndis says call the Ndis the Ndis says call the NDIA

etc

Please assist me with an email if you would indulge me in looking where to send this?

TIA

Rich

On 28 May 2021, at 10:12 am, Contact Centre (NDIS Commission)
<ContactCentre@ndiscommission.gov.au> wrote:

Dear Dr Richard Mclean,

Thank you for your recent correspondence outlined below, for our records registration ID: 4-433J-962.

As outlined In my previous correspondence- see attached- you have addressed this to the NDIA but sent it to the NDIS Commission contact center. As I have previously advised we would not be best placed to assist you further with this enquiry, you should direct any further correspondence directly to the NDIA only, especially as this matter contains legally privileged information. We will now delete this e-mail as per your request.

I can see you have also sent this to the NDIA review team as well and I hope they can assist you further.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely

Holly Withers

Senior Registration Team Liaison

<image001.jpg>

P: 1800 035 544 | **E:** registration@ndiscommission.gov.au

www.ndiscommission.gov.au

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29th may FOI

Hello

I still request this FOI

If the email is too late (I have been overwhelmed fighting commcare about whether I am able to be insured by you),

Can I re-instate from this date 29.05.2021

I request all documents relating to me and my claim again

Thanks

Rich McLean

On 24 May 2021, at 4:57 pm, foi <foi@comcare.gov.au> wrote:

OFFICIAL

Dear Mr Mclean,

Thank you for your email dated 20 May 2021, seeking access under the *Freedom of Information Act 1982* (the FOI Act) to the following:

QUESTION: I would like my FOI of Comsure in all regards to my name my business my calls and my emails. Please provide a timeframe, because something dodgy is going on and we both know it, its bigger than you and me combined.

Your request has been assigned reference number **2021/4547**. Please include this number in any communication with Comcare concerning the request.

We understand your request to be for all documents held on your Comcare claim file. Please let me know if that is not correct.

Please note that Comcare does not record phone conversations, therefore no call recordings will be provided to you.

Exclusion of employee details

Where the full name and contact details of Comcare staff members are included in the scope of a request, this may add to processing time and

applicable charges as it may be necessary to consider whether the details are exempt under the FOI Act. We would appreciate if you could please advise by **27 May 2021**, whether you agree to exclude these details as out of scope of your request (irrelevant material) under section 22 of the FOI Act.

Information on processing of your request is set out below.

Timeframe for processing your request

The statutory timeframe for processing your request is 30 days from the day after it was received by Comcare, which means a decision on your request is due to be notified to you by **21 June 2021**.

This timeframe may change where:

- a) we are required to consult with you because your request is not clear or would require a substantial diversion of Comcare's resources to process;
- b) we are required to consult with third parties if their information is included in a document you have requested;
- c) you are issued a charge for processing your request;
- d) we receive written agreement from you; or
 - we receive an extension from the Information Commissioner.

Administrative Release of Documents

Comcare has administrative access arrangements for the release of certain documents without the need for a formal FOI request. Unless you tell us otherwise, we may provide you with documents under these administrative access arrangements instead of processing the documents formally under the FOI Act. We will notify you if documents are released to you under the arrangements.

Consultation with third parties

The FOI Act requires Comcare to undertake consultation prior to making any decision to grant access to documents (subject to exemptions) that contain:

- information that originated with, or was received from, a State or an authority of a State;

- information that originated with, or was received from, a foreign government, an authority of a foreign government or an international organisation;
- information concerning a person's business or commercial affairs, or the business, commercial or financial affairs of an organisation or undertaking; or
 - personal information about a person (including a deceased person).

We will advise you as soon as possible if external consultation is required.

Charges

Comcare will advise you if a charge is payable to process your request, as set out in the FOI Charges Regulations.

No charge is payable for providing a person with their own personal information.

Disclosure log

Please note that information released under FOI Act may be published in a disclosure log on Comcare's website. Section 11C of the FOI Act requires this publication, however it is subject to certain exceptions, including where publication of personal, business, professional or commercial information would be unreasonable.

Contact

Should you require clarification of any of the matters discussed in this email, or have any queries throughout the process, please contact me by email to foi@comcare.gov.au.

Yours sincerely,

Jesse

Statutory Oversight Officer | Legal Group

Email: FOI@comcare.gov.au

GPO Box 9905, Canberra ACT 2601 | Ph 1300 366 979 | www.comcare.gov.au

Please note: This email and attachments may contain information subject to legal professional privilege or information that is otherwise sensitive and confidential. If you are not the intended recipient of this email, you are prohibited from using or disseminating this communication. If you have received this communication in error please notify the sender immediately and permanently deleted this email.

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31st May

Emails disappearing - the Government saying I am not covered

Josh,

Here is an invoice from the NDIA in which an advance payment should be paid back - hence they are my employer:

Comsure has rejected my workers comp claim. - worth a damn lot of money.

Additionally here is my contract with the from the NDIS Quality and safeGuards Commission.They can hire and fire me.

It is a registration provider certificate.

In addition, I have made a whistleblower statement here, which I have sent to the ombudsman.

www.richmclean.com.au

I deserve protection as a whistleblower.

This has been denied.

If you are legitimate you will see that the ombudsman has refused my whistleblower statement with this response to Helen from the ombudsman:

Dear Helen,

I have evidence that you are rejecting my whistleblower statement, that is about an endemic cover up by the Government.

It is located at www.richmclean.com.au

Other than that, I request information about why you have not provided me with NDIS terms of business for Registered providers?

Please answer this.

Comcare is a federal Government agency that has also rejected my claim.

I have an invoice / statement from the NDIA in which they forward me a cheque or rather an invoice, for an advance payment.

(They therefore are my employers).

This proves as well as my contract, I am an employee of the NDIA, and I deserve compensation.

I have already contacted WorkSafe and they say ComCare is my insurer.

Please comment

Dr Rich McLean

On 31 May 2021, at 9:30 am, ombudsman@ombudsman.gov.au wrote:
Our ref: 2021-704235

Dear Dr McLean

Thank you for your correspondence.

We are unable to consider your matter as it is not within our jurisdiction. The Commonwealth Ombudsman's Office handles complaints about the administrative actions of Australian Federal Government agencies.

Under the NDIS Terms of Business for Registered Providers, you are responsible for insuring yourself against instances that may result in a loss of income.

This, therefore, would not involve administrative actions of Australian Federal Government agencies.

To learn more about insurance for NDIS registered providers or support workers, visit the finder [website](#).

Alternatively, you could contact WorkSafe Victoria at www.worksafe.vic.gov.au

Unless you are responding to a request for information made by our Office, within the timeframe specified, please do not reply to this email. Any emails sent to this address which are not a response to a request for information are unlikely to be responded to.

Yours sincerely
Helen

Complaint Resolution Officer
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

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COMMONWEALTH OMBUDSMAN - IMPORTANT CONFIDENTIALITY NOTICE

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No use, copying or disclosure (including by further transmission) of this message, an attachment or the content of either is permitted and any use, copying or disclosure may be subject to legal sanctions. This message may contain information which is:

- * about an identifiable individual;
- * subject to client legal privilege or other privilege; or
- * subject to a statutory or other requirement of confidentiality.

If you have received this message in error, please call 1300 362 072 to inform the sender so that future errors can be avoided.

Riddle me this - if I am not the centre of a conspiracy - why is it I cannot make a whistleblower statement,ent?

I await your reply

RM<

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: RE: Receipt of advance payment bill needed and required [SEC=OFFICIAL]

Date: 19 May 2021 at 2:49:11 pm AEST

To: Dr Rich McLean <rich@richmclean.com.au>

Cc: "richarddrawstuff@gmail.com" <richarddrawstuff@gmail.com>

Dear Rich

Thank you for contacting the NDIA.

Please see attached an invoice that was sent on 13/05/2021.

Unfortunately we cannot assist with issues experienced with your email account or server, please submit an IT ticket if it relates to an NDIS IT issue.

Kind Regards

**Nicholas N
Finance Officer**

**Finance Branch
National Disability Insurance Agency**



**National Disability Insurance Agency
T 1800 800 110**

From: Dr Rich McLean <rich@richmclean.com.au>
Sent: Wednesday, 19 May 2021 6:46 AM
To: ADVANCE.PAYMENT1 <ADVANCE.PAYMENT1@ndis.gov.au>
Subject: Receipt of advance payment bill needed and required

Hello NDIS NDIA

I want a record of how much I owe on my COVID advance payment please

Can you email it to be and cc richarddrawstuff@gmail.com please?

I wish to acknowledge it and plan to pay it

My others email “disappeared” off my email server I am wondering who is responsible for intercepting my emails?

Can you confirm?

Provider number below through PRODA

Thanks

Dr Rich McLean
Human Rights Awarded Autobiographer & Registered Therapeutic
Supports Provider for the NDIS | Artist-Life-Coaching | Traditional

drawing / Digital illustrator / International Recovery Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

***** IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail



Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
---	--

DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

1st June no response from this (?)

Good Morning Helen. I hope you will kindly acknowledge this email.

Under my understanding, Comsure is a federal Government agency hence it would be within the Ombudsman scope.

You mentioned ;Under the terms of Business for registered providers' that I am responsible for insurance.

However workcover has insisted and workfare Vic that commsure are my insurers.

If you would please indulge me with information regarding the legislation around what you have claimed to me in your email I would be very grateful.

I have already contacted work safe and they 100% insist that commsure are my insurers.

Can you please acknowledge this email with the litigation or evidence around what you claim, because it may make otr break me, and I want to be sure it is enshrined within the legislation.

Because it is a request in direct response to your email, I think I can be reassured that I will get a reply

Kindly

Dr Rich Mclean

On 31 May 2021, at 9:30 am, ombudsman@ombudsman.gov.au wrote:
Our ref: 2021-704235

Dear Dr McLean

Thank you for your correspondence.

We are unable to consider your matter as it is not within our jurisdiction. The Commonwealth Ombudsman's Office handles complaints about the administrative actions of Australian Federal Government agencies.

Under the NDIS Terms of Business for Registered Providers, you are responsible for insuring yourself against instances that may result in a loss of income.

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To learn more about insurance for NDIS registered providers or support workers, visit the finder [website](#).

Alternatively, you could contact WorkSafe Victoria at www.worksafe.vic.gov.au

Unless you are responding to a request for information made by our Office, within the timeframe specified, please do not reply to this email. Any emails sent to this address which are not a response to a request for information are unlikely to be responded to.

Yours sincerely
Helen

Complaint Resolution Officer
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

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- * subject to a statutory or other requirement of confidentiality.

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3 I st may lots of info plus the federal conspiracy included

Dear Bernadette,

Re:

claim number: 1326583/1 determination outcome letter
[SEC=OFFICIAL:Sensitive]

Thanks for your email. With the statement 'Your request for reconsideration of the determination dated 26 May 2021, which declined liability for anxiety state and depressive disorder under section 14 of the Safety, Rehabilitation and Compensation Act 1988 (SRC Act), has been received. '

1) I was under the impression that Lara Fleming was overseeing my case? Now is she not? I have a recording of her admitting that Amy Delzoppo had rejected my claim, but then Lara was unsure about it, and as her manager, you would expect her to justify this position.

2) I understood and have evidence for that Amy rejected my claim because of the reasons below, which I rebutted in the following valid ways underneath:

3) I understand that Amy no longer has anything to do with my case, so how can she decide I am not eligible with no legislative support to back her statement then it be passed onto Lara who took the reigns because I suggested to Amy that conspiracy to pervert the course of justice has a 10-14 year jail term?

Bernadette, where do you fit into the picture?

I still do not understand how it is flat out rejected, but then again rejected on the assumption I suffer from 'anxiety and depression', which is actually, not the case whatsoever.

Can you please acknowledge where you got this information from?

Additionally, I please draw your attention to the document that details my sexual abuse claim and me working with a client for over a year and a half whom had a sexual abuse history.

In addition - I support my claim with a letter from the magistrate that is scathing in her assessment of my childhood sexual abuse claim - and additionally that the lawyer responsible for the hearing illegally - did not give me an outcome.

The magistrate said 'I was doomed to fail from the start'

I wish to say that I am rationally paranoid that because of information I know and a conspiracy to pervert the course of justice and maim me in all ways including financially has been proved by me as a whistleblower statement.

It will be taken to the federal police and the national Ombudsman.

That statements on my website, and it includes Comcare.

I wish to remind individuals that I have the name of again that if they act as pawns in the veneer of a government and or motive to rob me of prosperity and lead to my ruin, and 'make my death' look like a symptom of a presumed illness, that I will name and shame those responsible.

If you dont want to be named, then please identify the person who has rejected my claim.

But bluntly, an I rejected because I cannot be insured, or on the grounds of an apparent illness, or because of some legislative concept I have not been shown?

Why am I even in reconsideration or appeal stage when the first stage has not got a concrete answer?

I remain yours sincerely,

Dr Rich Mclean

[See More from General Enquiries](#)

In regards to the NDIS Commission, they say:

'Dear Dr Richard Mclean,

Thank you for your recent correspondence outlined below, for our records registration ID: 4-433J-962.

The general e-mail address for the NDIA is provider.support@ndis.gov.au I don't have a direct e-mail that I can advise of in this situation.

Whilst I do not believe that they will be able to assist you in this matter, it is for them to confirm whether they consider you an employee. The Commission can only advise that you are a registered provider, but as to

whether this means that the NDIA was your employer- again we are not best placed to advise in this matter.

I believe the NDIA are advising that they cannot assist you because they do not consider you an employee BUT if they are incorrectly referring you to the NDIS Commission in this matter please provide them with this e-mail chain, including the summation I provided you on 14/5/2021.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers
Senior Registration Team Liaison'

In regards to commcare i am getting mixed messages.

One says 'thanks for your claim' and you deny it exists.

I have contacted the NDIA - who has given me advance payments, I have a contract for and hence are my employer, but I have received no response.

See here:

'Dear Dr Richard Mclean,

Thank you for your recent correspondence outlined below, for our records registration ID: 4-433J-962.

As outlined In my previous correspondence- see attached- you have addressed this to the NDIA but sent it to the NDIS Commission contact center. As I have previously advised we would not be best placed to assist you further with this enquiry, you should direct any further correspondence directly to the NDIA only, especially as this matter contains legally privileged information. We will now delete this e-mail as per your request.

I can see you have also sent this to the NDIA review team as well and I hope they can assist you further.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers
Senior Registration Team Liaison



P: 1800 035 544 | E: registration@ndiscommission.gov.au
www.ndiscommission.gov.au

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From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 27 May 2021 8:40 PM
To: Contact Centre (NDIS Commission)
<ContactCentre@ndiscommission.gov.au>; Contact Centre (NDIS Commission) <ContactCentre@ndiscommission.gov.au>; Ndia. Review <ndia.review@ndis.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>; Rich McLean <richarddrawsstuff@gmail.com>
Subject: Fwd: Workers' Compensation Claim Form – steps to complete submission [SEC=OFFICIAL]

Dear NDIA,

This email has legal privileges to it and cannot be shared outside its purpose not stored as outlined below.

For the purposes of a workers compensation application I am required to send this to the NDIA to the agency that I am paid from, for acknowledgement and validation and to complete the process for CommCare

Commcare will provide notification when you validate this essential cover for my distress and homelessness after becoming ill from work as explicated in the evidence below.

This email contains legally privileged information about myself Dr Rich Mclean and in addition further identifies participants I worked with only essentially for the purposes of this application in the further down the track I may provide the VOCAT statement prepared for him collating data and information over a year and a half which was parallel to my struggles as described.

In no way is this expected to be shared, distributed or copied anywhere other than the explicit purposes of the NDIA's validation and response, acknowledgement and submission to CommCare.

Other than that, I instruct anyone in possession of it to please delete it immediately.

Sincerely,

Dr Rich Mclean

If you have any questions please do not hesitate to email me on rich@richmclean.com.au or richarddrawsstuff@gmail.com or call on 0400639248.

Begin forwarded message:

From: Intelledox Infiniti <DoNotReply@comcare.gov.au>

Subject: Workers' Compensation Claim Form – steps to complete submission [SEC=OFFICIAL]

Date: 27 May 2021 at 2:20:12 pm AEST

To: <rich@richmclean.com.au>

Dear Richard William,

Thank you for completing your Workers' Compensation Claim Form. A copy of your form is attached for your reference.

Next steps

Please forward these forms to your agency for completion.

Note: this information has not yet been received for processing. You must now submit these forms to your employer. Your employer will then submit the completed forms to us.

We will advise you when your claim has been submitted by your agency. You will be notified of any decisions we make.

If you have paid for treatment related to your claim, please complete a [Medical Services Claim Form](#) and submit it with your receipts. You can do this now or later if your claim is accepted.

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,

I wish to say that Amy told me she has evidence from the NDIA that they do not consider men that way - yet she has failed to provide that evidence.

As for filling out the forms, The NDIS Quality and Safeguards Commission is in the drop down panel on Comcares website, which I selected.

I have not heard a peep from them

I have sent them my extra information that you need here in this email:

Dear NDIA,

This email has legal privileges to it and cannot be shared outside its purpose not stored as outlined below.

For the purposes of a workers compensation application I am required to send this to the NDIA to the agency that I am paid from, for acknowledgement and validation and to complete the process for CommCare

Commcare will provide notification when you validate this essential cover for my distress and homelessness after becoming ill from work as explicated in the evidence below.

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To: <rich@richmclean.com.au>

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Next steps

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If you have paid for treatment related to your claim, please complete a [Medical Services Claim Form](#) and submit it with your receipts. You can do this now or later if your claim is accepted.

If you have any questions please contact us on 1300 366 979. NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle

personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

Also I have submitted my claim to commcare:

It is here:

Dear Richard William,

Thank you for completing your Workers' Compensation Claim Form. A copy of your form is attached for your reference.

Next steps

Please forward these forms to your agency for completion.

Note: this information has not yet been received for processing. You must now submit these forms to your employer. Your employer will then submit the completed forms to us.

We will advise you when your claim has been submitted by your agency. You will be notified of any decisions we make.

If you have paid for treatment related to your claim, please complete a [Medical Services Claim Form](#) and submit it with your receipts. You can do this now or later if your claim is accepted.

If you have any questions please contact us on 1300 366 979. NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle

personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

Further on 26th May, Amy sent me this letter:

'Good afternoon Richard

Thank you for your time today. As discussed, Comcare have declined liability on your workers' compensation claim on the basis Comcare are not satisfied you are an 'employee' in accordance with the Safety, Rehabilitation and Compensation Act 1988. I have attached the determination letter and your notice of rights.

If you disagree with the determination, you have the right to request a reconsideration within 30 days of receiving Comcare's determination. I have attached the request for reconsideration form which you will need to complete and email to reconsiderations.team@comcare.gov.au if you disagree with the determination. If you are unable to request a reconsideration within the 30 day timeframe, you can request an extension of time and it will be considered by the reconsideration team.

Thank you for providing a copy of your registration. I have reviewed this document and consider it supports Comcare's position that you are a registered NDIA provider who delivers support to NDIS participants rather than an employee of the NDIA.

If you would like to discuss the determination letter, please do not hesitate to contact me or my manager Lara Fleming. Both myself and Lara work standard hours 9 am until 5 pm Monday to Friday.

My contact details are:

Email: Delzoppo.amy@comcare.gov.au

Phone: (02) 6276 0354

Lara's contact details are:

Email: Fleming.lara@comcare.gov.au

Phone: (02) 6225 2391

Warmest regards,

Amy Delzoppo
Senior Claims Manager
Canberra 7 | Claims Management Canberra
Claims Management Group | Canberra
P: (02) 6276 0354

Comcare
GPO Box 9905, Canberra, ACT 2601
1300 366 979

www.comcare.gov.au

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

,

In it, she argues in pointed form she has additionally got evidence from the NDIA but this was never provided.

Plus on 26th May, I sent in my registration that Amy said was missing to be able to have acknowledgement I had a contact with the NDIA.

It took just over two hours for her to not read it nor change her stance.

Here is that email, with the contract I have with my employer:

Hi Amy and Lara.

Either way, I will contest if you still dont think I have a contract with the NDIA.

Additionally I add an email that states my current active registration.

Please re-do my Comcare compare application framed by this new information

Thanks

Rich

In addiittion,

The says:

ContactCentre@ndiscommission.gov.au

RE: being an 'employee' for the purposes of workcover - URGENT please
[SEC=OFFICIAL]

'Dear Richard Mclean,

Thank you for your time over the phone regarding registration ID: 4-433J-962. The e-mail below is addressed to the NDIA but just to be very clear it was sent to the NDIS Commission.

I am sorry to hear about your current situation and the struggles you are facing, however I discussed this matter with my team leader and I believe that you may have been provided similar information on a separate occasion. I will do my utmost to be clear so that you can locate the department best placed to assist with your enquiries.

I'll begin with information regarding your registration and the renewal process. Your renewal date is 31/3/2020, as a transitioning provider you are afforded 9 months from this date to have your renewal application and accompanying audit completed and submitted to the Commission. This would have seen you submit by 31/12/2020. You have now entered into breach of your conditions of registration.

You are still able to trade and service participants (if you wish) during this time however the expectation is that you be looking to complete your audit as soon as is practicable.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers on behalf of
Contact Centre



P: 1800 035 544 | E: registration@ndiscommission.gov.au
www.ndiscommission.gov.au

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

So as you see my registration is still complete and able to work under my contract, proving again I am employed by them, any non acknowledgement of this I will oppose.

Cheerrs

Further on 6th May it is a back and forward between a lot of people, still with no official response from the NDIA.

In it, workcover states I am covered by the NDIA, business Vic do not respond, and neither does

Dear Diane, at Worksafe, and additionally Monash social Work Clinic, (Can you help with this issue?)

CC ATT: [Business.vic.gov.au](https://business.vic.gov.au) can you please assist me?

CC Victorian Chamber of Commerce and Industry - Can you identify who I am covered for with workcover please?

Commcare has REJECTED me.

This is extremely URGENT

Comcare have refused that I am covered by them.

If that is true, and apparently she is sending me the legislation which backs up her claim, then who am I covered by please?

My workcover certificates have been going since January and I am now homeless after having battled to find who I am covered by.

Additionally, when they originally rejected me - I sent them this long email in my defence - which as you can see is thorough and it defends my rights to make a whistleblower statement.

Email:

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Also if I am not employed or covered by NDIS / NDIA

Then why have I got an advance payment from them?

Please consider this when you 'assess' me for eligibility which I have already proven, and I bade a warning below.

Please bear in mind you sent me this information:

'During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

Your Boss, in so called 'quality assurance' Lara Fleming, says this is not the case, yet she seems unsure or unable to say with any surety or confidence one way or the other.

Additionally a cc'd email states from Worksafe that commcare are my insurer in their opinion:

(In addition, I have only worked in Victoria too, but have the agency for national work),

,

On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:
Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

'

Additionally Lara said she would give me an update and outcome today, this email is from yesterday:

'Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

I also emailed all of you with this URGENT request and this evidence of an advance payment from the NDIA:

'As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and

further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in wages, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicitly work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them I ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo

<Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

I interrupt Amy Delzoppo has OFFICIALLY stated she has attached the emails that NDIA provided to ComCare - but THERE WAS NOTHING ATTACHED and the NDIA has not responded

You further go on...and I correct you on the points below:

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the Safety Rehabilitation and Compensation Act 1988 (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- Persons employed under a contract of service
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

-
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo
Senior Claims Manager
Canberra 7 | Claims Management Canberra
Claims Management Group | Canberra
P: (02) 6276 0354

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA
[SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

Here is the evidence:

- [Their ABN is: 25617475104](#)
-
- [The date of the invoice in which they 'reserve its rights' ie: I owe them, is stated above.](#)
-
- [It is a TAX INVOICE \(Ie: an employer\).](#)
-
- [Document number: 300063677318](#)
-
- [My NDIA number \(ie my employee number\), is stated clearly as: 4050046572](#)
-
- [It is addressed to me personally- not my business](#)
www.richmclean.com.au
-
- [It is for an advance payment from my employer in the time of COVID:](#)
-
- [The number of that advance payment issued is: 300063667057](#)
-
- [I also have a vendor number of: 4050046572](#)
-
- [The account I have to pay it back to is The NDIA - so obviously and without a doubt - I am employed by them - and workcover are right - Comminsure is my insurer for workcover.](#)
-
- [The invoice is invoiced to me personally.](#)
-

- It is none of your nor Lara's Fleming's business if I do or do not have private health insurance cover for my business, and whether if I do they pay me or not- that is irrelevant.
-
- I have a recording of Lara asking me such questions.

I wish to state that as a person who has been prejudiced to be in debt and homeless, I exercise my right, and have also informed you both, that I have recorded our conversations - and additionally have a record of our emails that would not satisfy a court that I am exempt from cover.

Any further delay will affect my mallovs hierarchy of needs, (ie, housing and shelter), and so I have no choice but to exercise my right of publishing this evidence identifying both yourself as rejecting my claim and Lara Fleming's weak arguments to me on the phone calls that I have recorded.

You are both clearly identified and recorded rejecting me and then un-rejecting me, then rejecting me again, and now you are doing what most organisations institutes and organisations do with my human rights and that is...kick the can down the road and elongate it knowing full well it will leave me starving and destitute.

If it is not resolved in my favour tomorrow, I will have no other option but to add both your names and the cover up at ComCare to my whistleblower Statement for the Federal Police and for the Independent Broad based Anti Corruption Commission (IBAC) or other agency.

This will result in you both being civilly pursued as agents of a force that are rejecting my health my wealth freedom prosperity and my livelihood.

And I deserve better and I indeed think you could both do without the 10-15 years jail that 'Conspiracy to pervert the course of justice' attracts when it goes to the federal court.

Both of you do not know the circumstances by which you are being told by someone senior or 'higher than you' to 'kick the can down the road', and reject me as not being covered.

This is the way I have been victimised for many years now, and I will hold all pawns of public office of the veneer of disadvantaging me as such to that whistleblower complaint of agents that disrupt, persecute me, deny my freedoms and my agency to have prosperity.

You are both in above your head, for only I know the reason you are being told to reject me.

Please do not self demonise yourselves with jail time via my whistleblower statement simply because you are told to.

You are both better than that.

I have proven a valid case and failure to demonstrate that will lead to conviction via my whistleblower statement- so either hand it to someone who is identifiable senior to you, or I dare say suffer the consequences.

Here is the evidence, below, which the federal conspiracy has been watching and deleted off of my computer, but which I will publish along with this email.



Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
---	--

DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

So in fact, Comcare are a faceless identity - and I will not be rejected by someone I cannot civilly identify - so I will be placing the criminal offence of 'conspiracy to pervert the course of justice' on the highest named individuals complicit in the crime.

1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

Failure to do so will convince me that the powers that be are denying me prosperity civil and legal rights and freedom, and I will publish the entire email thread above, including telephone calls I have exemption to publish under a whistleblower statement.

I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

On 25 May 2021, at 1:29 pm, Advisory_Service@worksafe.vic.gov.au wrote:
To Rich

[Thankyou for your e-mail](#)

If you are being paid by the NDIA then your claim would fall under COMCARE

• Diane • Advisor	• info@worksafe.vic.gov.au • Tel/ 1800 136 089 or 9641 1444	• Head Office, 1 Malop Street • Geelong VIC 3220 • www.worksafe.vic.gov.au	• <27245267.gif>	<ecblank.gif>
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Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

BE GREEN, READ FROM THE SCREEN

<graycol.gif>Dr Rich Mclean ---20/05/2021 07:31:28 PM---Dear Cassandra, and NDIA, and WorkSafe, This is a question for work safe and an FOI request for NDI

From: Dr Rich Mclean <rich@richmclean.com.au>
To: Advisory_Service/Public_Affairs/VWA@WorkCover, "Ndia. Review" <ndia.review@ndis.gov.au>, foi@ndis.gov.au, "FOI (NDIS Commission)" <FOI@ndiscommission.gov.au>
Date: 20/05/2021 07:31 PM
Subject: Re: GT47 - Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Cassandra, and NDIA, and WorkSafe,

This is a question for work safe and an FOI request for NDIS/NIIA/NDIS Commission.

CommCare are refusing to acknowledge I am cover by them. (Amy),

However, they gave me a claim number and then a link to ask me to fill in a form, including details of the psychological injury.

If I am approved by CommCare, does this mean I am covered by 'WorkCover?' Or 'Worksafe'? As such?

What do you suggest I do now, coming from you at work safe who oversee workcover, whom I have made recordings of from saying 'every worker is covered', if I am rejected by Commsure?

The NDIA pay my wage, therefore they are my employer, wouldn't you agree? I have an advance payment below from NDIA. (During COVID with a registration number).

Her is proof: they gave me an advance payment in COVID that I did not request.

It confirms my employer framed by the COVID crisis - is the NDIA.

Thanks in advance for your response.

Please also see my FOI below

Dear Pascal, (NDIA), and also to the NDIS,

Thanks for your call.

In my FOI please release:

- 1) Documents relate to why someone in NDIS/NDIA told a plan manager I dot have permission to charge my 'therapy other' rate, ie who was it? Why?
- 2) One of my clients hand funding review, I have been involved in. Why was I removed from further reviews?
- 3) Why does NDIS/NDIS not accept I am 'employed ' by them for composure purposes when I have an advance payment from NDIA for covid?
- 4) Whether NDIA thinks I have qualifications for work I do, if not why not?
- 5) Documents mention my name.business www.richmclean.com.au and complaints made about me or my role?
- 6) My former partner worked for ASIO and promised to 'ruin ' me he promised an threatened to call NDIS / NDIA to deregister me-any record of this?
- 7) Any thing related to my work or my person (Both NDIS and NDIA please).
- 8) if insolvency and incarceration exonerates me from working for the NDIS? Or NDIA? Or being registered?

Thanks, please forward to NDIA as well for an FOI request to them.

I will await your receipt and feedback.

Kindly

Rich

<27811182.jpg>

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

'The bad news is - nothing is permanent, however the good news is - nothing is permanent.'

NDIS Registered Provider ID: 4050046572

ABN: 72066207615

On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:

Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

BE GREEN, READ FROM THE SCREEN

<graycol.gif>Dr Rich Mclean ---13/05/2021 01:24:33 PM--- Dear Commcare, and Workcover... Is this claim assessed?

From: Dr Rich Mclean <rich@richmclean.com.au>

To: Rich McLean <rich@richmclean.com.au>, general.enquiries@comcare.gov.au, advisory_service, Advisory_Service/Public_Affairs/VWA@WorkCover

Date: 13/05/2021 01:24 PM

Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Commcare, and Workcover...

Is this claim assessed?

What is the process?

I spoke with someone at workcover and they said I am insured somewhere...

and they said I am a sole trader and I am not covered by commcare...

Workcover has pointed me again in your direction...

I want to stipulate that I am a registered provider with the NDIS as a registered provider, and I invoice directly to PRODA which is a government agency.

I want to determine quite urgently if despite being a sole trader if I get paid by the NDIS does that mean or not mean I am employable and our insured by Commcare?

This has come to my attention recently when my private insurer has rejected me outright unless I have a same claim with workcover.

Workcover has referred me to Commcare.

Can Amy please call me back, or even better, can she email me back please defining how within legislation I am NOT insured with commcare, and if not, what will I tell workcover?

TIA

Rich

Dr Rich McLean
Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248
E: rich@richmclean.com.au
Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

'The bad news is - nothing is permanent, however the good news is - nothing is permanent.'

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

Advisory_Service@worksafe.vic.gov.au

On 8 May 2021, at 1:57 pm, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

On 6 May 2021, at 12:03 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:

Dear Dr McLean

We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

- [Email general.enquiries@comcare.gov.au](mailto:general.enquiries@comcare.gov.au) and quote your claim number in the subject line.
- Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.
- If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.

•If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

31st may

Dear Bernadette,

Re:

claim number: 1326583/1 determination outcome letter
[SEC=OFFICIAL:Sensitive]

Thanks for your email. With the statement 'Your request for reconsideration of the determination dated 26 May 2021, which declined liability for anxiety state and depressive disorder under section 14 of the Safety, Rehabilitation and Compensation Act 1988 (SRC Act), has been received. '

1) I was under the impression that Lara Fleming was overseeing my case? Now is she not? I have a recording of her admitting that Amy Delzoppo had rejected my claim, but then Lara was unsure about it, and as her manager, you would expect her to justify this position.

2) I understood and have evidence for that Amy rejected my claim because of the reasons below, which I rebutted in the following valid ways underneath:

3) I understand that Amy no longer has anything to do with my case, so how can she decide I am not eligible with no legislative support to back her statement then it be passed onto Lara who took the reigns because I suggested to Amy that conspiracy to pervert the course of justice has a 10-14 year jail term?

Bernadette, where do you fit into the picture?

I still do not understand how it is flat out rejected, but then again rejected on the assumption I suffer from 'anxiety and depression', which is actually, not the case whatsoever.

Can you please acknowledge where you got this information from?

Additionally, I please draw your attention to the document that details my sexual abuse claim and me working with a client for over a year and a half whom had a sexual abuse history.

In addition - I support my claim with a letter from the magistrate that is scathing in her assessment of my childhood sexual abuse claim - and additionally that the lawyer responsible for the hearing illegally - did not give me an outcome.

The magistrate said 'I was doomed to fail from the start'

I wish to say that I am rationally paranoid that because of information I know and a conspiracy to pervert the course of justice and maim me in all ways including financially has been proved by me as a whistleblower statement.

It will be taken to the federal police and the national Ombudsman.

That statements on my website, and it includes Comcare.

I wish to remind individuals that I have the name of again that if they act as pawns in the veneer of a government and or motive to rob me of prosperity and lead to my ruin, and 'make my death' look like a symptom of a presumed illness, that I will name and shame those responsible.

If you dont want to be named, then please identify the person who has rejected my claim.

But bluntly, an I rejected because I cannot be insured, or on the grounds of an apparent illness, or because of some legislative concept I have not been shown?

Why am I even in reconsideration or appeal stage when the first stage has not got a concrete answer?

I remain yours sincerely,

Dr Rich Mclean

[See More from General. Enquiries](#)

In regards to the NDIS Commission, they say:

'Dear Dr Richard Mclean,

Thank you for your recent correspondence outlined below, for our records registration ID: 4-433J-962.

The general e-mail address for the NDIA is provider.support@ndis.gov.au I don't have a direct e-mail that I can advise of in this situation.

Whilst I do not believe that they will be able to assist you in this matter, it is for them to confirm whether they consider you an employee. The Commission can only advise that you are a registered provider, but as to whether this means that the NDIA was your employer- again we are not best placed to advise in this matter.

I believe the NDIA are advising that they cannot assist you because they do not consider you an employee BUT if they are incorrectly referring you to the NDIS Commission in this matter please provide them with this e-mail chain, including the summation I provided you on 14/5/2021.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers
Senior Registration Team Liaison'

In regards to commcare i am getting mixed messages.

One says 'thanks for your claim' and you deny it exists.

I have contacted the NDIA - who has given me advance payments, I have a contract for and hence are my employer, but I have received no response.

See here:

'Dear Dr Richard Mclean,

Thank you for your recent correspondence outlined below, for our records registration ID: 4-433J-962.

As outlined In my previous correspondence- see attached- you have addressed this to the NDIA but sent it to the NDIS Commission contact center. As I have previously advised we would not be best placed to assist you further with this enquiry, you should direct any further correspondence directly to the NDIA only, especially as this matter contains legally privileged information. We will now delete this e-mail as per your request.

I can see you have also sent this to the NDIA review team as well and I hope they can assist you further.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers
Senior Registration Team Liaison



NDIS Quality
and Safeguards
Commission

P: 1800 035 544 | E: registration@ndiscommission.gov.au
www.ndiscommission.gov.au

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 27 May 2021 8:40 PM
To: Contact Centre (NDIS Commission)
<ContactCentre@ndiscommission.gov.au>; Contact Centre (NDIS Commission) <ContactCentre@ndiscommission.gov.au>; Ndia. Review <ndia.review@ndis.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>; Rich McLean <richarddrawsstuff@gmail.com>

Subject: Fwd: Workers' Compensation Claim Form – steps to complete submission [SEC=OFFICIAL]

Dear NDIA,

This email has legal privileges to it and cannot be shared outside its purpose not stored as outlined below.

For the purposes of a workers compensation application I am required to send this to the NDIA to the agency that I am paid from, for acknowledgement and validation and to complete the process for CommCare

Commcare will provide notification when you validate this essential cover for my distress and homelessness after becoming ill from work as explicated in the evidence below.

This email contains legally privileged information about myself Dr Rich Mclean and in addition further identifies participants I worked with only essentially for the purposes of this application in the further down the track I may provide the VOCAT statement I prepared for him collating data and information over a year and a half which was parallel to my struggles as described.

In no way is this expected to be shared, distributed or copied anywhere other than the explicit purposes of the NDIA's validation and response, acknowledgement and submission to CommCare.

Other than that, I instruct anyone in possession of it to please delete it immediately.

Sincerely,

Dr Rich Mclean

If you have any questions please do not hesitate to email me on rich@richmclean.com.au or richarddrawsstuff@gmail.com or call on 0400639248.

Begin forwarded message:

From: Intelledox Infiniti <DoNotReply@comcare.gov.au>

Subject: Workers' Compensation Claim Form – steps to complete submission
[SEC=OFFICIAL]

Date: 27 May 2021 at 2:20:12 pm AEST

To: <rich@richmclean.com.au>

Dear Richard William,

Thank you for completing your Workers' Compensation Claim Form. A copy of your form is attached for your reference.

Next steps

Please forward these forms to your agency for completion.

Note: this information has not yet been received for processing. You must now submit these forms to your employer. Your employer will then submit the completed forms to us.

We will advise you when your claim has been submitted by your agency. You will be notified of any decisions we make.

If you have paid for treatment related to your claim, please complete a [Medical Services Claim Form](#) and submit it with your receipts. You can do this now or later if your claim is accepted.

If you have any questions please contact us on 1300 366 979. NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle

personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

I wish to say that Amy told me she has evidence from the NDIA that they do not consider men that way - yet she has failed to provide that evidence.

As for filling out the forms, The NDIS Quality and Safeguards Commission is in the drop down panel on Comcares website, which I selected.

I have not heard a peep from them

I have sent them my extra information that you need here in this email:

Dear NDIA,

This email has legal privileges to it and cannot be shared outside its purpose not stored as outlined below.

For the purposes of a workers compensation application I am required to send this to the NDIA to the agency that I am paid from, for acknowledgement and validation and to complete the process for CommCare

Commcare will provide notification when you validate this essential cover for my distress and homelessness after becoming ill from work as explicated in the evidence below.

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Sincerely,

Dr Rich Mclean

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Note: this information has not yet been received for processing. You must now submit these forms to your employer. Your employer will then submit the completed forms to us.

We will advise you when your claim has been submitted by your agency. You will be notified of any decisions we make.

If you have paid for treatment related to your claim, please complete a [Medical Services Claim Form](#) and submit it with your receipts. You can do this now or later if your claim is accepted.

If you have any questions please contact us on 1300 366 979. NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

engagements@ndiscommission.gov.au is now blocked

Hi NDIA,

Following a run in with work safe, who have insisted commcare is my insurer for workcover, can you please confirm that you are indeed my employer if I have had a workers bonus sent to me (evidence attached)

Kindly

Rich

Ps I have an NDIA number

A contract with the NDIA

You can hire or fire me which is a condition of being employed

And also I have to do audits for you and pass...

...and report incidents to a satisfactory degree.

Please give a plain yes or no answer much appreciated.

If my litigation team however finds due to legislation the possible no' from you is wrong, and a malicious attempt that maims me in all ways and financially is true, I will be holding the person(s) accountable in perverting the course of justice, which is a 10-14 year jail term, in the federal court.

But I am sure that won't happen, as all my money for nearly three years has come from the NDIA, through the NDIS, and additionally through the Government Portal PRODA, a government agency that proves I am an employee by you.

I'm sure you will agree I am an employee of the NDIA for Comcare purposes.

:-)

Please let me know ASAP.

Ta!

This message was created automatically by mail delivery software.

A message that you sent could not be delivered to one or more of its recipients. This is a permanent error: The following address(es) failed:

engagements@ndiscommission.gov.au

host mailvl.fahcsia.gov.au [203.217.150.31]

SMTP error from remote mail server after RCPT

TO: <engagements@ndiscommission.gov.au>:

550 #5.1.0 Address rejected.

Reporting-MTA: dns; cp-kil-m-014.micron21.com

Action: failed

Final-Recipient: rfc822; engagements@ndiscommission.gov.au

Status: 5.0.0

Remote-MTA: dns; mailvl.fahcsia.gov.au

Diagnostic-Code: smtp; 550 #5.1.0 Address rejected.

Return-path: <rich@richmclean.com.au>

Received: from [103.76.164.30] (port=4105 helo=smtplibclient.apple)

by cp-kil-m-014.micron21.com with esmtpsa (TLS1.2) tls

TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384

(Exim 4.94.2)

(envelope-from <rich@richmclean.com.au>)

id 1InfZq-002ChZ-6i; Mon, 31 May 2021 20:55:22 +1000

From: Dr Rich Mclean <rich@richmclean.com.au>

Content-Type: multipart/signed;

boundary="Apple-Mail=_BB01CDBB-5450-432B-B8DA-7DDFE515B6F8";

protocol="application/pkcs7-signature";
micalg=sha-256
Mime-Version: 1.0 (Mac OS X Mail 14.0 (3654.100.0.2.22))
Subject: Are you the NDIA? THIS IS URGENT PLEASE RESPOND!
Message-Id: <B57DCC4E-258A-4BB2-95CD-A18153931BFB@richmclean.com.au>
Date: Mon, 31 May 2021 20:55:19 +1000
Cc: Rich McLean <richarddrawsstuff@gmail.com>
To: engagements@ndiscommission.gov.au,
"Ndia. Review" <ndia.review@ndis.gov.au>
X-Mailer: Apple Mail (2.3654.100.0.2.22)
X-Micron21-MailScanner-Information: Please contact the ISP for more information
X-Micron21-MailScanner-ID: 1InfZq-002ChZ-6i
X-Micron21-MailScanner: Found to be clean
X-Micron21-MailScanner-SpamCheck:
X-Micron21-MailScanner-From: rich@richmclean.com.au
X-Spam-Status: No
X-Exim-DSN-Information: Due to administrative limits only headers are returned

NDIA email

This is an automated response to acknowledge receipt of your email.

Thank-you for contacting the National Review Team. We will respond to your query as soon as possible.

The National Reviews Team manage Plan Review Requests under s48(1) of the NDIS Act.

For Internal Reviews under s100 of the NDIS Act (review of a reviewable decision) please email Enquiries@ndis.gov.au.

For general enquiries on Approved Plan Reviews please email Enquiries@ndis.gov.au.

For Feedback and Complaints please email feedback@ndis.gov.au .

If you require further clarification on NDIA processes please contact us on 1800 800 110 or visit our website www.ndis.gov.au.

If you require crisis support, please contact your local GP, hospital, or mental health crisis team. Alternatively you can contact Lifeline on 13 11 14.

Kind regards

National Reviews Team

National Disability Insurance Agency

Phone 1800 800 110

Email: NDIA.Review@ndis.gov.au

** IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

**

2 June 2021 in fear of my life ombudsman

***Highly confidential emailed to other witnesses and myself as
evidence it has been sent***

Hi Michelle.

I have an appointment with Gabriella next Tuesday at midday.

Please treat this email as highly confidential bound by legal privilege and also that it is utterly necessary to be sighted and valued before my appointment next week.

thanks

I wanted to provide some important documents for here to review.

One is the official rejection letter.

Two is how to appeal

Third is my record of an incomplete application that was submitted to Comcare.

Fourth is confirmation that workcover guarantee I am with Slater and Gordon.

The last is some sound recordings I have made of speaking with Lara and Amy both of Comcare. (Actually I will provide this evidence later)

If it is for my legal privilege I have a right to record conversations as an exemption to the surveillance devices 1999 legislation.

In addition to that they know they were being recorded.

In the recordings, you can clearly sense my frustration and the process of them 'kicking the can down the road' because they know I have been maimed via a conspiracy as such, or an institutional, across the board decision to deny me justice and my reputation and any prosperity.

This is linked to a medical malpractice case in which there was a cover up.

It is additionally linked to the fact my millionaire former partner left me five years ago after I spent my nest egg on him - I have evidence he has committed tax fraud and serious crime - and he left me homeless and squatting with his dying dog.

His role was a project manager at ASIO where his boss was David Irvine (Australian Secret Service).

This is all related, is why I record evidence.

I have stated a whistleblower case, that is framed by the knowledge I have and that I am rejected by all local mid and national Government agencies - but already been rejected by:

- The Police
- IBAC
- The Victorian Inspectorate
- The Commonwealth Ombudsman

In this way the powers that protect those with money power and privilege and cover up their crimes have ultimate power here.

My emails have been hacked, I am homeless and squatting. I had nothing left to lose that to be a whistleblower and afforded protection.

The initial financial distress led me to flippantly threaten to 'top myself' (months in advance), if no one paid attention to my issues, I was not serious but I was distressed at becoming bereft of prosperity and my reputation ruined by this 'movement.'

No one did investigate, which is what I wanted to get justice. Slater and Gordon are complicit in not acting for me despite a very solid case(s) so I am rationally paranoid, you will act with the same methodology - reject me, or kick the can down the road deceptively to ruin me.

However my family incarcerated me - where I told my story. They tried to numb me up with drugs, because they thought I was psychotic. The discharge notes of the hospital state clearly however, I am neither delusional nor psychotic. They gave me a diagnosis of 'adjustment disorder', which is a rational and appropriate reaction to the stressors I have had for at least the last ten years, and the last five years battling.

Thinking 'the conspiracy' had won, I then tried to suicide. I was found with no observable pulse. I was going to die a human rights campaigner I felt so strongly about it. I thought better to die and the coroner record these crimes as real and be remembered as an ethical human rights campaigner and victimised by the system, which I knew would occur.

Now there is another cover up - Weribee Mercy health - the hospital I suicided at - had never acknowledged my complaint - which is a utterly clear breach of duty of care and malpractice that could have resulted in my death (I have the evidence and FOI's) - they will not get back to me. This is an additional legal case commit with the entire cover up and silencing of me and the victimisation of me.

A conspiracy to pervert the course of justice is a ten year plus jail term and there are many people who are the pawns of organisations and reflect their motives and ideologies to silence me.

The complaint at the hospital has been not only rejected by The health Complaints Commissioner - but was released to The mental health Complaints Commissioner. (It was also rejected by salter and gordon hence my rational paranoia you will additionally reject me here).

The MHCC received the response from the hospital - yet another double agent acting on behalf of the hospital - refused to send me the outcome. Her name is Ms Tinter. I have recordings of her too-admitrtying she is actually a lawyer, and that she utterly refused to send me the hospitals response (which was erroneous denies any wrongdoing and covers the whole thing up), until she had taken it past 'colleagues' - ie a group of litigation experts.

This is why they are complicit in this conspiracy to pervert the course of justice.

Now everyone is running scared as I am closing in.

So:

- Issue one of my workcover claim with NDIA is your issue, but it is framed by a wider conspiracy to pervery the course of justice.
- My whistleblower statement - which can be viewed at www.richmclean.com.au
- Has been ignored by every level of Government, rendering g me a non member of a democratic society.

I actually believe they will kill me - and I have evidence of that.

When you consider this case, beware I have bought up things with Slater and gordon before like the original malpractice cover up from Dr Whitaker in 2018 - and you and every other lawyer place rejected me.

If you do not have a sufficient or legislative reason why you will not intervene in the Comcare case, I will assume someone has 'tapped you on the shoulder' as has happened before, and that you are identifiable as a person accused of conspiring to pervert the course of justice.

I don't mean to threaten anyone - I am a nice person framed by an impossible and literally unbelievable situation.

Please review these files and the broader whistleblower statement at www.richmclean.com.au

If you are unable to intervene with

- 1) the Comcare workcover case framed by
- 2) all the evidence published and gridlocked - I will be surprised - but not if the powers that be maim you as another pawn in their plans to destroy me.

And in that way, you will be added to the list of complicit identities seeking to maim me in all ways.

I look forward to talking with you next week.

Regards,

Dr Rich McLean

2 June letter to family and friends sadly

Dear Brad, Dad, Mum, Maureen, Mat and Scott,

Another day of fighting for me.

I know I've sent some irrational text messages

I'm clear though

This is not a joke

Please have a look on the website

I'm still alive and kicking

Despite a second suicide attempt

A movement to victimise members and pervert the course of justice

And rejection of my medication

After my suicide in hospital in which I would have died a human rights hero...they should have seen to me immediately (the local mental health care team), salt water clinic in Footscray

Instead, they went over my chemist my doctor and reduced my medication forcing me to be stressed

Tonight, I don't have a cent, and I don't have medication

It took over three MONTHS for me to consult a psychiatrist after my suicide attempt in hospital

In there they maliciously devalued me, stopped my usual meds and the police victimised me

I have ALL the evidence and my FOI from the hospital says I was found unresponsive, with little blood and no observable pulse

The clinic which is an extension of the hospital are in the movement to maim me in all currencies, money, help, medical assistance etc

It's shameful victimisation

One thing is certain-the hospital discharge notes say I am neither delusional nor psychotic

That reconfirmed what I already knew

My computer is hacked so...

The last things I have ate the dog a ben a compromised computer and a car being repossessed

But if family does not pay my rent anymore I will either have to protest they can't kick me out in the time of COVID

Or otherwise live in my car-or become a vagrant

I am intelligent and I am 100% aware of what is occurring

Please indulge my whistleblower statement at www.richmclean.com.au

I am now officially a refugee in my own country

I've done nothing wrong except be grief stricken for a dear friend killing him self,
and the prejudice and discrimination that is so so easy for people to buy into

I wanted to state this to you all

Because they will stop at nothing

Neither will I

I have a week on internet left and then I'll have no phone either

I'm all alone and I miss my old self-before I made a stand

Please take this email to the police and ask them why a Dr of philosophy has no
right to complain to authorities-anywhere in this land

It is death by 100000 stonings

I am not going to kill myself

But my lord-they are trying to enable that in every way

Family I know I'm difficult but you had better start believing and investing

Otherwise-one of two things happen

- 1) you pay my rent
- 2) I'm a vagrant

This is my email to yet the millionth lawyer I know will let me down

I hope this spells things out more clearly

Love

Rich

10 June Commonwealth Ombudsman

Dear ombudsman, (whom it may concern)

I write today in regards to my complaint (receipt above) and my many issues lodged at www.richmclean.com.au which you have noted

I need to know if my whistleblower status is accepted and I'm place immediately or it requires an official investigation

Please bear in mind :

I am under threat!

I fear my safety and I cannot go to the police-I already have and they are completely complicit in my maiming in financial litigation reporting crime and all other ways in order to silence me

So are state ombudsman's

So are politicians

So is Centrelink who deny me a pension to this day from 2019 - I have been hospitalised, a diagnosis list as long as my arm, and suicided twice-there is no reason to delay this

On jobseeker i receive \$375 a week.

My rent is \$420 a week

They have rejected my DSP since January

In addition

Comcare has rejected my workers comp claim with zero evidence but I have evidence of a cover up there too please see the document

The evidence for this is but a snippet of much evidence that is undeniably real on my website you have acknowledged

They will stop at nothing to kill me

IF I am paranoid-I clearly need help

IF I am completely not delusional which was confirmed re: my recent hospital stay and suicide-then I still need help

To acknowledge my complaint you will have to download the PDF (which I will know about).

So:

1) am I given whistleblower protections yet?

2) the document had been updated at www.richmclean.com.au a few days ago-for you to download-I will be aware when you download it

3) I am aware this will cross state ombudsman's as well-yet I already have evidence they rejected me in every instance

4) that means IF the commonwealth ombudsman does not intervene in this disgraceful shaming and victimisation of a scholar who spent most of his life helping others...

5) I am an official refugee in my own country who had been denied his human rights and his freedom as a democratic citizen to bring justice to light and the privilege of a citizen to bring corruption before the law

Please treat this as incredibly urgent.

Because they have won and I am homeless

The plan is to discredit and deny any privilege through any institution across all sectors to maim me financially politically mental health wise with a roof over my head and make any suicide attempt look like "my illness"

I remain highly at risk, and request you intervene immediately

I will call this afternoon

Regards

Dr rich mclean

On 11 May 2021, at 10:56 am, ombudsman@ombudsman.gov.au wrote:
Dear Dr McLean

We have received your complaint | 2021-704235

Thank you for your complaint about National Disability Insurance Agency. We have registered your complaint. Your complaint reference number is **2021-704235**.

<Mail Attachment.png>

The next step is for us to make an assessment of the issues that you have raised and to consider how we can best resolve your complaint. We try to do this within 5 to 10 business days. Sometimes it can take longer when we are busy. If that happens, we will let you know.

If you would like more information about our Office and how we do our work, see the brochure on our website: [**How We Can Help You**](#). This may be helpful for you, especially if you are making contact with us for the first time.

If you have any new information about your complaint including documents, or your issue is resolved and you wish to withdraw your complaint, you can let us know by replying to this email. Any emails you send with the reference number above will be attached to your complaint and reviewed by a Complaints Resolution Officer.

If you need to speak to us urgently, you can call us on 1300 362 072 between 10:30AM and 3:00PM AEDT.

Yours sincerely

Complaints Resolution Team
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

[<Mail Attachment.png>](#) *Influencing systemic improvement in public administration*

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

COMMONWEALTH OMBUDSMAN - IMPORTANT CONFIDENTIALITY NOTICE

This e-mail message or an attachment to it is confidential, and it is intended to be accessed only by the person or entity to which it is addressed.

No use, copying or disclosure (including by further transmission) of this message, an attachment or the content of either is permitted and any use, copying or disclosure may be subject to legal sanctions. This message may contain information which is:

- * about an identifiable individual;
- * subject to client legal privilege or other privilege; or
- * subject to a statutory or other requirement of confidentiality.

If you have received this message in error, please call 1 300 362 072 to inform the sender so that future errors can be avoided.

17 June Slater and Gordon

Michelle, and Gabrielle,

Can you please forward this URGENTLY too Gabrielle?

Commcare are making a determination on my workcover claim - without me seeing a lawyer which is utterly unfair.

See this email:

OFFICIAL

Dear Dr McLean

Thank you for your email of 31 May 2021 in response to my email acknowledging receipt of your reconsideration request in relation the determination of 26 May 2021.

As indicated in the determination letter dated 26 May 2021 if you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it. In your email of 27 May 2021 you requested an appeal, this was considered a request for reconsideration.

My role in this process is to complete your reconsideration, which is an internal review of a determination which is carried out by a reconsiderations officer who was not involved in making the primary determination.

It is not a court process, it is a second look at the information and evidence on the claim to ensure the correct determination was made.

I expect to complete my review and issue a reviewable decision explaining my findings early next week.

If required further information is available at <https://www.comcare.gov.au/claims/disagree-determination/reconsideration>.

Kind Regards

Bernadette White

Assistant Director

Reconsiderations and Appeals

Claims Management Group | Comcare

I need representation of a no-win no fee lawyer.

You need to urgently fill out this form if you take on this case:



Australian Government

Comcare

RECONSIDERATION REQUEST

Who is making the request for reconsideration?

☐ Employee ☐ Employer Claim number

How would you like the reconsiderations team to contact you? ☐ Post ☐ Phone ☐ Email ☐ Fax

EMPLOYEE DETAILS

Name Date of birth

Are you represented by a lawyer or another person for the reconsideration? ☐ Yes ☐ No

If yes, who?

WHAT DETERMINATION DO YOU WANT REVIEWED

Date of determination / /

- ☐ Acceptance of a claim
☐ Rejection of a claim
☐ Permanent impairment assessment
☐ Medical treatment determination
☐ Incapacity determination
☐ Other—please specify details below

REASON

- ☐ Insufficient investigation of the claim
☐ Comcare did not consider relevant information
☐ I did not have the opportunity to respond to adverse information
☐ I have new information to provide at review
☐ Other—please specify details below

 You need to provide reasons for requesting a reconsideration which means you need to explain why you think Comcare's decision should be changed. Please attach written reasons for your request to this form.

 You should also attach any supporting evidence. As the requesting party, you will have limited opportunity to submit further evidence.

Please send the completed form and attachments to:

reconsiderations.team@comcare.gov.au; or

GPO Box 9905 Canberra ACT 2600; or

fax: 1300 196 971

Signature

Date

/ /

PRIVACY INFORMATION

Your privacy is important to us. For information about how we handle your personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

In addition I ask you to reconsider this evidence I have rebutted:

In addition to THAT there is a conspiracy that has its genesis in my former partner who is protected by ASIO as he worked there as a project manager.

I have requested whistleblower status for the many crimes and conspiracy to pervert the course of justice.

I cannot even report these crimes to the police.

This is appealing.

I need you to act firm, and not be held captive by the powers that be.

This TPD from Comcare is worth a damn lot of money.

I can easily prove I am insane.

I have a diagnosis of schizophrenia bi polar add panic disorder personality disorder and adjustment disorder and major depressive disorder plus generalised anxiety disorder.

I need you to confirm:

- 1) You will take this on and be my rep
- 2) you will act without prejudice or control by the powers that be on my behalf
- 3) You have acknowledged all of this material.

Please call me back URGENTLY otherwise they will take this through to a determination (which is in house).

I deserve workers compensation and TPD.

,

Please help me I am homeless

Rich McLean

Amy Delzoppo my claims manager suddenly leaves and sends an automated email (*This is after her emails disappeared off my computer!)

Dear Comcare

Lara Fleming has followed through with her juniors decision and denied my claim

In my world, which you may or not may know of, I am under the spell of a systemic corruption that maliciously aims to maim me in every way, health, prosperity, my tights, litigation and human rights

Comcare I believe is complicit in this

Regarding my rejection of my work over claim, I am appealing it

It's a sad indictment on the government and Comcare that all emails from you apart from generalised mail has all but disappeared off of my email client

This is because the movement seeking to maim me is deeply embedded in politics

I have been struggling for justice and my rights for over fifteen years now

It has become clear why in hindsight-and the onion layers extending out over the many years I have been victimised is telling in hindsight and unmissable

Henceforth I have made a whistleblower complaint

I have collected evidence over a few years now and what is clear is the interception of my emails from Amy and Lara that have mysteriously disappeared off my screen-as if you intentionally throw me off the scent of my valid work over claim

This has been documented a few times now in out communication

It is additionally crystal clear that the legislation that Comcare and if I have to identify them as pawns in a conspiracy to pervert the course of justice-Lara and Amy-rely on is utter rubbish

As you will know this time for me to gain litigation is futile because of the powers that be and my infamy in the legal arena

I won't give up and I will do it myself

Comcare are responsible for accurate and nice delivery of their emails, which don't auto delete or disappear off my server. A few times now I have recordings of both Amy and Lara kicking the can down the road, asking inappropriate questions of me, not understanding Tye legislation with an agenda to render me destitute-it has worked

However it's not the end of it

1) I will be appealing

2) I will find a no win no fee lawyer and I can easily acknowledge the holes in your argument

3) the evidence I have will be indisissable

4) I request Comcare to consult with Lara and Amy, and if you can't be trusted to send a secure email which has been documented by myself to them quite a few times-I expect the breadth of our conversations in email to be printed and posted to me at:

Rich mclean
2 McCubbin st
Footscray
Vic, 3011

I need all emails going back to the genesis of the false hope they both gave me in utter dishonesty, and they still wished me well after destroying me financially- because they are pawns paid by the system to deny people like me, and especially myself as a victim, to reject any valid compensation

If it is not forwarded to me I will get them from my FOi I have no dyed with Comcare

This will also have to include the systemic public private and record keeping of everything to do with me in person

This is because it will demonstrate the discrimination and victimisation and the malicious contempt for my person and I will be acknowledging it along with my ombudsman complaint who has already given me a guarantee the whole thing will be uncovered

Please:

- A) send me all this emails-either electronically or on paper to my address
- B) give me an update on the FOI
- C) clear directions about dates and the process to appeal the determination

I reserve the right as a whistleblower to be afforded the protections of freedom from litigation yet the option to name and shame those complicit in perverting the course of justice-which is a ten-fourteen year jail term and is an extremely serious crime

Regards

Rich McLean

Dr Rich McLean

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

OFFICIAL

I am currently out of the office. Please contact my colleagues at 1300 366 979 or via general.enquiries@comcare.gov.au (ensuring your claim number is in the subject)

Please note this email address will not be monitored

Thank you

NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

14 June _ I have asked friends and family to send an email on my behalf to the ombudsman in account of what I know is a movement to reject me from freedom a voice and my reputation and any prosperity ...it has worked)

14th June 2021

Karyn Lynn Bilney

Missk007@yahoo.com

Dear Commonwealth Ombudsman, (Via email),
(ombudsman@ombudsman.gov.au)

My name is Karyn Lynn Bilney, and I am a friend/professional colleague of Dr Rich McLean, and this issue has brought to my attention needs urgent action both as a whistleblower statement that deserves protection, and a Public Interest Disclosure in defence of human rights and opposing a conspiracy to pervert the course of justice that has destroyed him.

I am emailing today as an **official complaint** that needs a reference number to be acknowledged by the ombudsman and followed up to me -personally in support of Mr McLean. The powers that have ostracised and isolated him - and he has reached out to me personally in a desperate plight for me to help, and I support that.

He feels he needs to do this because he fears the Ombudsman will outright reject his complaints - and this would render him an individual in a democracy

that is unable to go to the police, submit a complaint or blow the whistle on crime(s) make him a neutered individual in his own democracy unable to complain, go to the police or draw attention to crime. This is a crucial human rights abuse.

He has been remarkably resilient in facing a silent, vicious and malicious attempt at denying him justice; the attack is systemic, prolonged, multi-faceted, and sounds like something from a James Bond Film. However, within this document, and at Mr Mclean's declaration on his website, lies the indisputable and indisputable evidence.

Mr McLean feels he can't fight it anymore, as he is homeless, and has sadly survived suicide twice now, once only fourteen weeks ago in Werribee mercy Hospital, which was again maliciously covered up no one has taken responsibility for.

The exit notes from the hospital claim my a psychiatrist he is neither psychotic nor delusional.

There is one of two possibilities:

- 1) If indeed he is psychotic and delusional - he needs desperate intervention in all holistic and financial ways.
- 2) If his evidence is conferred as he suggests - he still needs desperate intervention in holistic and financial ways.
- 3) He deserves whistleblower protections immediately, as a citizen of this country.

He fears without justice and without intervention – they will kill him, via the insipid violence of neglect. He insists he is not suicidal present. He claims to be an unwilling victim in an elaborate malicious movement to deny him power, prosperity, justice, freedom to litigation, and maim him financially politically and destroy human rights as a sentient personal of dignity who's only crime is pointing out what is criminal..

Rich has been in the past an award winning and publicly celebrated figure.

His book, 'Recovered, Not Cured, a journey through schizophrenia', (Allen and Unwin), won SANE's book of the year, and a Human Rights Award from the Human Rights and Equal Opportunity Commission. He is an artist, a musician, a scholar (Having completed his PhD in 2021), and a public advocate for human rights and holistic wellness for over 15 years. He spent the last two years running his own business as an artist-life coach for marginalised people on the NDIS and other sources, before he became unwell due to triggering issues relating to his three year fight with VOCAT regarding his own childhood sexual abuse, which again, was buried.

Rich has documented his troubles publicly and for the digestion and action of the Ombudsman at the following website:

<https://www.richmclean.com.au/whistleblower-statement>

I encourage the officials at the ombudsman to read and download the evidence in PDF form, his very diverse and undeniable evidence which he has now documented for years.

This needs urgent investigating because:

Rich cannot go to the police

A medical malpractice and professional negligence case has been silenced

He is denied healthcare as a person with a disability

Recently he has suicided in hospital, and there has been a cover up by the Werribee Mercy and The Mental health Complaints Commissioner to silence him and his justice and there is no crime in being sad and collectively assaulted.

The amount of agencies that have denied him any form of justice is confronting and concerning to be blunt and include, but nowhere limited to:

- HCC
- AHPRA
- The Australian Medical Review Board
- NHPOPC
- The Police, (Local and federal),
- IBAC
- The Australian Human Rights Commission
- The Victorian Inspectorate
- ComCare
- Centrelink
- Office of the Public Advocate
- Werribee Mercy Hospital
- The Mental Health Complaints Commissioner
- In addition, in his many years struggle he has not found one voice or advocate in litigation nor representation as a person with various disabilities despite his achievements.

Additionally people have ignored his please preferring the side of power money and privilege including:

- MP Greg Hunt
- MP Katie Hall
- CEO of Sane Jack Health
- CEO of the black dog institute Gordon Parker

Many others too numerous to name...

Richard has suffered and not been able to report to police nor get justice on the following issues:

- Medical malpractice and professional negligence,
- Coercive control and abuse by a former partner protected by ASIO,
- Rape,
- Childhood Sexual abuse (Covered up by a magistrate),
- A violent affray that left him hospitalised,
- Rejection of social justice and separation of assets and robbed of litigation in his separation,
- Survived not one but two suicide attempts whilst under duty of care,
- Maliciously rejection of urgent follow up after an incarceration in hospital which included a suicide attempt that left him traumatised victimised, rejected, and forgotten,
- He has been denied medication and rejected by his psychiatrist, and banned from medical clinics,
- Systemically blacklisted and gaslighted by organisations government agencies institutions and places of Governmental procedure,
- Robbed through a malicious conspiracy to pervert the course of justice of all prosperity, social agency and a voice - when he has screamed so loud...and in the past been the voice for tens of thousands of others.

He is a human being that deserved our protection and the commonwealths protection respect and justice, and the sustained malicious attack on him he has battled alone is very sad, upsetting - and pushed him over the edge, yet it is still happening.

To not act on this issue would be a devastating plight on the human rights of not just a sentient being, but one who has given so much to Australian society and to others.

This is urgent as the years long unfolding tragedy that has struck Mr McLean now sees him with three weeks accommodation left, and he reports of being hungry and cold and bereft of hope. This is what he believes the powers that be want; to make his death look like an accident so that his 'mental illness' can be blamed.

I will expect my reply with a number for investigation or details on how his application is going within ten days.

Sincerely,



Karyn Lynn Bilney

Sent from [Mail](#) for Windows 10



15 June sent to my NDIS Local Area Co-ordinator, I asked him to complain within his professional framing - but he denied to

For Hao

My NDIS client Dr Rich Mclean suicided in Werribee mercy public hospital less than sixteen weeks ago-it was not his first attempt. He was found with no blood left and no observable pulse.

He lived beyond this attempt: to be met with a more insipid violent and furious chorus of malicious determined victimisation to silence him and it is criminal hence this email that needs to be acknowledged

The FOI from the hospital documented it as a fatal attempt.

They unethically confiscated & stole his suicide note and said it was illegible-but the FOI-there is was highly legible : he died because he was victimised, and stood for human rights after battling on his own for years and years

The hospital outright refuse to acknowledge his complaint in calls or emails of literally killing himself under their duty of care in their institution with an agreed illegal contraband which at the very least deserves conciliation if not litigation: yet he has been silenced...again.

The hospital deny all contact with Mr McLean to this day.This near certain tragedy occurred less than sixteen weeks ago.

He was a decades long artist and human rights campaigner- and he deserved support. Right now-he needs it immediately.

He is homeless

He has no money

Denied his insurance

Denied his DSP

Denied work cover

His internet is intercepted

There is a systemic cover up to maim him financially and silence the crimes of those with power and privilege

Rich has been fighting fir years-not once has he had an advocate or lawyer

He has been denied insurance on another occasion

He has been rejected from the AHRC

He cannot report to the police-he has a recording of him trying to report rape, tax evasion, fraud, a conspiracy to pervert the course of justice, drug trafficking and he is aware that his former partner (who is protected by ASIO), was present at a murder

Richard has this recording made only weeks ago at Flemington police station. It is indisputable evidence that this is a sustained systemic conspiracy

Mr McLean made a complaint about his suicide at Werribee mercy hospital, with an agreed illegal contraband, which deserves at the extreme least a conciliation, or litigation, but the health complaints commissioner rejected him outright

The mental health complaints commissioner took over his complaint and he desperately searched for a way to be simply heard: but they outright refused to send him his outcome and response from mercy hospital, unless it went past a

body of lawyers first in biased towards the hospital-this is inequitable unjust and takes advantage of Rich's situation of being homeless and with no money

They requested it go before their lawyers, who he found out were double agents and biased in favour of the hospital - denying him a voice and illegally robbing him of justice.

Richard has proof and wants to draw it to the attention of federal authorities

Try as he did-this was unsuccessful

This is an outrageous and illegal injustice-to deny a suicide survivor, an extremely vulnerable individual - the opportunity for a voice or justice in any form via coercion conspiracy to pervert the course of justice.

Now the genie is out of the bottle.

The odds are stacked against Mr McLean who has lost his job as an NDIS therapeutic support worker-via being involuntarily incarcerated, lost all avenues of litigation and justice, lost his reputation, his home, denied a DSP, refused litigation, and zero acknowledgment from police or authorities

He reports of being hungry cold and squatting bereft of hope isolated and struggling to feed himself.

He is a nationally celebrated human rights awarded advocate who has for two decades-campaigned for a better life for marginalised people.

He has spoken publicly from Australian parliament all the tv and radio channels, from Warnambool, keynote speeches to thousands of people, to outback Dubbo and overseas at McGill University in Canada.

His family say they cannot support him anymore.

In addition to the suicide whilst under duty of care at the hospital : he contracted a strain of golden staph during his hospital stay. He was released unceremoniously from the hospital with no job no food no car and a simple phone number to call for support.

At least he was happy to be reunited with his beloved dog, Crystal, who had been on her own in Mr McLeans rental for nearly four days-the same amount of

time the denial of his medication he was on for over eight years-was refused to him in hospital, leading to the immense distress that saw him suicide.

The movement he claims to maim him in all ways solidified when his long standing psychiatrist dumped him upon admission - that robbed him of his ADHD medication that the same psychiatrist raved about in the vast improvement in Rich's life.

Rich has all this evidence he needs bought to light.

That miracle drug saw Mr Mclean complete a masters in Education, a PhD working with young people, and work both as an academic support worker, an art teacher for vulnerable people, and conceptualised constructed and ran independently his own business with zero training- for two years as a registered therapist for the NDIS, helping marginalised people.

He was released just over three months ago into the community under the "care" of salt water clinic in Footscray -who is auspiced under Werribee Mercy who further rejected his medication.

It took over three whole months for Rich to consult a psychiatrist in person face to face which is much more indicative than merely a terrible public mental health system: Rich believes it was a malicious and biased reaction because he stood up for himself re: the hospital, and that they waited and watched him become further distressed denying him medication that he already had a script for yet had ran out.

This is clear medical malpractice

The reason given was that it was "against policy" to provide this script, despite Rich's recordings that prove if you come i to the service with an ADHD diagnosis- the script is continued

Additionally when Rich told upon admission to hospital this "conspiracy" he was deemed psychotic and delusional. After his suicide attempt and when they discharged him, the exit notes by a seasoned psychiatrist report he is in no way was "psychotic" NOR "delusional" and this confirmed what Rich already knew about this movement to victimise and maim him.

They made Mr McLean- a human rights awarded advocate and public figure - wait for over three months and two days to even see a psychiatrist in the flesh which an inconceivable injustice reflecting the prejudice and victimisation Rich

claims is systemic and has seen him blacklisted from many agencies including across governmental departments

This movement is a malicious attempt to kick the can down the road that he may suicide by his own hand before an outcome of justice and compensation: it needs to be investigated immediately

For this human rights awarded public person is seen as a nuisance and Rich knows is less burden dead of his own hand - so the powers that be can blame his illness than for his rightful acknowledgment in all areas of his discrimination and heinous victimisation

Rich has all the evidence to prove this.

It is unfair inequitable unreasonable and utterly jaded for Mr McLean whom has spent the better half of his life advocating for others, nationally and internationally for a better life regarding mental illness, to be subjected to this systemic form of abuse and collective assault

He has had zero representation in litigation and zero support in any unbiased way with the many many people he has in vain attempted traction with

He has been marred and scapegoated by a systemic malicious cover up by agencies Individuals organisations and has solid indisputable evidence collected by himself over years of a nation wide systemic cover up to exclude him from justice and maim him financially politically and in all conceivable ways.

Now that he is close-he has evidence of his computer being hacked by federal agencies

He has tried to report this to police in person after his hospitalisation and with desperation after he tried to kill himself again -he recorded the interview- and they denied him any traction whatsoever.

If a citizen of a democratic country cannot report whistleblower crime to the police it is utterly proven the conspiracy exists

This whole "conspiracy" is further to his valid complaint about a GP for malpractice and incompetence which was silenced by AHPRA NHPOPC the police, IBAC, the Australian human rights commission, the Victorian inspectorate, mental health complaints commissioner, VCAT, and senior politicians including MP Greg Hunt MP Katie Hall Sane Australia CEO Jack Heath and many others.

It's simple - if the GP did nothing wrong he would welcome Rich's evidence and story to exonerate himself of all wrongdoing: yet this did not happen.

My complaint today though is relating to this original criminality re: his recent suicide in Werribee mercy hospital with an agreed banned contraband, his inability to lodge a complaint, the rejection from a biased mental health complaints commissioner- Rich's hard evidence that explicated this in an undeniable way- and the endemic cover up that followed. This includes him not even having agency to report to police.

Rich has a diagnosis of schizophrenia bi polar chronic anxiety major depressive disorder ADHD, some clusters of PD and adjustment disorder amongst other labels - some of which he does not agree with.

I demand unequivocally an unbiased and thorough review of Rich's entire evidence and his attempted suicide at Werribee Mercy public Hospital whilst incarcerated on an unjust intervention order: and the cover up that followed adding to the unthinkable malaise aimed at bringing harm to him.

In addition the events leading up to this must be investigated thoroughly as well.

This includes his 3.5 year childhood sexual abuse battle with VOCAT in which a disgraced magistrate told him he was "doomed to fail", that sent Rich into a tailspin.

I would like the investigation to include previous events and after his second suicide attempt- including the years long victimisation of him which he alone is and was impossible to oppose.

Currently he is unbelievably not even on a DSP even though he was on that support from 2003-1999-and was promised if he gave work a go he could return to it without an issue.

He applied to gratefully be gifted that benefit since January and was outright rejected at every turn which confirms his belief in the movement to maim him.

It includes the government

Upon entering the hospital he told this story of conspiracy- they robbed him of the essential medication that benefited him for over eight years and planned to dose him up with mind numbing anti psychotics.

This is criminal

Rich believes a conspiracy is explicitly apparent to deny him of justice prosperity and aid and abet in any form a process that will “kick the can down the road” with the goal being for him to suicide-ridding the establishment of someone with irrefutable evidence of a cover up - who is seen as a “nuisance” in the favour of money power and privilege

Rich's evidence is irrefutable

Despite Mr McLeans outstanding and passionate dedication to furthering human knowledge gaining a PhD and working for decades assisting those with less fortune and marginalised:

This movement has resulted in his homelessness as present and:

He desperately needs our help.

In advocacy

In litigation

To be heard

To be shown value

To be acknowledged as a person who has given so much, then crucified for it

He has lost a job he loves via being incarcerated helping others that he loved

He was denied his income protection Insurance claim

He was denied work cover (Comcare) as part of the cover up

He can't afford rent and is homeless

He lost his close allies and friends

His family no longer support him

He finds it hard to explain years of systemic assault-and is labelled “paranoid” despite his evidence

He lost his reputation and agency for fair litigation and anyone to help him

He claims to have been set up and has evidence in the form of letters rejections and phone recordings

He has lost friends for desperately trying to convince them this is happening to nil effect

He has been rejected his own child sexual abuse validation by a corrupt magistrate who was complicit in this outrage-indeed his lawyer did not even give him an official outcome

He has been set up and his emails interfered with and intercepted and deleted off his computer

His workplace rejected him

He has not a psychologist nor psychiatrist despite all his contacts because he had been blacklisted

Every lawyer he has contacted has rejected him - no matter if they were no win no fee-Rich feels the powers that be go over their heads

He believes if no one helps or acknowledges this systemic vile malicious movement and his silencing and utter rejection: the movement will ultimately seek to kill him via keeping the time clock ticking.

As a twice suicide survivor he is direly at risk from the "violence of neglect" should he become a vagrant at risk of dying

He has the evidence of everything I have stated.

The genie is out of the bottle:

He has published it as a whistleblower statement on his website - he deserves protection for what he knows as a democratic and free citizen of this country

I require an acknowledgment of this email urgently

Rich has amassed years of evidence in responses emails and recordings that render the in-fathomable shape of this almost unbelievable injustice

It is on his website in plain sight for you to download as a PDF and acknowledge

Regrettably and predictably-the powers that be have ignored his complaint!

Coping with life is hard, harder when you have an illness, harder again when you can prove, like Rich has-the insane wall of bureaucracy intelligently designed to oppress and kill him - it is beyond immoral - it is pure evil and beyond criminal

If he does die now-like before he will have died defending what was just and right, and if no action is taken by you today reading this:

you will be utterly complicit in witnessing and allowing it to happen and blood will be on your hands

If no action is taken today by you via alerting the ombudsman and the police - you will suffer in the regret of his potential absence and be complicit in his murder - I can't be more blunt.

Do not be on the wrong side of justice

Do not ignore this email

I request this letter be attended to without delay ASAP and I today I support as Rich does secular ethics human rights and oppose the injustice that has Mr McLean living not once but thrice in his "post death" guilty existence still shouting to the silence

Don't be that invalidating response.

Acknowledge this issue now and urgently.

Hao

Hao send this to ombudsman@ombudsman.gov.au

Immediately please

If you cannot I will need a reason

Do NOT be complicit in this cover up

Otherwise you are at risk of perverting the course of justice

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic
Supports Provider for the NDIS | Artist-Life-Coaching | Traditional
drawing / Digital illustrator / International Recovery Expert &
Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that
nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of
the land where we live, learn & work.

I'm out and about! This email is sent from my phone

15 June Ombudsman response

Hi Rosyln

I need to be succinct.

My whistleblower website works. I checked.

It has been sent to IBAC and the Federal Police and you on
01/06/2021

Crimes are:

Not being able to go to the police

A conspiracy to pervert the course of justice I can prove

A cover up regarding medical malpractice and professional negligence from a GP

That was covered up by:

AHPRA

NHPOPC

The Police

IBAC

Victoria Inspectorate

Australian Human Rights Commission

MP Greg Hunt

Many many more

Ask me for the evidence. I have it in droves.

Recently, I demanded justice, people thought I was crazy -so I was incarcerated against my will in Weribee mercy hospital.

Victimised by the police and manhandled

Incarcerated against my will - removed medication I had a script for ADHD and anti depressants leading to a suicide (at least my second attempt due to the systemic victimisation)

The hospital released me with no job no money no car and squatting - it took over three months for me to see a specialist - that is more than a bad health system, that was a malicious attempt to assist and enable me to die by my own hand rather than get justice. Additionally

I was rejected my life insurance

I was rejected workcover (Comsure) with NDIA
I have been rejected an advocate or litigation
I have been rejected by so many -
The health Complaints commissioner
The MHCC took on my complaint - however a double agent
stepped in Ms Alex Tinter - who was a lawyer acting on behalf
of the hospital I made a complaint to
I went to the police a few weeks ago to report all this PLUS
rape, tax evasion, coercion by a former partner, disability
discrimination, theft of a motor vehicle, tax fraud, and to
report my knowledge of my former partner being present at a
murder - but they did not listen to me. He used to work for
ASIO-David Irvine was his boss!

This is the genesis why I cannot get justice

He threatens me to this day

When he left me, he was a millionaire - he left me homeless
with his dying dog

No just family law legal separation was possible

I have been to the police to report all these crimes - it is unjust
I cannot make a statement

If I cannot go to the police and am framed from high above to
never gain justice,

despite dying twice and

being bereft of any prosperity
Any litigation
human rights protection
or justice of any sort -
which has resulted in my homelessness,
destitution
despite being a nationally recognised human rights
campaigner and recovery advocate...with a decorated history
human rights award and spoken publicly everywhere:

It is a huge set up.

**This is why I need whistleblower protection-I NEED IT
TODAY**

I have been framed

Lost my job

Humiliated

Lost my reputation

Denied all justice

Denied my old job

Been bankrupt

Had my life stolen

My will to fight any longer taken

The methods to complain destroyed

My agency as a free citizen ruined

The ombudsman simply must ACT NOW when a citizen of this country cannot report RAPE or MURDER to the police.

WILL YOU GIVE ME WHISTLEBLOWER PROTECTIONS?

It is utterly unjust to be removed from society after being deemed unfit - and then because you are victimised to much - kill yourself with an agreed illegal contraband and released to next to zero care whilst they watch you become unwell due to zero medication and zero medical care - maliciously - with an intention to see **you die**.

I have been an unwitting victim in a conspiracy to maim me in all ways - ask me I have the evidence.

Please ask me

Ps my website works.

If you do not afford me whistleblower protection today: THEY
WILL KILL ME WITH THE VIOLENCE OF NEGLECT

I bet the agencies are foaming at the a%\$# knowing that, if
you are complicit.

I await your urgent response.

Dr Rich Mclean

On 15 Jun 2021, at 10:52 am, ombudsman@ombudsman.gov.au wrote:
Our ref: 2021-705589

Dear Dr McLean

I refer to the complaint that you submitted to our Office on 11 June 2021. Your
complaint has been allocated to me for further assessment.

I have considered the information you provided to our Office. I require additional
information in order to assess your complaint:

1. When you submitted your complaint you raised concerns about several agencies, including AHPRA, AFCA, IBAC, the Victorian Inspectorate and the Human Rights Commission. Please identify which government agency your complaint relates to and summarise your complaint to our Office.
2. You indicated that you had additional information included on a website, however we are unable to access this website. Please summarise what your concerns are or provide a copy of this statement to our Office so that we can further assess your complaint.

Please respond to the above questions before 22 June 2021. If I haven't heard from you by this date I will assess your complaint with the information I already have. If I decide to close your complaint, we will keep the information you provided in case you need to contact us again in the future.

If you have any questions or would like to discuss this email at all, you can contact me by replying to this email. You may also contact our Office on 1300 362 072 between 10:30 and 3:00pm AEST.

Yours sincerely

Roslyn
Investigation Officer
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

Influencing systemic improvement in public administration

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

COMMONWEALTH OMBUDSMAN - IMPORTANT CONFIDENTIALITY
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If you have received this message in error, please call 1300 362 072 to inform the sender so that future errors can be avoided.

15 June I must be mad

Dear Roslyn,

Thanks for your acknowledgement of my complaint. This is a long email, **I demand whistleblower protection now please.**

Here is a summary I have sent my NDIS co-ordinator, Hao - to send to you - in order to get traction. He denied doing it.

I wish to say that I have checked - my website is up and running. If not I have attached the text minus the evidence below.

I am well aware that Government agencies kick the can down the road, so to speak - to result in my further suffering.

Please read this to help explain:

Letter written today :

15.07.2021

My NDIS client Dr Rich Mclean suicided in Werribee mercy public hospital less than sixteen weeks ago-it was not his first attempt having complained of being suicidal and rejected by Dr John Whitaker of Millenium Medical centre, and given the

fatal dose to overdose on. (That case was the centre of a conspiratorial cover up).

At Werribee mercy Hospital though - was found with no blood left and no observable pulse.

He lived beyond this attempt: to be met with a more insipid violent and furious chorus of malicious determined victimisation to silence him and it is criminal hence this email that needs to be acknowledged

The FOI from the hospital documented it as a fatal attempt.

They unethically confiscated & stole his suicide note (so personal to him), and said it was' illegible
-but the FOI-there is was highly legible : they had confiscated it to remove evidence ce.

He died because he was victimised, and stood for human rights after battling on his own for years and years

The hospital outright refuse to acknowledge his complaint in calls or emails of literally killing himself under their duty of care in their institution with an agreed illegal contraband which at the very least deserves conciliation if not litigation: yet he has been silenced...again.

The hospital deny all contact with Mr McLean to this day. This is criminal. This near certain tragedy occurred less than sixteen weeks ago.

He is a decades long artist and human rights campaigner- and he deserves support. Right now-he needs it immediately.

- He is unwell
- He is homeless
- He has no money
- Denied his private health insurance
- Denied his DSP from Centrelink despite being diagnosed with: (schizophrenia., bi-polar disorder, Adjustment disorder, ADHD, aspects of PD, generalised anxiety disorder, chronic depression, panic disorder and others).
- Denied work cover from ComCare re: his work being paid through the NDIA
- His internet is intercepted and he has only a few days of connection left before he is finally electronically ostracised
- There is a systemic cover up to maim him financially and silence the crimes of those with power and privilege (See below)
- Rich has been fighting for years-not once has he had an advocate or lawyer in all the injustice that has occurred
- He has been denied insurance on another occasion and rejected ted by the AHRC
- He cannot report to the police-he has a recording of him trying to report rape, tax evasion, fraud, a conspiracy to pervert the course of justice, drug trafficking and he is aware that his former partner (who is protected by ASIO), was present at a murder, and this frames why he has been scapegoated.

Richard has this recording with the police made only weeks ago at Flemington police station. It is indisputable evidence that this is a sustained systemic conspiracy

Mr McLean made a complaint about his suicide at Werribee mercy hospital, with an agreed illegal contraband, which deserves at the extreme least a conciliation, or litigation, but the health complaints commissioner rejected him outright

The mental health complaints commissioner took over his complaint and he desperately searched for a way to be simply heard: but they outright refused to send him his outcome and response from mercy hospital, unless it went past a body of lawyers first in biased towards the hospital-this is inequitable unjust and takes advantage of Rich's situation of being homeless and with no money

They requested it go before their lawyers, who he found out were double agents and biased in favour of the hospital - denying him a voice and illegally robbing him of justice.

Richard has proof and wants to draw it to the attention of federal authorities

Try as he did-this was unsuccessful

This is an outrageous and illegal injustice-to deny a suicide survivor, an extremely vulnerable individual - the opportunity for a voice or justice in any form via coercion conspiracy to pervert the course of justice.

Now the genie is out of the bottle.

The odds are stacked against Mr McLean who has lost his job as an NDiS therapeutic support worker-via being victimised and involuntarily incarcerated, lost all avenues of litigation and justice, lost his reputation, his home, outrageously denied a DSP, refused any litigation, and zero acknowledgment from police or authorities - and any authority that does intervene - either 'takes time' (ie kicking the can down the road), or asks specific information so nuanced that it takes time - a thing Rich downs not have. (I am speaking to you Ombudsman).

I need whistleblower protection as of TODAY

He reports of being hungry cold and squatting bereft of hope isolated and struggling to feed himself.

He is a nationally celebrated human rights awarded advocate who has for two decades-campaigned for a better life for marginalised people.

He has spoken publicly from Australian parliament all the tv and radio channels, from Warnambool, keynote speeches to thousands of people, to outback Dubbo and overseas at McGill University in Canada.

His family say they cannot support him anymore.

In addition to the suicide whilst under duty of care at the hospital : he contracted a strain of golden staph during his hospital stay. He was released unceremoniously from the

hospital with no job no food no car and a simple phone number to call for support- this is not support, it is malicious abuse and leaving him on his own to fend for himself.

At least he was happy to be reunited with his beloved dog, Crystal, who had been on her own - unethically in Mr McLeans rental property for nearly four days-the same amount of time the deliberate denial of his medication by hospital psychiatrists he was on for over eight years-was refused to him in hospital, leading to the immense distress that saw him vigorously attempt suicide.

The movement he claims to maim him in all ways solidified when his long standing psychiatrist dumped him upon admission - that robbed him of his ADHD medication that the same psychiatrist raved about in the vast improvement in Rich's life.

Rich has all this evidence he needs bought to light.

That miracle drug saw Mr Mclean complete a masters in Education, a PhD working with young people, and work both as an academic support worker, an art teacher for vulnerable people, and conceptualised constructed and ran independently his own business with zero training- for two years as a registered therapist for the NDIS, helping marginalised people, such is his honourable intentions of giving back to society.

He was released just over three months ago into the community under the "care" of salt water clinic in Footscray

-who is auspiced under Werribee Mercy who further rejected his medication. Rich believes they were prejudiced towards him because he threatened to sue the Hospital the clinic was auspiced by.

It took over three whole months for Rich to consult a psychiatrist in person face to face which is clearly indicative of more than merely a terrible public mental health system: Rich believes it was a malicious and biased reaction because he stood up for himself re: the hospital, and that they waited and watched him become further distressed denying him medication that he already had a script for yet had ran out.

This is clear medical malpractice - they watched him come undone, as if baying for his blood.

The reason given was that it was "against policy" to provide this script, despite Rich's recordings that prove if you come in to the service with an ADHD diagnosis-the script is continued.

Additionally when Rich told upon admission to hospital this "conspiracy " he was deemed psychotic and delusional. After his suicide attempt and when they discharged him after over two weeks, the exit notes by a seasoned psychiatrist report he is in no way "psychotic" NOR "delusional" and this confirmed what Rich already knew about this movement to victimise and maim him was true and correct.

They made Mr McLean- a human rights awarded advocate and public figure - wait for over three months and two days to even see a psychiatrist in the flesh which is inconceivable

injustice reflecting the prejudice and victimisation Rich claims is systemic and has seen him blacklisted from many agencies including across governmental departments

This movement is a malicious attempt to kick the can down the road that he may suicide by his own hand before an outcome of justice and compensation: it needs to be investigated immediately

For this human rights awarded public person is seen as a nuisance - simply because he made a complaint - and Rich knows he is seen as less of a burden dead of his own hand - so the powers that be can blame his illness than for his rightful acknowledgment in all areas of his discrimination and heinous victimisation - than for him to gain justice for all the ills projected onto him.

Rich has all the evidence to prove this.

It is unfair inequitable unreasonable and utterly jaded for Mr McLean whom has spent the better half of his life advocating for others, nationally and internationally for a better life regarding mental illness, to be subjected to this systemic form of abuse and collective assault

He has had zero representation in litigation and zero support in any unbiased way with the many many people he has in vain attempted traction with

He has been marred and scapegoated by a systemic malicious cover up by agencies Individuals organisations and

has solid indisputable evidence collected by himself over years of a nation wide systemic cover up to exclude him from justice and maim him financially politically and in all conceivable ways.

Now that he is close-he has evidence of his computer being hacked by federal agencies

He has tried to report this to police in person after his hospitalisation and with desperation after he tried to kill himself again -he recorded the interview- and they denied him any traction whatsoever.

If a citizen of a democratic country cannot report whistleblower crime to the police it is utterly proven the conspiracy exists and he is in dire need of whistleblower protection

This whole "conspiracy " is further to his valid complaint 2018 about a GP for medical malpractice and professional incompetence which was silenced by :

- AHPRA
- NHPOPC
- The police,
- IBAC,
- The Australian human rights commission,
- The Victorian inspectorate,
- Mental health complaints commissioner,
- VCAT, and senior politicians including
- MP Greg Hunt

- MP Katie Hall and
- Sane Australia CEO Jack Heath and many many others.

It's simple - if the GP did nothing wrong he would welcome Rich's evidence and story to exonerate himself of all wrongdoing: yet this did not happen: a concerted cover up happened that was unbalanced, uneven, inequitable, and used brutal legal forces that Rich was simply ill equipped to deal with. This concerted conspiracy led Rich to beg for help publicly - the GP (who had no AHPRA registration nor ABN at the time), was fired, and Rich was banned from not one, but two medical practices. This is pure victimisation.

My complaint today though is relating to this original criminality re: his recent suicide in Werribee mercy hospital with an agreed banned contraband, his inability to lodge a complaint, the rejection from a biased mental health complaints commissioner- Rich's hard evidence that explicated this in an undeniable way- and the endemic cover up that followed. This includes him not even having agency to report to police-in itself a crime.

Rich has a diagnosis of schizophrenia bi polar chronic anxiety major depressive disorder ADHD, some clusters of PD and adjustment disorder amongst other labels - some of which he does not agree with. Remarkably yet unsurprising to Rich is his rejection from a disability pension, something he was grateful for from 2003-2019.

I demand unequivocally an unbiased and thorough review of Rich's entire evidence and his attempted suicide at Werribee

Mercy public Hospital whilst incarcerated on an unjust intervention order: and the cover up that followed adding to the unthinkable malaise aimed at bringing harm to him.

In addition the events leading up to this must be investigated thoroughly as well.

This includes his 3.5 year childhood sexual abuse battle with VOCAT in which a disgraced magistrate told him he was "doomed to fail", that sent Rich into a tailspin with his work where he was triggered by clients who had sexual abuse experiences.

I would like the investigation to include previous events and after his second suicide attempt- including the years long victimisation of him which he alone is and was impossible to oppose.

Prior to his hospitalisation he tried in vain to report all this crime to police - and has recordings of that too- never being acknowledged.

Then upon entering the hospital he told this story of conspiracy - that had burdened Rich and his life of giving to others - they robbed him of the essential medication that benefited him for over eight years and the hospital planned to dose him up with mind numbing anti psychotics.

This is criminal

Rich believes a conspiracy is explicitly apparent to deny him of justice prosperity and aid and abet in any form a process that will "kick the can down the road" with the goal being for him to suicide-ridding the establishment of someone with irrefutable evidence rejections PDF's sound recordings and thousands of emails - of an undeniable cover up - who is seen as a "nuisance" in the eyes of the Government and they bade his death, in the favour of money power and privilege - rather than him get justice.

Rich's evidence is irrefutable and he needs whistleblower protection immediately

Despite Mr McLeans outstanding and passionate dedication to furthering human knowledge gaining a PhD and working for decades assisting those with less fortune and marginalised:

This movement has resulted in his homelessness as present and: he desperately needs our help and whistleblower protection as a member of a democratic society.

- In advocacy
- In litigation
- To be heard
- To be shown value
- To be acknowledged as a person who has given so much, then crucified for it
- To be protected from harm and violence
- To be afforded his basic needs met
- To be granted whistleblower rights and protection

- A place to stay, food and water, internet access free from being monitored

He has lost a job he loves via being incarcerated helping others that he loved because of this

He was denied his income protection Insurance claim because of this

He was denied work cover (Comcare) as part of the cover up denying him just compensation

He can't afford rent and is homeless

He lost his close allies and friends and has been:

Publicly humiliated gaslighted and rejected

His family no longer support him - how is Rich able to explain the depths of this crisis

He finds it hard to explain years of systemic assault-and is labelled "paranoid" despite his evidence and the hospital report confirming this 'conspiracy' is in fact - real

He lost his reputation and agency for fair litigation and anyone to help him

He suffered at the hands of his former criminal partner who worked for ASIO and is protected by them - he suffered coercive control and spent his nest egg from a payout on the

relation ship - whilst his oppressor earned 350K a year- then was denied family litigation for rightful separation of assets

He claims to have been set up and has evidence in the form of letters rejections and phone recordings from dozens of organisations and people and agencies

He has lost friends for desperately trying to convince them this is happening to nil effect

He has been rejected his own child sexual abuse validation by a corrupt magistrate who was complicit in this outrage-indeed his lawyer did not even give him an official outcome and the magistrate - after three and a half years - wrote to Rich after he begged for a rtesponse and she wrote he quote 'was doomed to fail from the start.'

He has been set up and his emails interfered with and intercepted and deleted off his computer - he has days worth of internet left - after that he will be officially unconnected to any form of justice or protection

He has not a psychologist nor psychiatrist despite all his contacts because he had been blacklisted and everyone refuses to see him

Every lawyer he has contacted has rejected him - no matter if they were no win no fee-Rich feels the powers that be go over their heads

He believes if no one helps or acknowledges this systemic vile malicious movement and his silencing and utter rejection: the movement will ultimately seek to kill him via keeping the time clock ticking and place him at intolerable vulnerable risk.

As a twice suicide survivor he is direly at risk from the "violence of neglect" should he become a vagrant at risk of dying

He has the evidence of everything in this letter.

The genie is out of the bottle:

He has published it as a whistleblower statement on his website - he deserves protection for what he knows as a democratic and free citizen of this country

It is viewable at www.richmclean.com.au

I require an acknowledgment of this email urgently and Rich deserves an ombudsman response urgently

Rich has amassed years of evidence in responses emails and recordings that render the in-fathomable shape of this almost unbelievable injustice

It is on his website in plain sight for you to download as a PDF and acknowledge - contrary to what authorities say the website has been checked and is viewable right now

Regrettably and predictably-the powers that be have ignored his complaint!

Coping with life is hard, harder when you have an illness, harder again when you can prove, like Rich has-the insane wall of bureaucracy intelligently designed to oppress and kill him - it is beyond immoral - it is pure evil and beyond criminal

If he does die now-like before he will have died defending what was just and right, and if no action is taken by you today reading this:

you will be utterly complicit in witnessing and allowing it to happen and blood will be on your hands

If no action is taken today by you via alerting the ombudsman and the police - you will suffer in the regret of his potential absence and be complicit in his murder - I can't be more blunt.

Do not be on the wrong side of justice

Do not ignore this email

Do not say his website does not work when it absolutely does

I request this letter be attended to without delay ASAP and I today I support as Rich does secular ethics human rights and oppose the injustice that has Mr McLean living not once but

thrice in his "post death" guilty existence still shouting to the silence

Don't be that invalidating response.

Acknowledge this issue now and urgently.

That was written by me in my NDIS workers'voice' but goes to explain what has happened.THE WEBSITE IS VISIBLE

If not, I have been confused by this fight and offer to you the words from the website here in this word document.

(Wait - my computer is hijacked - I will have to paste it here - apologies for the long read)

Dr. Rich McLean is a Whistleblower,
He deserves to be validated by the
Federal Police and the National
Ombudsman and to be afforded
protection as a citizen of Australia. As
of 01/06/2021 I have been rejected,
rendering me a voiceless victim as a
'free' citizen within my own
democracy.

IBAC & Police & Ombudsman - I will know if you have assessed my issue(s) if you download the PDF containing the evidence at the bottom of this page.

Whistle-blower's statement and my PID: By Dr. Rich Mclean, 28/05/2021.

(To be continually Updated...)

I wish to say I am not suicidal.

So-don't call the CAT team.

Print this off and take it to your local police station and ask why it is I could not report all this to them or make a statement?

Need to know recordings: & summary

A recording that was taken not maliciously - but because I thought I was going insane - Dr. Whitaker formerly of Millenium Medical Clinic-that exposes medical malpractice and professional misconduct and neglect.

I was doing a PhD facing my own childhood sexual abuse I wrote about for my doctorate and spoke of at the state library, and published by The Good Men Project in 2017.

I was under the stress of a Ph.D. and utterly gutted and grief-stricken and bereaved by loss as my dear friend and confidant Nathan Turnley, who had taken his life.

I have lost too many people, and I have died not once but twice under a duty of care.

I explain a technique to kill myself, a plan and a method to the Dr, I am clearly distressed. He told me 'You're too clever you'll fall between the cracks,'...and that when I begged for a psychologist or psychiatrist, he said 'I don't know anyone.'

As if that were not bad enough, I had seen him for six years, and my FOI states frequent suicidality; in the same session, he gave me a fatal dose of opioids I requested, which I then a few weeks later used to attempt suicide.

Trigger alert: Here is my suicide note as I lay dying that afternoon on 24th Sept 2018..

I ended up complaining to the Health Complaints Commissioner after I survived the suicide and was saddened when I found the angry note I wrote as I lay dying, that I overdosed on medication (opiates) he gave me in the exact same session.

I tried to defend him begging for an apology or conciliation - evidence shows I did not want to harm him - yet my pleas were ignored.

I finally sent the complaint to AHPRA. They made me suffer for a whole year - then covered it up. EVIDENCE

So did NHPOPC the people that investigate AHPRA, EVIDENCE

So I went to the Police - they covered it up, EVIDENCE

So I went to who investigated the police IBAC. They covered it up as well. EVIDENCE

The Mental Health Complaints Commission said I would have a case, 'If you were dead but you're not!' No lawyer would touch it. THEY REJECTED IT

Also implicated are people and other organizations I desperately reached out to.

The CEO of SANE Australia Mr. Jack heath told me to leave it. EVIDENCE

The Victorian Ombudsman rejected it. EVIDENCE

The Mental health Complaints Commissioner rejected it. EVIDENCE

Someone called from 'The Police at Maribyrnong criminal investigations unit', and told me to forget it. SOUND RECORDING

I tried to call the Footscray police station again and again. EVIDENCE

I emailed Chris Roberts the constable who rejected my emails and calls - and I told him in an email he makes me 'feel less than death.' by not answering. EVIDENCE

I was furious about it to NHPOPC who were investigating AHPRA and they too waited and witnessed me - a suicide survivor - in so much distress for over a year before their determination - also rejected it. EVIDENCE

The independent Broad-based Anti Corruption Commission also saw 'nothing to see here.' and every one of them knew about this recording because I had shared it online with every news agency and media channel in the country. THEY REJECTED IT

It was common that an institution or person would handball it to the next person or place saying 'it is outside of our scope' and utilizing complex legal speak and references to legislation I did not understand.

During that time the battle wore my soul thin and I became suicidal. NHPOPC knew this but waited weeks before emailing me back telling me to see a GP and

LifeLines number. EVIDENCE. They told me there can be no FOI from there. EVIDENCE.

I learned 'the waiting game is a methodology many institutions and organizations employ, to 'kick the can down the road', observing as I grew more distressed coupled with multiple pains.

Waiting for me to die, and occasionally emboldening the opportunity for that by deception gaslighting, or giving me dangerous medication, or taking what medication worked away.

People of public office implicated in the cover-up included but not limited to:

The National Health Minister Greg Hunt, EVIDENCE

Labor MP Katie Hall who ironically told me to see a GP, EVIDENCE

Professor Gordon Parker, of the Blackdog institute, told me to 'see my GP' too, EVIDENCE

I spoke with beyond blue, it was pointless, EVIDENCE

I messaged greens senator Justin Steele but he was not interested although i thought he may resonate.

The suicide note mentions my childhood sexual abuse - that I became conscious of in psychology with Dr. MacKinnon. It was another cover-up that came later - and the suicide note is indicative of the shame and the effect the abuse had - especially not being believed - and that the doctors just wanted a quick buck, that my psychologist refused to see me because I was broke.

I would have died a bitter angry man that day. But alas and glad I didn't.

HERE IS THE COVERED-UP RECORDING FROM THAT FATEFUL DAY WITH DR WHITAKER. VERY SIMPLY IF HE DID NOTHING WRONG HE WOULD HAVE WELCOMED THE RECORDING TO EXONERATE HIMSELF.

I Got an FOI from AHPRA - I found out his lawyer Mr. Ball of Ball and Associates threatened to sue AHPRA if the recording - or my transcription of it which was allowed and suggested by AHPRA - was used. So-It wasn't.

EVIDENCE

Neither was the transcription - so my over-year-long battle was neutered and pointless - yet AHPRA still decided no punishment for the GP, not even mild mental health training.

It was so one-sided unequitable unbalanced uneven and unfair and favored him with money power and privilege-he had lawyers, AHPRA had lawyers - NHPOPC had a panel of lawyers - The Police had investigators who sided with him - so did IBAC-everyone had lawyers, I was used to advocating on my own, and I did it simultaneously studying a Ph.D. framed by the Anthropocene and 'The end of humanity', framed by 'Global Catastrophic Risks.', which was stressful enough.

MY PHD

I battled alone not wanting to distress anyone. In time though, the onion layers of who was covering it up became wider and wider, and I published the recording hoping for traction - yet it exposed the crime - they could not sue me - I had no money - they could not put me in jail for trying to kill myself either.

I have learned that the Victorian Legislation for surveillance devices has a clause and exemption (1999) which means if it is to do with your life or liberty or litigation for legal purposes; it is permissible to be heard by a court and not a crime to record.

The GP lost his job,
I am banned from the clinic,
He was not even registered as a practitioner or for GST at the time,

I was banned from contacting Millenium medical Centre or going in there,
The place that ran it said never to email them again.
My FOI from there was redacted and took months.
Even the next doctor, Dr. Cooper, banned me from the clinic, he practiced at after
stupidly prescribing me with 2 x boxes of high dose 'grade 1 'Endone' at a time;
then accusing me of needing D & A services to continue as a patient., essentially
managing me out.

EVIDENCE

I think 'the conspiracy', was hoping I would kill myself before I got justice. I didn't
- then abruptly the second GP-Dr Cooper from Yarraville Family Medical Center,
stopped the valium I had taken for ten years immediately, and forced me into
instant withdrawal from Endone for my injured back - broke confidentiality with
my psychiatrist, and banned me from the clinic via. a letter unless I went to drug
and alcohol rehab and demanded I apologize to the staff.

That's not caring, that's a malicious way to treat a person who had grief issues and
fresh from the shame I carried for a lifetime around sexual abuse - and many
complexities. Ask me for the evidence.

I have my FOI from Millenium Medical Centre - but it was censored and heavily
redacted-, it says I was suicidal for some time, so did my then psychiatrist - and also
my psychologist - I (my psychologist 'let me go' after I was savagely assaulted in an
affray in Footscray and VOCAT blamed me as 'The principal Agressor', which was
utterly incorrect).

the Dancing Dog Cafe had video footage of the incident, but it was rejected from
my Police FOI that would have exonerated me from blame and my pathetic result
from victims of Crime and The police.

It is not a crime to be sad...

But medical malpractice and professional negligence are - and that's what started
the cover-up, that was amplified by my identity being known in the public space as
someone who had a 'mental illness, and had, after being fired from being a news
graphics artist and Illustrator from 'The Age', in discrimination - was a profound
public speaker on mental health advocacy and holistic health for many years.

I tried in vain to report all this a few weeks ago at Flemington Police station, Melbourne, but they would not interview me.

This is the document I wanted to be read out by me and recorded/witnessed by a constable and his superior:

LINK TO THE DOCUMENT I SAID I WOULD READ ALOUD AND RECORD

Yet this is what happened when they found out who I was! LINK TO THE AUDIO OF THE CONSTABLE REJECTING ME

I could not complain - I could not go to the police - I could not go to the Victorian Inspectorate, The Human Rights Commission, The Victorian Ombudsman, anywhere...

I fought a million battles since then - and victimized just because I stuck up for myself.

I am blacklisted from AHPRA the police won't listen to me, (insert FORMER PARTNER Steve Iasonidis here-who was a worker at ASIO and I have knowledge of his crimes below), and my files have disappeared off my computer, I have been hacked, maimed, targeted, victimized, rejected, ostracised and forgotten.

I did not know it yet but my self-advocacy was going to get me framed.

Then after all these years - with me telling the police to investigate - I received my Ph.D. but I was framed for being 'paranoid and insane' - the 'conspiracy' locked me up because I happen to threaten suicide months and months in advance.; I was incarcerated at Werribee psychiatric Hospital,

Even though I RECORDED THE CAT TEAM AND POLICE NAT MY HOUSE EXPLAINING I AM NOT SUICIDAL. THEY DID NOT EVEN ALLOW ME TIME TO COLLECT SOME ESSENTIALS OR ORGANISE FOR MY BEAUTIFUL DOG TO BE CARED FOR; WAS QUIETLY INSIDE HAVING A CIDER!

I was incarcerated and they rejected all my medication and stripped me of my phone did not explain my rights, they took my shoelaces and my robbed me of

agency & dignity - they had won. The conspiracy had gaslighted me enough - that they had locked me in the loony bin. I was sad - not mad.

The complexity of how I fought alone with many many people and organizations all alone - well I was going to die a human rights campaigner if I was going to be locked up forever - I bled out on the shower floor for 45 mins after slitting my artery with a banned contraband (glass that was agreed was illegal), - they found me with no blood on the shower floor with the shower running - the FOI from The hospital states it was 'a fatal attempt' and that 'I had 'no observable pulse' when found - still I was interviewed by a panel of psychiatrists and legal people not 24 hours after my attempt.

Still, they fight me.

I made a complaint to the hospital HERE TO THE MENTAL HEALTH COMPLAINTS COMMISSIONER yet - they rejected sending the response to me, (before they got a bank of lawyers to look over it), so- where is MY lawyer? the MHCC are supposed to be impartial.

HERE THEY ARE REJECTING SENDING THE RESPONSE TO ME BY A LAWYER WHO HAD SUDDENLY STEPPED IN.

In the sustained malicious attack one - I wanted to do something - but it was so big - so I got high and made a verbal statement to two friends - yes I was high (because when I was released from the hospital I was squatting, had no food, no car, and no job anymore, and on JobSeeker as my DSP which I was on for years before the amazing DEXAMPHETAMINE TREATMENT MY PSYCHIATRIST RAVED ABOUT IN REGARDS TO ME was rejected. I felt the rush of hedonism and freedom - but my psychiatrist accused me ridiculously of fraud and knowing I needed the dex desperately to have a good life - abandoned me.

I was beaten again - I was so confused at the breadth of what I was facing and I asked two friends to witness me speaking - just so I could sum it all up in one go and get it off my chest.

(This is that statement that sums it up as of a couple of weeks ago),

Introduction

I am the unwitting center of an elaborate systemic and thorough conspiracy across all levels of government, institutions, legal forms, public organizations, and advocacy groups, and thousands of pawns by individuals in the veneer of many corrupt institutions – essentially protecting those with money power and privilege and utilizing prejudice discrimination and my lack of resources to frame me and exploit my vulnerabilities.

The ‘conspiracy’ is utilising discrimination public shaming, setting me up, and explicitly kicking the can down the road and delay tactics until I am left with nothing: bereft of prosperity and happiness and next to suicidal.

I have an utter lack of litigation support despite my supreme efforts to garner some and fight it all and these people who are many that I cannot fight any longer – are relying on the fact I am now homeless, being in debt, and suffer mental illness due to stress and utterly powerless-which has led to this statement today – simply there is absolutely nothing left to lose, and I have already ‘died’ twice.

Now in my sentience, and my post-death and post-death life; I have a reason to live.

Justice and acknowledgment, to have enough to simply live that I may live in peace and continue to help people.

My situation as of 28/05/2021:

- I am squatting – (Thanks to my brother for covering last two months rent),
- I have no home, no one to cry to,
- time is running out.

- I have already suicided twice and survived, once under GP Dr Whitaker formerly of Millennium medical centre, and once at Werribee Mercy public hospital after my incarceration,
 - Both have been covered up.
 - I have no agency to act with litigation,
 - and have struggled my whole life.
-
- I have been:
 - Publicly shamed,
 - Gaslighted,
 - Unacknowledged,
 - Rejected,
 - Conspired against,
 - Discriminated against,
 - Used,
 - Raped,
 - Had my issues silenced and covered up,
 - Refused litigation,
 - Lost my reputation,
 - Lost family and been rejected by most of them,
 - I have lost my job.
 - I am in debt and homeless if not for my brother,
 - Lost money and income,
 - Lost insurance and income assist and denied Workcover,
 - Denied a DSP,
 - Forced to bankruptcy,
 - Threatened personally and professionally by institutions, publicly and anonymously by known and unknown people,
 - Exonerated from my job via incarceration and being insolvent,
 - Shamed victimised and taken advantage of,
 - My reputation desecrated and the media framed me and ruined my reputation,
 - Been fired illegally and discriminated against, and it was covered up,
 - Refused to be acknowledged by legal services,
 - Refused by inpatient units, (When i did need it),
 - Refused to be able to make a statement to the police,
 - Subject to corruption at VCAT and refused my superannuation entitlements despite the evidence,
 - Professionally and publicly blacklisted,

All I have to act is sentience intelligence powerful knowledge and endless evidence

Otherwise, I own a computer a bed consciousness, and my beautiful dog.

The time is now.

This has been my life, and I have given so much in altruism with no reward but further marginalization.

I have been systemically and maliciously and intently ruined in social political legal and social and human rights ways – and blacklisted - – just for sticking up for myself – and this is victimisation.

- I wish to state I am not presently suicidal.
- I do not plan to kill myself.
- This is to avoid incarceration= which I know is planned as a methodology to silence this statement.

The methodologies of how this has been allowed to occur for the main issues of the cover-up and the conspiracy to maim destroy and ruin me in every way stem from and have their genesis in:

- I wrote a tell-all book on my experience of ‘my struggles’ and subject to public humiliation rejection stigma and persecution.
- I became involved in a five-year relationship which was a poisonous transaction with a narcissistic criminal who utilised coercive control to destroy me and threatens me to this day who worked for ASIO and is given protection for his tax fraud and i have knowledge he was present at more than one murder,
- I survived a suicide attempt through all the distress and the death of a dear friend – the person I was under the ‘care’ of was Dr. John Whitaker formerly of Millennium medical center. The whole thing started a sequence of events that is literally unbelievable, a sustained and malicious way of deleting evidence i had and covering up the recording to protect the doctor,

- So – in effect, I was framed and victimized, silenced, rejected, gaslighted, and blacklisted.
- Further, I was victimised by police and maimed because no one understood my private hell in which I was systemically and consistently marginalised for a period of over five years, ten if you count the stress of the poisonous relationship in which I was engaged to him.
- Further to gain traction for this injustice, which was impossible to comprehend, and I was victim-blamed via prejudice for ‘being paranoid’ and ‘not acting in my best interests for my mental health’, I threatened to kill myself months in advance.
- Instead of anyone acknowledging my concerns which is shameful, concerned people and my family institutionalized me. The police loved it, as I had been familiar with them, and they loved the idea of locking me up. I was treated without human dignity – and I thought the conspiracy had won – I was disturbed by my lack of medication they rejected me and stripped me of all identity.
- I was going to die a human rights campaigner and the coroner’s report would see I had been screaming for help for years – and my ‘conspiratorial’ and ‘paranoid’ ideas were utterly correct. So I killed myself. The FOI says It was ‘fatal’ and that I had no observable pulse after I bled out after cutting my artery open and bleeding out for about 45 minutes.
- I lodged a complaint, (so many), and again it was maliciously and systemically and prolonged gaslighting rejection and covered up; with full knowledge that I was becoming incredibly distressed.

I can’t fight forever nor alone.

So - What are the main drivers and methodologies of the ‘conspiracy’ exploits in me? And why?

- The reason is to protect those in power with more legal privilege than myself who has none.
- The conspiracy angles prejudice discrimination private and public shaming ostracization rejection neglecting and ignoring me and

gaslighting tactics to kick the can down the road until I am maliciously maimed and have no leg to stand on or a penny in my pocket.

- They rely on the fact I can get no legal help and am blacklisted from many organizations.
- ASIO knows who I am and what I know because my computer has been hacked and my communications intercepted.

The crimes I am reporting: (Or attempted to!)

1. Conspiracy to pervert the course of justice,
2. Tax evasion,
3. A cover-up by ASIO,
4. Disability discrimination,
5. Blacklisting my name with no legal precedent,
6. A movement to deny me justice and maim me in all ways – even to kill me then cover it up,
7. Medical malpractice by Dr. Whitaker and many at Werribee mercy hospital,
8. Professional negligence,
9. Rape,
10. More malpractice giving 2 x boxes of a-grade endone to a clearly suicidal patient
11. Doctor confidentiality broken

12. Being abandoned in duty of care by psychiatrists
13. Threatened to be fraudulent by an associate professor of psychiatry ending up in my ostracization knowing full well this would maim me,,
14. A relationship based on coercive control who discriminated against me in physical emotional and used me financially and set me up and also threatened hit men when I attempted legal and just separation of assets,
15. A cover-up from Monash Law,
16. Car theft and theft of other goods,
17. Intimidation including threats of death and standover tactics,
18. Being set up and kicking the can down the road – with matter-of-fact evidence I am again clearly suicidal, and in this way, they hoped I would kill myself and supplied the means,
19. Childhood sexual abuse,
20. A magistrate who was prejudiced,
21. lawyers that acted without mercy and refused to provide a legal outcome even though it had been heard by the magistrate,
22. I have information on drug trafficking,
23. I have information on my former partner investing 1.2 million dollars in an offshore tax haven then avoiding jail because of his secret links to ASIO and protection,
24. Centrelink deception and refusal for a DSP,
- 25.
26. Domestic violence,
27. PID cover-up,,
28. IBAC cover-up,

29. Victorian Inspectorate cover-up,
30. IMHA cover-up,
31. Being neglected rejected and gaslighted responses from many because of my poor memory that my 'carers' aware of,
32. Standover tactics to reject medication I need,
33. Abandonment of duty of care by a public hospital,
34. A systemic cover-up I can prove,
35. Evidence being illegally withdrawn from an office of public authority including the Australian medical review Board,
36. Me being discriminated against by IPC and two medical practices – banned,
37. Corrupt police who have heard me speak of these crimes and were completely complicit in its cover-up,
38. IBAC corruption,
39. AHPRA corruption,
40. Australian medical review Board is cooked,
41. Australian medical review Board utterly anonymous and corrupt,
42. I have been systemically and unbelievably denied litigation by every no win no fee agency,
43. Cover up by Monash Community Law,
44. NHPOPC corrupt and cover-up,
45. Victorian Ombudsman corruption,
46. The police will not acknowledge me – corruption,

47. I reported the first instance of medical malpractice to the Royal Commission and not a thing was said or reacted to, and I made it public,
48. I cannot access WorkCover, and denied my claim,
49. HCF has a bank of lawyers covering up my claim and I don't have litigation - and have ruthlessly watched as the stress of not being paid valid income protection from an illness that did not exist before and becoming bereft of finance led me to hospitalization,
50. Comsure through the NDIA where I earned my wage for two years have rejected my worker's compensation claim knowing full well I am homeless and deserving,
51. The MHCC is supposed to be an impartial complaints resolution but has acted with a stand-in lawyer who has rejected sending me the response of my complaint to Werribee hospital, proving she is complicit in the cover-up in a way that is unequal, inequitable, and takes advantage of my stress distress and situation.,
52. The office of the chief psychiatrist covering it all p telling me: 'you can't kill yourself every time you don't get what you want!' – evidence.,
53. The national ombudsman rejected my Whistleblowing statement and in addition to my PID – (Public Interest Disclosure),

This is a democratic right in Australia for a free citizen that has whistleblowing protections by law including freedom from litigation and being sued, and freedom to press charges and have the whole cover-up investigated and all my evidence acknowledged.

In addition, freedom from discrimination, bullying, standover tactics, public humiliation, and access to basic care for my living needs to be met framed by all of this including an unbiased lawyer across federal law and discrimination law.

Without a public nor federal acknowledgment from the police nor authorities - – they are trying to kill me.

They will stop at nothing.

I have nothing, but I would rather have died and be remembered for exposing the truth on my website as a human rights campaigner and the many crimes exposed, and if I had have died in my incarceration - the coroners' report would have agreed that I am the victim of a conspiracy.

Even the hospital discharge notes expressed by a psychiatrist identify I am NOT paranoid and I am NOT delusional.

- I am proud of who I am and my achievements and,
- I am not mad or paranoid.

When I was discharged after my incarceration and suicide in Werribee mercy the treating psychiatrist noted I was:

- neither psychotic
- nor delusional –
- but had been adversely reactive to all the stress that is based in fact resulting in a 'main diagnosis' of 'adjustment disorder'. This stemmed from years of abuse neglect and prejudice/injustice.

This is a new diagnosis. It has not existed before.

Mine leaving work for the NDIS (paid. by the NDIA) - was a reaction to my stress of dealing with a client who suffered child sexual abuse and child rapes I cannot name out of respect - and legal - but i was triggered and www.yourlawyer.com.au did not give me an outcome I fought for 3.5 years and the magistrate when I begged her for a response told me 'I was doomed to fail from the start.' - That's colorful language to a sexual abuse survivor.

In the three months since I have left the hospital with no money, no food, squatting, and incredibly vulnerable and under investigation – I did not see a psychiatrist for three months and two days in person at Saltwater Clinic – an extension under Mercy Hospital.

Saltwater Clinic again rejected my legal need for dexamphetamine to treat my ADHD and drug-resistant depression ADHD without a valid reason, except to say; 'it is policy', not to prescribe it despite an

associate professor Dr. David Horgan acknowledging that I had ADHD and need to have dex for my well being.

They victim-blamed me stating I was paranoid, refused to let go of threatening me with incarceration in the psychiatric unit.

This is more than just 'a bad public mental health system', it was a malicious attempt to maim me and reject any support in my desperate need for assistance - that I so desperately was screaming for as I had done my whole life and explicitly in the last eight or so months.

Including up until today.

Dr Rich Mclean

28/05/2021.

As per whistleblowing statements and complaints to the commonwealth ombudsman, I will expect a response within ten days.

UPDATE:

IBAC has rejected me and so did the commonwealth ombudsman - that is why this is now public.

I will be posting my evidence in weeks to come.

That also includes recordings I have made on the telephone.

According to the Victorian surveillance devices act - there is an exemption to re-cord anyone if it has to do with your survival or legal rights and will be acknowledged in court. I don't think I am doing anything wrong nor illegal by publishing this.

A conspiracy to pervert the course of justice.

I will name and shame those complicit here in the coming days, their roles, and their positions, and what they did, to assist in the cover up:

Name

Name

Name
Name

etc

Bereft of power or agency to act, speak up with any outcomes of justice
- and I will either:

1. Die,
2. Be Killed,
3. Destitute (Already happened),
4. Incarcerated set up or jailed or institutionalized, (Already happened),
5. Make any suicide look like an accident, and blame 'mental illness.'

I have evidence in the following documents and recordings, that prove this elaborate victimisation and cover-up:

1. Telephone and,
2. interview recordings,
3. Documents from agencies and,
4. Evidence from all institutions and people above that:
5. Expose each of these institutions individuals and organizations, as corrupt and complicit in the conspiracy to maim me and destroy me for the above-mentioned reasons.
- 6.

IBAC, and federal police:: I need the entire thing investigated.

I have been destroyed in all ways, in prosperity, human rights, compensation, corrupt magistrates, right to equitable and unbiased legal assistance, via vehicles of:

1. Intelligence operations,
2. Oppression,
3. Blacklisting,
4. Stigma,
5. Prejudice,,
6. Discrimination,
7. Conspiracy to pervert the course of justice.

And I personally have been:

- neglected healthcare,
- treated with prejudice,
- gaslighted,
- Sexually abused,
- not listened to nor acknowledged,
- abandoned,
- Ignored,
- rejected, and I,
- have not had the agency for litigation,
- Right to a fair trial,
- Not been appointed. a community lawyer,
- homeless and squatting and,
- Bereft of power or an organization to report to,
- Been effectively gagged and silenced by the powers that be.

IBAC, and federal police:: I need the entire thing investigated.

Otherwise - they will kill me - or render me bereft of support fair trial and prosperity, and you will and already have been complicit because I have already dies not once but twice under the care of a GP and a Hospital under a duty of care whilst incarcerated,

I remind you all:

1. I have already overdosed and should be dead due to medical malpractice and professional negligence not once but twice,
2. I have fought all of this by myself with zero help whilst navigating stress and being unwell,
3. Been denied medical care,
4. Denied a DSP,
5. Denied income protection due to assumed 'illness',
6. Denied a lawyer,
7. Being denied justice from the before mentioned,
8. Refused litigation services,
9. Been victimised,
10. Being prejudiced against,
11. Either I am 'too mad' or 'not mad enough' depending on who is paying,
12. Been 'set up' and been maimed financially and professionally,

13. The center of a conspiracy protecting those with money power and privilege,
14. the unwilling participant in I believe a plot to protect my former partner as he is protected being a former ASIO employee,
15. I am the unwitting center of an elaborate conspiracy I want to be exposed for my justice issues to be heard received valued and given a fair trial.
- 16.
- 17.
18. I will post my evidence in the coming days/weeks in this document below:

I have suffered:

- Suicide death twice,
- Injury,
- Humiliation,
- Financial ruin,
- Lost my job,
- Lost my reputation,
- Public humiliation.

I demand:

1. **My Maslow's hierarchy of needs met,**
2. **Freedom from litigation, harassment, persecution, and discrimination,**
3. **The freedom to pursue litigation against anyone I choose,**
4. **An unbiased lawyer and mental health advocate,**
5. **Freedom from violence and or incarceration in jail or psychiatric confinement -**
6. **Freedom from litigations in any form against me,**
7. **Protection for my family and friends and legal team - yet to come.**

I WISH TO STATE - I AM NOT SUICIDAL
I REQUIRE WHISTLEBLOWER PROTECTION IMMEDIATELY

On 15 Jun 2021, at 10:52 am, ombudsman@ombudsman.gov.au wrote:
Our ref: 2021-705589

Dear Dr McLean

I refer to the complaint that you submitted to our Office on 11 June 2021. Your complaint has been allocated to me for further assessment.

I have considered the information you provided to our Office. I require additional information in order to assess your complaint:

1. When you submitted your complaint you raised concerns about several agencies, including AHPRA, AFCA, IBAC, the Victorian Inspectorate and the Human Rights Commission. Please identify which government agency your complaint relates to and summarise your complaint to our Office.
2. You indicated that you had additional information included on a website, however we are unable to access this website. Please summarise what your concerns are or provide a copy of this statement to our Office so that we can further assess your complaint.

Please respond to the above questions before 22 June 2021. If I haven't heard from you by this date I will assess your complaint with the information I already have. If I decide to close your complaint, we will keep the information you provided in case you need to contact us again in the future.

If you have any questions or would like to discuss this email at all, you can contact me by replying to this email. You may also contact our Office on 1300 362 072 between 10:30 and 3:00pm AEST.

Yours sincerely

Roslyn
Investigation Officer
Commonwealth Ombudsman

Phone: 1300 362 072

Email: ombudsman@ombudsman.gov.au

Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

Influencing systemic improvement in public administration

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

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FOI NDIS Commission

Melissa,

Apart from the very confusing legislative language in my FOI request,

None of these files in the FOI are even open-able. One of the files even has no data in it.

I have tried every which way.

Please send them again in a legible format. It has been noted that the extraordinary amount of emails I have exchanged with you to do with my name and business - is severely lacking, and obtusely redacted.

In addition to all the information that has been neglected and censored, I forward this too, to enquiries@oaic.gov.au

OAIC can you please acknowledge this email - and follow it up with a reversal of the incredible detraction of documents that are severely lacking in this document?

Additionally, Comcare have stated RE: a workcover claim - that I have been rejected, due to some clause.

Amy from ComCare has emailed me saying evidence has been provided from the NDIS and NDIA but this was never attached, and my rebuttals to her inconclusive review of the legislation went un replied to.

I am cc-ing this to Lara Fleming. She is at the helm of rejecting my workers compensation claim, which I choose to appeal and I will.

Lara, please send me relevant datses and the official documentation to appeal.

Also noted is my former partner, a criminal mastermind guilty of 1.2 million in tax evasion and other crimes, a sociopathic narcissist who has sworn to ruin me.

It is impossible for myself to go to the police to report a rape, disability discrimination, fraud, theft of car, emotional blackmail, and coercion - including a cover up that had its genesis in a malpractice case whereby my evidence was quashed.

Bluntly - I all know we all know about this, and I know the Government and powers that be are collectively and systemically maiming me in financial and all other ways.

You'll all be glad to know, I am currently homeless.

You will have to forgive me for my sporadic emails in light of that - but it is Comcare who has denied my right to workcover for weak reasons, and an NDIS and NDIA who outright refuse to comment on it, nor provide a tokenistic comment as such that I would even be covered by the Government insurance - as it is they who paid my wage, can hire and fire me, I have to abide by rules and regulations, and the fact that I have a contract with them.

I won't give up.

I am on the verge of being a whistleblower - and if I cant access the police to report rape and other crimes and they send me a way I will have the right to whistleblower protections, freedom from litigation, protection and additionally the freedom to hold individuals professionally and civil to account for the detritus crime of perverting the course of justice.

Please send me legible files, Lara note you are a person identified as a pawn to maliciously rob me of rightful prosperity - and will be held accountable.

OAIC I implore you to crack this shell of silence wide open and act to provide my documents untampered with and original to me ASAP.

Lastly, I have already emailed Comcare and Lara Fleming to release all my correspondence to them either in email or in paper to my address, because my computer has been hacked by inconspicuous government agents or other identities which have removed all copies of emails from Comcare and the ombudsman and other important emails.

I have screen snapshotted this and it will be bought up when the case of the malicious cover up goes to trial.

Sincerely

Rich McLean

On 15 Jun 2021, at 2:45 pm, FOI (NDIS Commission)

<FOI@ndiscommission.gov.au> wrote:

Dear Mr McLean

I am writing to inform you that the Commission has made a decision in respect to your FOI request. Please find **attached** a formal decision letter from the delegate appointed to your matter, Ms Melissa Clements.

I note that your FOI request consisted of several composite parts and raised some complexities. As such, you may wish to discuss the decision once you have had a chance to read through it and give it some consideration. If you wish to speak with me about this matter, please feel free to contact me.

Kind regards

Pascal Moussa

Paralegal

Office of General Counsel

<image001.jpg>

P: 02 9942 5726 | **E:** pascal.moussa@ndiscommission.gov.au

www.ndiscommission.gov.au

Your Guide to OGC

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The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

<FOI Search Documents.zip><2021.06.15 - Decision Letter to Rich McLean.pdf>

**Apparently rape and murder are
'not within their jurisdiction' am
I insane or is this cooked beyond
belief**

Dear Roslyn

I reported rape tax fraud of 1.2 million dollars drug trafficking and disability discrimination and coercion in a relationship from an ASIO employee to the federal police

Like the local police: they refused to take my complaint

I was also reporting a conspiracy to pervert the course of justice by many federal Institutions you refused to acknowledge and corruption of a magistrate

Whilst I acknowledge that you cannot investigate some claims, you have cherry picked only one that you can-that being Comcare and I outright disagree with you closing the broad complaint

Without protection-I could be killed

I wish to report that I have knowledge of a murder, and a cover up that led an ASIO employee from jail and instead got a fine

I wish to state that I have gone public about this

That person will send people to kill me and I am not safe

I am homeless

I have multiple labels of mental illness and only thirteen weeks ago I killed myself in a hospital with an agreed banned contraband

Many agencies have acted to silence my complaint

The health complaints commissioner and the mental health complaints commissioner

They are corrupt

Also corrupt are the Australian medical review board

Also corrupt are AHPRA and NHPOPC

My electronic communication has been interfered with by the secret agencies or people or a movement trying to discredit me and rob me of my evidence

This is a federal crime

If I cannot contact an ombudsman for this and the other crimes: it renders me a voiceless neutered person within my own democracy as an Australian citizen

I'm sure you don't want that in the news

I insist you respond to me and not close this file

I am the victim of a systemic conspiracy that is malicious to rob me of prosperity and I am homeless

I have made a public whistleblower statement at www.richmclean.com.au

You have not acknowledged my evidence therefore your "investigation" is incomplete without viewing the evidence

Comcare has a mechanism for their emails and my evidence to be deleted from my computer and this is criminal

You need to re open this case and investigate it without prejudice

I insist my whistleblower protection start ASAP because I am in danger of being killed

I have already survived death twice

In addition the ombudsman complaint I made about Centrelink was bureaucratic nonsense and no outcome was achieved

I find that an agency such as yours in the lack of moving forward with my investigation and granting me whistleblower status will result in my death

Urgently reply

Thanks

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic Supports Provider for the NDIS | Artist-Life-Coaching | Traditional drawing / Digital illustrator / International Recovery Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

On 16 Jun 2021, at 2:46 pm, ombudsman@ombudsman.gov.au wrote:

Our ref: 2021-705589

Dear Dr McLean

Thank you for your correspondence. I have considered the issues that you have raised and I am writing to let you know that we are unable to consider most of your complaint as many of the agencies that you complained about are not within our jurisdiction.

The Commonwealth Ombudsman's Office handles complaints about the administrative actions of Australian Federal Government agencies. We do not have jurisdiction in relation to your concerns about the Victorian Inspectorate or the Independent Broad Based Anti Corruption Commission (IBAC) as these are Victorian Government Agencies. I note that you also raised complaints about the police. If your complaints relate to the actions of Victoria Police, we are similarly unable to investigate these concerns.

I note that you also raised concerns about the actions of Hon Greg Hunt MP, the current Minister for Health. The Ombudsman Act 1976 precludes our Office from investigating actions taken by a Federal Minister.

You also raised concerns about the Australian Human Rights Commission (AHRC) the Australian Health Practitioner Regulation Authority (AHPRA) and

the National Health Practitioner Ombudsman (NHPO). The AHRC, AHPRA and the NHPO are all either not 'Departments' or 'Prescribed bodies' within the meaning of the Ombudsman Act 1976. As a result, our Office is unable to investigate complaints about these bodies.

I note that you also raised concerns about Comsure and a workers compensation payment you were to receive from your work at the NDIA. It is unclear what the content of your complaint was, however if your concerns relate to Comcare, this is an agency that is within the jurisdiction of this office. If you have concerns about Comcare, you should first raise a complaint with the agency directly. Information about this process can be found here: [Provide feedback | Comcare](#).

If, after receiving a response from your complaint with Comcare you continue to be dissatisfied with it, you are welcome to contact our Office at that point by lodging an online complaint form here: [OCO Complaint Form \(business.gov.au\)](#)

As noted above, we are unable to investigate the complaints that you raised about all of the agencies outlined above, except for Comcare. I will now close your complaint file.

Yours sincerely
Roslyn

Investigation Officer
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au



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I email the police - no response from them

I need help-everything's fucked. I'll give you 50k guaranteed if you get me a good lawyer and I get what I deserve !

Go on read on - to break this conspiracy deadlock! Justice for Rich!

AFCA are holding onto 2 million dollars of mine but won't make a determination on any of it -seven different financial issues -they refuse to talk to me or reply to email or phone

Why

The conspiracy

I had to go bankrupt! Because of that-I lost a job (but I'm too psychological injured to work it anyway), why?

AFCA won't act and it's been two years!

Comcare (work cover) refuse my work cover - I may have a total permanent disability- a TPD is a million dollars if not then 95% of my wage from January- \$6000 a month going forward then indefinitely!

They rejected me but I've no lawyer!

I'm appealing it but without a lawyer I've no hope! Can't get a lawyer!

Why

The conspiracy

HCF insurance refuse my income protection because either I'm too sick or not sick enough - that's \$150000 for income protection plus pain and suffering-they won't acknowledge my emails or calls! That's illegal!

The case is with AFCA but they won't act!

Why? the conspiracy

I tried to report a bunch of crime to the police - murder drug trafficking conspiracy corruption drug trafficking ...and my own two deaths under the Hippocratic oath!

They kicked me out rejecting my proof and refuse to speak to me!

That's criminal corruption and police corruption!

Why?

The conspiracy

I tried to get whistleblower status for this injustice that a common person can't report a crime to police - and they want me dead before I get justice - and I've already been to IBAC who investigate the police

IBAC rejected it

Why?

The conspiracy

I tried to get a separation with my former partner not greedy just equitable - what he owes me from our five year relationship.

It gets saucy here!

Disability discrimination and coercive control-I spent my disability payout nest egg on the relationship and he left me homeless

HE had a million in super and shares and inherited a house!

He was on 350k a year and he coercively controlled me and destroyed me financially and in the breakup threatened a Hitman

He intimidated me and used standover tactics - he stole my car and all my stereo air conditioner-the lot!

Plus he preached monogamy and afterwards I found out was putting my health at risk by having bareback sex two years before he left!

He had a dog-I loved it and he threatened to kill it so I could not have it-what a sicko!

He admitted to me he was present at a murder at collingwood flats at a dodgy drug deal

He got a 200k fine slap on the wrist for investing 1.2 million dollars (in 2011) in an illegal offshore tax haven from the sale of his house in abbotsford he had by selling cocaine!

However he was an evil genius and was both caught by ASIO -AND worked for them! He was ASIO project manager and his boss was david Irvine!

I contacted him for conciliation - but he rejected me because he knew he had financially destroyed me

So no conciliation or separation even though we were engaged together for five years !

Why ?

The conspiracy !

ASIO protections are denying me justice!

Re: dodgy doctors-this is worth a million in itself...!

I have A grade irrefutable evidence (recording) of medical malpractice and professional negligence by a GP that ended in my suicide attempt and overdose where he is irrefutably negligent !

But no justice even though I fought for over five years!

But the Gp had no registration with AHPRA (illegal) and not registered for GST at the time!

He lost his job after I went public-but-no justice for me!

He lost his job and I'm now banned from not one but two clinics!

That's just for a legitimate complaint!

That's discrimination I could sue!

I need a good lawyer!

This issue was a cover up and silenced my evidence from AHPRA to The Australian medical review board the police to NHPOPC to IBAC the Victorian inspectorate and Australian human rights commission and many many more!

No wonder they don't want the first domino to fall they would all be fucked!

The recording is in the public domain too-I published it!

They can't sue me I have no money! It's deadlock!

They can't jail me for complaining!

I'm owed millions of dollars in this- a malpractice case with undeniable evidence!

All this while people with money had lawyers and I have none!

Why?

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The health complaints commissioner rejected me outright.

The mental health complaints commissioner took on my complaint.

They got the hospital's response but REFUSED to send it to me - UNTIL IT WENT PAST THEIR LAWYERS!

They are double agents! This is corruption! I could be dead, not once but twice!

It's a further cover up!

What an insult to my life!!!

I need a lawyer - HELP ME!

I can't get one!

Why?

The conspiracy and a cover up and I'm blacklisted and rejected - why will no one acknowledge me?

Why? One guess!

The conspiracy !

I'm afraid if you do not act-you are complicit in this-they will kill me!

I don't even have a disability support pension!!!

...but have many illnesses ...I've survived death twice!

They put me on the dole lol

I have to look for work!

lol

Why ?

The conspiracy !

My psychiatrist rejected me and abandoned me including my medication and that's malpractice and abandonment of duty of care!

The only reason he wrote the script is because I threatened to totally fuck him...and we know what happened to the other Dr!

By now-I'm famous! It's too ridiculous to explain to people-they think I'm mad!

But the hospital discharge notes definitely say I'm neither delusional NOR psychotic!

This is real!

The conspiracy is real!!!

I'm owed millions but NO JUSTICE

Why?

The conspiracy !

I don't even have a psychologist or psychiatrist - the local mental health clinic took me on-LEGALLY!

But it took over three long months for me - who had literally killed themselves eight days before...to see a specialist

That's more than a bad public mental health system!

They want me dead!

Plus they denied my meds-because of quote "policy"!

That's another malpractice case!

That's another hundred grand!

They want me dead!

I can prove it!

I've literally been dead twice now under the Hippocratic oath - why does no one care?

Why won't someone say something?

Why? It's unbelievable but it is...

The conspiracy !

I can prove it - all of this...

And I did!

On my website:

[Wwww.richmclean.com.au](http://www.richmclean.com.au)

I demanded whistleblower protection from ASIO and the powers that be and the hitmen-and the neglect-systemic malicious cover up and neglect...

It may kill me!

I'm already homeless!

But now... my computer is hacked!

That's another crime! So who do I report to?

The police?

The ombudsman?

The OMBUDSMAN REJECTED MY WHISTLEBLOWER COMPLAINT!

Why?

to delete my evidence!

So I need someone to help please!!!!

I need the police (unbiased), and I need a lawyer-AND I NEED
WHISTLEBLOWER PROTECTION!

Help me everyone help me - I've been rendered a neutral no one - a refugee in
my own country!

I'm owed millions!

I have the evidence-all of it! Look on my website!!!

No one will act-I can't believe it!

I'll give you 50k to get me a lawyer...

Now I'll probably go to jail

Because I'm bribing people-because they are destroying and maiming me
politically financially health wise and in every way and it's criminal!

Why?

The conspiracy !

Do you want 50k? Find me a lawyer!!!

Why won't you?

The conspiracy is bigger than you- and I'm blacklisted!

Rejected!

Ostracised!

Silenced!

You're not though!

Send this to a lawyer or your MP!

I will pay anyone fifty grand to get all these before a court-and I'll win too!

Fuck this I'm not supposed to be dead!

I have the evidence - all of it!

I'm now homeless because...

Why?

The conspiracy !

The corrupt magistrate rejected my child sexual abuse case despite enormous evidence!!!

Why?

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I can't believe this is happening to me.

The gaslighting is driving me crazy

It's like I'm in hell

They're going to kill me-via neglect-then blame my "illness"

But the cat is out of the bag!

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I tried to do a public interest disclosure and a whistleblower statement ...

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This is A CRIMINAL CONSPIRACY TO PERVERT THE COURSE OF JUSTICE

Anyone

Go for it

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic
Supports Provider for the NDIS | Artist-Life-Coaching | Traditional
drawing / Digital illustrator / International Recovery Expert &
Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

I desperately email placed from the disability discrimination legal service. These are the people that told me super companies have a legal right to discriminate - they are supposed to have my back

Placido...

Do you want 50k?

For when I win?

Am I in trouble for asking you that?

Placido...please read

Go on read on - to break this conspiracy deadlock! Justice for Rich!

AFCA are holding onto 2 million dollars of mine but won't make a determination on any of it -seven different financial issues -they refuse to talk to me or reply to email or phone

Why

The conspiracy

I had to go bankrupt! Because of that-I lost a job (but I'm too psychological injured to work it anyway), why?

AFCA won't act and it's been two years!

Comcare (work cover) refuse my work cover - I may have a total permanent disability- a TPD is a million dollars if not then 95% of my wage from January-\$6000 a month going forward then indefinitely!

They rejected me but I've no lawyer!

I'm appealing it but without a lawyer I've no hope! Can't get a lawyer!

Why

The conspiracy

HCF insurance refuse my income protection because either I'm too sick or not sick enough - that's \$150000 for income protection plus pain and suffering-they won't acknowledge my emails or calls! That's illegal!

The case is with AFCA but they won't act!

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Anyone

Go for it

Go for it Placido!

...unless you're IN ON IT!

On 17 Jun 2021, at 10:03 am, Principal <principal@ddls.org.au> wrote:
Hi Rich

I will watch the video. Unfortunately I don't have a number I can give other than the office number because we are still working off site.

Kind regards
Placido

Sent from my iPad

On 17 Jun 2021, at 9:36 am, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Placido can I urgently call you please?

Here it is. (Te video-this is how desperate I am)

<https://www.youtube.com/watch?v=NuECEfHA-OI>

I need you to URGENTLY intervene

Crimes I report are:

Conspiracy to pervert the course of justice

Being denied whistleblower status

Conspiracy by ASIO

Rape

Murder

I cannot report this to police - they dont listen

I am scapegoated and blacklisted

I have suffered domestic emotional physical and financial abuse

1.2 millin dollars in tax fraud

Drug dealing
A conspiracy to main me
Medical malpractice
Professional negligence ending in TWO preventable suicides
Both these were covered up
I have suicided less than 16 weeks ago - yet I am unable to complain because I have been blacklisted
I cannot get legal support
I am owed conciliatory separation and have suffered financial disability
discrimination
AFCA currently hold the key to millions of dollars of issues they refuse to acknowledge -a and they know I am homeless
I have been denied my rightful life insurance income protection
I have been denied workers compensation from Comcare (I will post another email below in the desperate attempt to have legal representation by YOU

PLEASE HELP ME

I have: schizophrenia, bipolar, chronic depression, ADHD, generalised anxiety disorder, personality disorder and panic disorder. I dont agree with a lot of labels.

I have sentience and deserve that someone advocate for me.

Can this please be you?

I have received an outcome me from the ombudsman re: my whistleblower statement - they have rejected it.

I am not even on a DSP, I cant believe this. This is why the conspiracy is so big.

If one domino falls, I screw the whole country.

This is why they want to kill me.

- 1) I am mad and need help
- 2) I am not mad and I need help

I need YOUR help placed.

I expect though that you will either not have the time, 'be outside what you investigate' etc

This would be a criminal injustice.

I beg you please help me

Can you stand up for me with my workcover claim?

Here are the details:

Commcare are making a determination on my workcover claim - without me seeing a lawyer which is utterly unfair.

See this email:

OFFICIAL

Dear Dr McLean

Thank you for your email of 31 May 2021 in response to my email acknowledging receipt of your reconsideration request in relation the determination of 26 May 2021.

As indicated in the determination letter dated 26 May 2021 if you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it. In your email of 27 May 2021 you requested an appeal, this was considered a request for reconsideration.

My role in this process is to complete your reconsideration, which is an internal review of a determination which is carried out by a reconsiderations officer who was not involved in making the primary determination.

It is not a court process, it is a second look at the information and evidence on the claim to ensure the correct determination was made.

I expect to complete my review and issue a reviewable decision explaining my findings early next week.

If required further information is available at <https://www.comcare.gov.au/claims/disagree-determination/reconsideration>.

Kind Regards

Bernadette White

Assistant Director

Reconsiderations and Appeals

Claims Management Group IComcare

I need representation of a no-win no fee lawyer.

You need to urgently fill out this form if you take on this case:

<reconsideration-request-form.pdf>

In addition I ask you to reconsider this evidence I have rebutted:

<ATT Lara Fleming and Amy Delzoppo URGENT.pdf>

<evidence i can still work ndis Sorry found it Amy and Lara .pdf>

In addition to THAT there is a conspiracy that has its genesis in my former partner who is protected by ASIO as he worked there as a project manager.

I have requested whistleblower status for the many crimes and conspiracy to pervert the course of justice.

I cannot even report these crimes to the police.

This is appealing.

I need you to act firm, and not be held captive by the powers that be.

This TPD from Comcare is worth a damn lot of money.

I can easily prove I am insane.

I have a diagnosis of schizophrenia bi polar add panic disorder personality disorder and adjustment disorder and major depressive disorder plus generalised anxiety disorder.

I need you to confirm:

- 1) You will take this on and be my rep
- 2) you will act without prejudice or control by the powers that be on my behalf
- 3) You have acknowledged all of this material.

Please call me back URGENTLY otherwise they will take this through to a determination (which is in house).

I deserve workers compensation and TPD.

Please help me I am homeless

Rich McLean

On 8 Jun 2021, at 12:02 pm, Michelle Antunovich
<Michelle.Antunovich@slatertgordon.com.au> wrote:
Hi Richard,

As discussed, this is my email.

Kind Regards,

Michelle Antunovich Support Team Leader <u><image001.jpg></u> <u><image002.jpg></u> <u><image003.jpg></u> <u><image005.jpg></u>	<u><image004.png></u>	SLATER AND GORDON LAWYERS Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131 D (02) 9799 5611 T '+61 2 9799 5611 F (02) 9799 2488 W <u>slatertgordon.com.au</u>

From: Michelle Antunovich
Sent: Friday, 4 June 2021 10:06 AM
To: Dr Rich Mclean <rich@richmclean.com.au>
Cc: Richard McLean <richarddrawsstuff@gmail.com>

Subject: RE: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

Dear Richard,

We are unable to access the Determinations. You have sent through emails with a picture of the PDF documents of the determinations but we cannot access them.

Please forward through the Determinations on their own.

Thanks

Michelle Antunovich Support Team Leader <image001.jpg> <image002.jpg> <image003.jpg> <image005.jpg>	<image004.png>	SLATER AND GORDON LAWYERS Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131 D (02) 9799 5611 T '+61 2 9799 5611 F (02) 9799 2488 W slatertgordon.com.au

From: Dr Rich Mclean <rich@richmclean.com.au>

Sent: Wednesday, 2 June 2021 2:09 PM

To: Michelle Antunovich <Michelle.Antunovich@slatertgordon.com.au>

Cc: Richard McLean <richarddrawsstuff@gmail.com>

Subject: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

Highly confidential emailed to other witnesses and myself as evidence it has been sent

Hi Michelle.

I have an appointment with Gabriella next Tuesday at midday.

Please treat this email as highly confidential bound by legal privilege and also that it is utterly necessary to be sighted and valued before my appointment next week.

thanks

I wanted to provide some important documents for here to review.

One is the official rejection letter.

Two is how to appeal

Third is my record of an incomplete application that was submitted to Comcare.

Fourth is confirmation that workcover guarantee I am with Slater and Gordon.

The last is some sound recordings I have made of speaking with Lara and Amy both of Comcare. (Actually I will provide this evidence later)

If it is for my legal privilege I have a right to record conversations as an exemption to the surveillance devices 1999 legislation.

In addition to that they know they were being recorded.

In the recordings, you can clearly sense my frustration and the process of them 'kicking the can down the road' because they know I have been maimed via a conspiracy as such, or an institutional, across the board decision to deny me justice and my reputation and any prosperity.

This is linked to a medical malpractice case in which there was a cover up.

It is additionally linked to the fact my millionaire former partner left me five years ago after I spent my nest egg on him - I have evidence he has committed tax fraud and serious crime - and he left me homeless and squatting with his dying dog.

His role was a project manager at ASIO where his boss was David Irvine (Australian Secret Service).

This is all related, is why I record evidence.

I have stated a whistleblower case, that is framed by the knowledge I have and that I am rejected by all local mid and national Government agencies - but already been rejected by:

- The Police

- IBAC
- The Victorian Inspectorate
- The Commonwealth Ombudsman

In this way the powers that protect those with money power and privilege and cover up their crimes have ultimate power here.

My emails have been hacked, I am homeless and squatting. I had nothing left to lose that to be a whistleblower and afforded protection.

The initial financial distress led me to flippantly threaten to 'top myself' (months in advance), if no one paid attention to my issues, I was not serious but I was distressed at becoming bereft of prosperity and my reputation ruined by this 'movement.'

No one did investigate, which is what I wanted to get justice. Slater and Gordon are complicit in not acting for me despite a very solid case(s0 so I am rationally paranoid, you with act with the same methodology - reject me, or kick the can down the road deceptively to ruin me.

However my family incarcerated me - where I told my story. They tried to numb me up with drugs, because they thought I was psychotic. The discharge notes of the hospital state clearly however, I am neither delusional nor psychotic. They gave me a diagnosis of 'adjustment disorder', which is a rational and appropriate reaction to the stressors I have had for at least the last ten years, and the last five years battling.

Thinking 'the conspiracy' had won, I then tried to suicide. I was found with no observable pulse. I was going to die a human rights campaigner I felt so strongly about it. I thought better to die and the coroner record these crimes as real and be remembered as an ethical human rights campaigner and victimised by the system, which I knew would occur.

Now there is another cover up - Weribee Mercy health - the hospital I suicided at - had never acknowledged my complaint - which is a utterly clear breach of duty of care and malpractice that could have resulted in my death (I have the evidence and FOI's) - they will not get back to me. This is an additional legal case commit with the entire cover up and silencing of me and the victimisation of me.

A conspiracy to pervert the course of justice is a ten year plus jail term and there are many people who are the pawns of organisations and reflect their motives and ideologies to silence me.

The complaint at the hospital has been not only rejected by The health Complaints Commissioner - but was released to The mental health Complaints Commissioner. (It was also rejected by salter and gordon hence my rational paranoia you will additionally reject me here).

The MHCC received the response from the hospital - yet another double agent acting on behalf of the hospital - refused to send me the outcome. Her name is Ms Tinter. I have recordings of her too-admitrtying she is actually a lawyer, and that she utterly refused to send me the hospitals response (which was erroneous denies any wrongdoing and covers the whole thing up), until she had taken it past 'colleagues' - ie a group of litigation experts.

This is why they are complicit in this conspiracy to pervert the course of justice.

Now everyone is running scared as I am closing in.

So:

- Issue one of my workcover claim with NDIA is your issue, but it is framed by a wider conspiracy to pervery the course of justice.
- My whistleblower statement - which can be viewed at www.richmclean.com.au
- Has been ignored by every level of Government, rendering g me a non member of a democratic society.

I actually believe they will kill me - and I have evidence of that.

When you consider this case, beware I have bought up things with Slater and gordon before like the original malpractice cover up from Dr Whitaker in 2018 - and you and every other lawyer place rejected me.

If you do not have a sufficient or legislative reason why you will not intervene in the Comcare case, I will assume someone has 'tapped you on the shoulder' as has happened before, and that you are identifiable as a person accused of conspiring to pervert the course of justice.

I don't mean to threaten anyone - I am a nice person framed by an impossible and literally unbelievable situation.

Please review these files and the broader whistleblower statement at www.richmclean.com.au

If you are unable to intervene with

- 1) the Comcare workcover case framed by
- 2) all the evidence published and gridlocked - I will be surprised - but not if the powers that be maim you as another pawn in their plans to destroy me.

And in that way, you will be added to the list of complicit identities seeking to maim me in all ways.

I look forward to talking with you next week.

Regards,

Dr Rich McLean

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

On 17 Jun 2021, at 9:19 am, Principal <principal@ddls.org.au> wrote:
Hi Rich

Do you mean there is a video on YouTube about your problem?
Perhaps send me the link to the YouTube video first.

Kind regards
Placido

Sent from my iPad

On 16 Jun 2021, at 7:05 pm, Dr Rich McLean <rich@richmclean.com.au> wrote:

I got a million problems

Can you call?

Or do you want the YouTube video?

Dr Rich McLean
Human Rights Awarded Autobiographer & Registered Therapeutic
Supports Provider for the NDIS | Artist-Life-Coaching | Traditional
drawing / Digital illustrator / International Recovery Expert &
Advocate

Live your best life!

Discover me @ www.richmclean.com.au
Call me @ +61 400639248
Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that
nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

21 June - I ask for my FOI from Comcare - they are watching... feel like Im going bananas

Hi Jesse

Thanks for your email. I am icing this to a support person.

I would request the original FOI response that is more greater valued detailed and will expose the reasons why Comcare's emails from Lara Fleming and others has disappeared off my email system.

It is an official conspiracy to maim me financially and in all ways.

If you not comply I will be reporting to the Government ombudsman (in the kindest possible way).

So I request urgently and with full determined will - that I receive the documents outlining all my communications, anything about me, my emails, emails to me, notes, internal notes, basically anything else that will prove the mechanism for rejecting my valid workcover claim

Cheerts.

Hear from you soon with a result of legally requesting this under FOI.

I apologise for not responding sooner, however I checked and your email is not there - such is the life of someone being investigated and under the watch of ASIO who your former partner worked for and embezzled 1.2 million in an offshore tax haven and was present at a murder, amongst other heinous crimes.

I will wait your urgent reply

RM

On 18 Jun 2021, at 6:27 pm, foi <foi@comcare.gov.au> wrote:

Unofficial

Dear Dr McLean,

I am writing in relation to your request under the *Freedom of Information Act 1982* (the FOI Act) to the following:

QUESTION: I would like my FOI of Comsure in all regards to my name my business my calls and my emails. Please provide a timeframe, because something dodgy is going on and we both know it, its bigger than you and me combined.

On 24 May 2021, I wrote to you acknowledging your request and clarifying the scope of your request to be for all documents held on your Comcare claim file. Additionally, I stated that Comcare may provide you with documents under administrative access arrangements instead of processing the documents formally under the FOI Act.

As you have not objected to the scope of request or the administrative release method, I am proceeding to release your claim file administratively to you outside the FOI Act.

Please see **attached** the full claim file for your claim 1326583/1.

As you have stated in the email to Lara dated 15 June 2021 that you would like your documents in paper format, I will send you the documents by post to your address on file as well.

We will take your FOI request 2021/4547 to be withdrawn and finalise the matter on our end.

Kind regards,

Jesse

Statutory Oversight Officer | Legal Group

Email: FOI@comcare.gov.au

GPO Box 9905, Canberra ACT 2601 | Ph 1300 366 979 | www.comcare.gov.au

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<MCLEAN, Richard - documents.PDF>

18 June response from Comcare re FOI

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Kind regards,

Jesse

Statutory Oversight Officer | Legal Group

Email: FOI@comcare.gov.au

GPO Box 9905, Canberra ACT 2601 | Ph 1300 366 979 | www.comcare.gov.au

Hi jesse please do not finalise it

My email has been hacked by the government

It is inequitable and unfair I can't get to my emails when they are censored

Please allow me to oppose it

Dr Rich McLean

Human Rights Awarded Autobiogr

21st June

Hi Jesse

Thanks for your email. I am icing this to a support person.

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If you not comply I will be reporting to the Government ombudsman (in the kindest possible way).

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<MCLEAN, Richard - documents.PDF>

27th may fight with Amy

Dear Amy,

No no thanks for your time and evidence, as you know it was recorded and if my lawyer states that I should be covered when you have such a weak argument you will be held to account as an individual who is a mere pawn of a greater entity designed to financially ruin and maim me - that is why I am a whistleblower, and why I am warning people if they don't want to spend up to 12 years in jail for making a decision on someone's like they were told to by someone higher in authority than them. :-)

Hence, I'm helping you.

I disagree with the weak argument.

I have not even read the safety, rehabilitation and compensation Act 1999, yet I don't need to yet as you have really poorly identified, or actually, not at all successfully identified the reasons why I am rejected.

In addition, Lara is a weak conversationalist-you already rejected me then she un-rejected me as your boss-then she didn't know and was kind of just bobbing along aimlessly with nothing to say.

I request an appeal.

Send me the Act.

This is exactly the mechanism that the 'conspiracy'; utilises - the exact methodology of rejecting rejecting and 'kicking the can down the road', knowing full well they are in breach of all human compassion because I deserve cover and allowed it and will prove it with my litigation team if necessary. You know I am homeless.

I provided a copy of my registration - which you were utilising as a mechanism for 'kicking the can down the road', utilising delaying tactics once you knew I said I was disadvantaged and had moved house many times had computer problems and didn't have it.

I had it all along, but obviously it was merely a tactic employed by yourself to lengthen the time it takes me to get a result.

It is not a determination if it is decided by you with little to no evidence or critical thinking, then undecided by your boss, mulled over a bit more, can be kicked down the road and waiting weeks just to reject me anyway.

This is often a mechanism through which narcissistic abusers and the law try and destroy people their faith and their confidence.

But I promise you I will expose this should I be a millionaire, between the sheets or on the streets!

Its hilarious its like a game.

Im sure you're lovely but honestly someone at quote 'Comcare' (who's position you refer to), is paying you to well...be a horrible person, and you accept that then smile and wish me well.

Its really obnoxious and I think ill fitting of any decent type of human being.

I'll give you a call tomorrow, and record it, citing this email and I'll even read it to you to get your response after I have literally cornered and caught out both of you for whistleblower purposes - the thing is - you done even know why you are rejecting me - you are just a puppet you muppet lol

Anyway I cant wait to chat.

I hope you have a lovely evening and your nerves tingle with relaxation at the thought of being a pointless pawn prostituting yourself to be inhumane as a horrible person for cash, much like a whore, except with a sex worker you at least get your rocks off.

With you you are just paid, rented really, to keep up the veneer as a pawn in the facade with no idea what's going on like a neutral pleb, with money from Comcare that protect the very people and institutions positions of power and privilege. (Which you have no idea what I am talking about).

Anyway I feel amazing today, and I look forward to seeing the statement and if necessary exposing crimes against individuals just for advocating for themselves when a exploit concealed and inherent systemic conspiracy exists to protect people like my GP and the malpractice suit and the conspiracy that happened after that, and my former partner, who's Boss was David Irvine of ASIO - ohh... the things I know about them!

(And you)

Kindly.

Rich

On 26 May 2021, at 4:27 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:

Good afternoon Richard

Thank you for your time today. As discussed, Comcare have declined liability on your workers' compensation claim on the basis Comcare are not satisfied you are an 'employee' in accordance with the Safety, Rehabilitation and Compensation Act 1988. I have attached the determination letter and your notice of rights. If you disagree with the determination, you have the right to request a reconsideration within 30 days of receiving Comcare's determination. I have attached the request for reconsideration form which you will need to complete and email to reconsiderations.team@comcare.gov.au if you disagree with the determination. If you are unable to request a reconsideration within the 30 day timeframe, you can request an extension of time and it will be considered by the reconsideration team.

Thank you for providing a copy of your registration. I have reviewed this document and consider it supports Comcare's position that you are a registered NDIA provider who delivers support to NDIS participants rather than an employee of the NDIA.

If you would like to discuss the determination letter, please do not hesitate to contact me or my manager Lara Fleming. Both myself and Lara work standard hours 9 am until 5 pm Monday to Friday.

My contact details are:

Email: Delzoppo.amy@comcare.gov.au

Phone: (02) 6276 0354

Lara's contact details are:

See More

Good afternoon Richard

Thank you for your time today. As discussed, Comcare have declined liability on your workers' compensation claim on the basis Comcare are not satisfied you are an 'employee' in accordance with the Safety, Rehabilitation and Compensation Act 1988. I have attached the determination letter and your notice of rights. If you disagree with the determination, you have the right to request a reconsideration within 30 days of receiving Comcare's determination. I have attached the request for reconsideration form which you will need to complete and email to reconsiderations.team@comcare.gov.au if you disagree with the determination. If you are unable to request a reconsideration within the 30 day

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If you would like to discuss the determination letter, please do not hesitate to contact me or my manager Lara Fleming. Both myself and Lara work standard hours 9 am until 5 pm Monday to Friday.

My contact details are:

Email: Delzoppo.amy@comcare.gov.au

Phone: (02) 6276 0354

Lara's contact details are:

Email: Delzoppo.amy@comcare.gov.au

Phone: (02) 6225 2391

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

Comcare

GPO Box 9905, Canberra, ACT 2601

1300 366 979

www.comcare.gov.au

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See More

Phone: (02) 6225 2391

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

[Claims Management Group | Canberra](#)

[P: \(02\) 6276 0354](#)

[Comcare](#)

[GPO Box 9905, Canberra, ACT 2601](#)

[1300 366 979](#)

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<Comcare_document_folio.pdf>

I beg Slater and Gordon to help

Dear Gabrielle,

This is an urgent email, and I need your help.

In my last email (Below I mistakenly said comsure when I said Comcare, which is commonwealth banks insurer).

Comcare is the official work cover government agency for insurance people who represent the federal government.

As all of my income came from the NDIA/NDIS - I believe I have a case to claim. I contract to the Government yes - but I also get paid directly from them.

I have a number and employee number.

I get advance payments by them.

I have to follow work guidelines, and they can hire and fire me.

The only thing is they don't take tax, but most of these suit the definition that I would be able to access work cover.

I also received an advance payment from Comcare from the NDIA during COVID - which affirms that's where my money comes from - ie: my employer. I had a staff ID and I did not even ask for it.

I have an official contract with the NDIA, cementing our relationship, I have to follow protocol and rules and report incidents within a timeframe, and they can hire and fire me, just like a boss.

Additionally, I need to be professionally audited every year, to continue my role.

I agree that it could be seen that I am a 'sole trader' who 'contacts' to the Government - yet the other dimensions and agencies would allow me to access Comcare as my workers compensation people if I sustained an injury or illness at work.

This happened on 22nd January.

I have been bereft of finance and fighting them at every turn.

Workcover is a guaranteed right for every worker, especially when 100% of your wage for two years comes from the Government.

I beg of you to tell me who else to go to for this compensation that both workcover and work safe said Comcare is my insurer, and to contact them.

I don't have private health insurance.

Can you please please Re-consider to represent me in my litigation against Comcare for my workers compensation now you have this extra evidence and explanation?

The evidence below is in terms of emails I have sent to and from Lara Fleming - and Amy delgozzo who acted in congruence to at first consider - then outright reject my claim.

I expected it - as my former partner worked with ASIO and I have dirt on him - I have failed in all of my attempts at justice in the last 15 years, and one by one

layer outwards, the shape of a malicious conspiracy is evident today with the benefit of hindsight that renders me a innocuous neutral refugee in my own country.

I have recently done a whistleblower statement - and a public interest disclosure - and as comsure is part of the government, and the fact I cant report rape, tax fraud of millions of dollars, drug trafficking and other heinous crimes directly to the local nor federal police (only one of hundreds of examples), I deserve to be heard and my voice acknowledged as a whistleblower - a democratic right in any country where a citizen is a member of that country.

Today - they denied me that privilege.

The rejection letter from Comcare I have already sent you. Apart from the diagnosis they got entirely wrong - it says they have rejected me under a certain legislation - I am not a lawyer and do not know what it means.

Please help?

The letter is two tiered:

1) It says it denied me on the grounds of mental illness, or anxiety and depression. This is incorrect. When I was rejected from any compensation whatsoever, which is a workers right - I distressed and was hospitalised.

I told them at the hospital there was a conspiracy to deny me justice stemming from multiple sources. (Including this one).

By the end of two weeks, and after a suicide attempt in hospital under duty of care and Hippocratic oath(s), which I do not have the agency or voice to complain about nor get an apology, conciliation nor litigation, the chief psychiatrists notes said in the discharge summary, I am utterly not delusional nor psychotic-this confirmed what I already knew.

This conspiracy to maim me in all ways financially silence me and exclude and destroy me exists, from the highest level.

I have been left to fend for myself a vagrant squatting when I am owed a probable TPD and monthly payments of 95% of my wage worth a huge huge settlement.

If you cannot help, and you have already joined this extraordinary chorus that is silent and systemic and local national and international to maim me financially and in every way, please pass meant someone with the agency to take on the big guns.

I have attached further evidence below, and again the rejection letter:

Thanks

Dr Rich McLean

[See More](#) from General Enquiries

If Comsure is your work cover insurer, it does not fall under the Federal workers' compensation insurer Comcare. You will need to contact Comsure to see if you can claim workers' compensation on your own insurance.

You can also obtain alternative advice if you disagree with my advice.

Regards,

Gabriella Giunta

Associate







SLATER AND GORDON LAWYERS

Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131

T +61 2 9799 5611 | F (02) 9799 2488

W slatgordon.com.au



From: Rich McLean <richarddrawsstuff@gmail.com>

Sent: Thursday, 17 June 2021 12:20 PM

To: Comcare <Comcare@slatgordon.com.au>

Subject: Re: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

Gabriella,

Maybe you are missing the point.

EVERY WORKER whether sole trader or not has workcover entitlements am I right?

Workcover and work safe has said because the NDIS/NDIA pay my wage ...ie that's where the money comes from - Comsure is my work cover insurer.

I have evidence I have an id number, a contract, that I was advance paid \$3000 from NDIS during covid - yes I am a 'sole trader' but I have a CONTRACT with the NDIA

They may HIRE AND FIRE me.

I need to STICK TO REGULATIONS and REPORT INCIDENTS in line with their ethics.

YES I am a sole trader, but for the purposes of a TPD with workcover...

Its worth a million(s)!

I can believe you would not look into this.

There is a clause that they are referring to-I dont know legislation...but I do not I meet a lot of the requirements to be an employee!

Can't you please look again?

I am begging you!

Rich

On 17 Jun 2021, at 10:28 am, Comcare
<Comcare@slatertgordon.com.au> wrote:

Dear Rich,

Thank you for sending through your below email. I have reviewed the documents.

As previously advised, the question in dispute is whether you are a contractor or an employee. I do not have any evidence to substantiate you are an employee rather than a contractor as the evidence does suggest you are a contractor and a sole trader. As such, I do not consider there are reasonable prospects of success and I am unable to act for you.

I also can see you submitted the reconsideration request below. You will now need to wait for the reviewable decision which will either affirm, vary or revoke the declinature of liability. You will then have 60 days to appeal the decision in the Administrative Appeals Tribunal should you wish to.

I wish you all the best.

Regards,

Gabriella Giunta Associate <image001.jpg> <image002.jpg> <image003.jpg> <image005.jpg>	<image004.png>	SLATER AND GORDON LAWYERS Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131 T +61 2 9799 5611 F (02) 9799 2488 W slatertgordon.com.au

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Thursday, 17 June 2021 9:53 AM
To: Comcare <Comcare@slatergordon.com.au>;
commcare@slatergordon.com.au
Subject: Fwd: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

ATT Gabriella,

This is the determination:

I urgently need you to intervene, considering the information below.

Thanks for your consideration, I pray you can act for me.

Kindly

Rich

Begin forwarded message:

From: Rich McLean <richarddrawsstuff@gmail.com>
Subject: Re: {Disarmed} Confidential with legal privilege from Dr Rich Mclean
Date: 17 June 2021 at 9:36:43 am AEST
To: Michelle Antunovich <Michelle.Antunovich@slatergordon.com.au>

Michelle, and Gabrielle,

Can you please forward this URGENTLY too Gabrielle?

Commcare are making a determination on my workcover claim - without me seeing a lawyer which is utterly unfair.

See this email:

OFFICIAL

Dear Dr McLean

Thank you for your email of 31 May 2021 in response to my email acknowledging receipt of your reconsideration request in relation the determination of 26 May 2021.

As indicated in the determination letter dated 26 May 2021 if you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it. In your email of 27 May 2021 you requested an appeal, this was considered a request for reconsideration.

My role in this process is to complete your reconsideration, which is an internal review of a determination which is carried out by a reconsiderations officer who was not involved in making the primary determination.

It is not a court process, it is a second look at the information and evidence on the claim to ensure the correct determination was made.

I expect to complete my review and issue a reviewable decision explaining my findings early next week.

If required further information is available at <https://www.comcare.gov.au/claims/disagree-determination/reconsideration>.

Kind Regards

Bernadette White

Assistant Director

Reconsiderations and Appeals

Claims Management Group | Comcare

I need representation of a no-win no fee lawyer.

You need to urgently fill out this form if you take on this case:

In addition I ask you to reconsider this evidence I have rebutted:

In addition to THAT there is a conspiracy that has its genesis in my former partner who is protected by ASIO as he worked there as a project manager.

I have requested whistleblower status for the many crimes and conspiracy to pervert the course of justice.

I cannot even report these crimes to the police.

This is appealing.

I need you to act firm, and not be held captive by the powers that be.

This TPD from Comcare is worth a damn lot of money.

I can easily prove I am insane.

I have a diagnosis of schizophrenia bi polar add panic disorder personality disorder and adjustment disorder and major depressive disorder plus generalised anxiety disorder.

I need you to confirm:

- 1) You will take this on and be my rep
- 2) you will act without prejudice or control by the powers that be on my behalf
- 3) You have acknowledged all of this material.

Please call me back URGENTLY otherwise they will take this through to a determination (which is in house).

I deserve workers compensation and TPD.

,

Please help me I am homeless

Rich McLean

On 8 Jun 2021, at 12:02 pm, Michelle Antunovich
<Michelle.Antunovich@slatergordon.com.au> wrote:

Hi Richard,

As discussed, this is my email.

Kind Regards,

Michelle Antunovich Support Team Leader <image001.jpg> <image002.jpg> <image003.jpg> <image005.jpg>	<image004.png>	SLATER AND GORDON LAWYERS Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131 D (02) 9799 5611 T '+61 2 9799 5611 F (02) 9799 2488 W slatergordon.com.au

From: Michelle Antunovich
Sent: Friday, 4 June 2021 10:06 AM
To: Dr Rich Mclean <rich@richmclean.com.au>
Cc: Richard McLean <richarddrawsstuff@gmail.com>
Subject: RE: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

Dear Richard,

We are unable to access the Determinations. You have sent through emails with a picture of the PDF documents of the determinations but we cannot access them.

Please forward through the Determinations on their own.

Thanks

[<image005.jpg>](#)

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Wednesday, 2 June 2021 2:09 PM
To: Michelle Antunovich <Michelle.Antunovich@slatergordon.com.au>
Cc: Richard McLean <richarddrawsstuff@gmail.com>
Subject: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

****Highly confidential emailed to other witnesses and myself as evidence it has been sent****

Hi Michelle.

I have an appointment with Gabriella next Tuesday at midday.

Please treat this email as highly confidential bound by legal privilege and also that it is utterly necessary to be sighted and valued before my appointment next week.

thanks

I wanted to provide some important documents for here to review.

One is the official rejection letter.

Two is how to appeal

Third is my record of an incomplete application that was submitted to Comcare.

Fourth is confirmation that workcover guarantee I am with Slater and Gordon.

The last is some sound recordings I have made of speaking with Lara and Amy both of Comcare. (Actually I will provide this evidence later)

If it is for my legal privilege I have a right to record conversations as an exemption to the surveillance devices 1999 legislation.

In addition to that they know they were being recorded.

In the recordings, you can clearly sense my frustration and the process of them 'kicking the can down the road' because they know I have been maimed via a conspiracy as such, or an institutional, across the board decision to deny me justice and my reputation and any prosperity.

This is linked to a medical malpractice case in which there was a cover up.

It is additionally linked to the fact my millionaire former partner left me five years ago after I spent my nest egg on him - I have evidence he has committed tax fraud and serious crime - and he left me homeless and squatting with his dying dog.

His role was a project manager at ASIO where his boss was David Irvine (Australian Secret Service).

This is all related, is why I record evidence.

I have stated a whistleblower case, that is framed by the knowledge I have and that I am rejected by all local mid and national Government agencies - but already been rejected by:

- The Police
- IBAC
- The Victorian Inspectorate
- The Commonwealth Ombudsman

In this way the powers that protect those with money power and privilege and cover up their crimes have ultimate power here.

My emails have been hacked, I am homeless and squatting. I had nothing left to lose that to be a whistleblower and afforded protection.

The initial financial distress led me to flippantly threaten to 'top myself' (months in advance), if no one paid attention to my issues, I was not serious but I was distressed at becoming bereft of prosperity and my reputation ruined by this 'movement.'

No one did investigate, which is what I wanted to get justice. Slater and Gordon are complicit in not acting for me despite a very solid case(s0 so I

am rationally paranoid, you will act with the same methodology - reject me, or kick the can down the road deceptively to ruin me.

However my family incarcerated me - where I told my story. They tried to numb me up with drugs, because they thought I was psychotic. The discharge notes of the hospital state clearly however, I am neither delusional nor psychotic. They gave me a diagnosis of 'adjustment disorder', which is a rational and appropriate reaction to the stressors I have had for at least the last ten years, and the last five years battling.

Thinking 'the conspiracy' had won, I then tried to suicide. I was found with no observable pulse. I was going to die a human rights campaigner I felt so strongly about it. I thought better to die and the coroner record these crimes as real and be remembered as an ethical human rights campaigner and victimised by the system, which I knew would occur.

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This is why they are complicit in this conspiracy to pervert the course of justice.

Now everyone is running scared as I am closing in.

So:

- Issue one of my workcover claim with NDIA is your issue, but it is framed by a wider conspiracy to pervert the course of justice.
- My whistleblower statement - which can be viewed at www.richmclean.com.au
- Has been ignored by every level of Government, rendering me a non member of a democratic society.

I actually believe they will kill me - and I have evidence of that.

When you consider this case, beware I have bought up things with Slater and Gordon before like the original malpractice cover up from Dr Whitaker in 2018 - and you and every other lawyer place rejected me.

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I don't mean to threaten anyone - I am a nice person framed by an impossible and literally unbelievable situation.

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- 2) all the evidence published and gridlocked - I will be surprised - but not if the powers that be maim you as another pawn in their plans to destroy me.

And in that way, you will be added to the list of complicit identities seeking to maim me in all ways.

I look forward to talking with you next week.

Regards,

Dr Rich McLean

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

**Rich is a registered NDIS Therapeutic Support Provider,
as an Artist-Life-Coach, Author, & Advocate, in
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NDIS Registered Provider ID: 4050046572

ABN: 72066207615

Please note:

*Slater and Gordon Lawyers remain open to service all new and existing clients with their legal claims. In response to Covid-19 health and safety guidelines, our legal teams will be working from home so it is important that you send all correspondence and documents to me by **email**.*

To assist with social distancing, our meetings will continue by phone or video conference if you prefer. If you need to speak to me, please do not hesitate to call me directly on my usual number.

For other law firms, please note that we will only be accepting service of documents received digitally.

Slater and Gordon Lawyers - <http://www.slatergordon.com.au>

If our bank account details change we will notify you by letter, phone call or face-to-face but never by email.

This e-mail (and any attachments) is for the exclusive use of the addressee and may contain information that is privileged, confidential or protected by copyright.

If you are not the addressee or the person responsible for delivering this e-mail to the addressee, you must not disclose, distribute, print or copy this e-mail and the contents must be kept strictly confidential.

If this e-mail has been sent to you in error, kindly notify us immediately on (03) 9602 6888, or by return e-mail and permanently destroy the original.

Electronic mail is not secure and there is also a risk that it may be corrupted in transmission. It is therefore your responsibility to check this e-mail (and any attachment) carefully for corruption and viruses and if there are any errors to contact us immediately. We do not accept liability for any loss or damage caused by such lack of security.

Slater and Gordon collects personal information to provide and market its services.

For more information about use, disclosure and access, see our privacy policy at [http://](http://www.slatergordon.com.au)

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FOI I did not finalise my FOI to be finished - they rejected me

Unofficial

Dear Dr McLean,

I am writing in relation to your request under the *Freedom of Information Act 1982* (the FOI Act) to the following:

QUESTION: I would like my FOI of Comsure in all regards to my name my business my calls and my emails. Please provide a timeframe, because something dodgy is going on and we both know it, its bigger than you and me combined.

On 24 May 2021, I wrote to you acknowledging your request and clarifying the scope of your request to be for all documents held on your Comcare claim file. Additionally, I stated that Comcare may provide you

with documents under administrative access arrangements instead of processing the documents formally under the FOI Act.

As you have not objected to the scope of request or the administrative release method, I am proceeding to release your claim file administratively to you outside the FOI Act.

Please see **attached** the full claim file for your claim 1326583/1.

As you have stated in the email to Lara dated 15 June 2021 that you would like your documents in paper format, I will send you the documents by post to your address on file as well.

We will take your FOI request 2021/4547 to be withdrawn and finalise the matter on our end.

Kind regards,

Jesse

Statutory Oversight Officer | Legal Group

Email: FOI@comcare.gov.au

GPO Box 9905, Canberra ACT 2601 | Ph 1300 366 979 | www.comcare.gov.au

Please note: This email and attachments may contain information subject to legal professional privilege or information that is otherwise sensitive and confidential. If you are not the intended recipient of this email, you are prohibited from using or disseminating this communication. If you have received this communication in error please notify the sender immediately and permanently deleted this email.

NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

FOI and Slater and Gordon - they ignore me

Dear Gabrielle,

Could you please acknowledge this important email.

The below FOI obviously says that there are many issues and grey areas with determining if it was 'employed'.

My question is:

If now comsure, who do I go to for work cover?

I can ay you to acknowledge these PDFs

Thanks

Dr Rich McLean

OFFICIAL: Sensitive

Dear Dr McLean,

Please see attached the decision letter and documents for your recent FOI request.

I note that the documents are the same as the ones previously released to you.

If you would like a paper copy sent to you, please let me know and provide a postal address.

Kind regards,

Jesse

Statutory Oversight Officer | Legal Group

Email: FOI@comcare.gov.au

I made a YouTube video...I must be crazy

I sent it to the disability discrimination legal centre and he said 'I like your dog';

I cant even

Placedo,

Why are you officially gaslighting me in man role?

There is very very many issues I raised.

That is only one.

Dozens, in fact.

I went to the police to report rape, tax fraud, a cover up perverting the course of justice, medical malpractice and professional negligence, and the fact that I have very nearly dies twice - once under the care of Dr Whitaker and once recently in Werribee mercy hospital.

I cannot report crimes to the police.

I cannot even manically say what is wrong for over two hours - without a singular one word statement from you that is complicit with the cover up.

q) Who covers me for workcover then if not Comcare? Every worker has workcover.

You refusal to point me in the right direction and additionally gaslight me on all the other issues are noted.

I want to speak with you.

Please call 0400639248 today

Thanks

Rich

Yes she is cute she knows it too

On 23 Jun 2021, at 10:03 am, Principal <principal@ddls.org.au> wrote:

Hi Dr Rich

I watched your YouTube presentation. I love your dog.
I thought about what you said but your receipt of income or payment for your services to clients through the NDIS does not really make you an employee of the Commonwealth, hence Comcare's decision appears to be correct.

Kind regards
Placido

Get [Outlook for iOS](#)

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Tuesday, June 22, 2021 1:18 pm
To: Principal
Subject: Urgent for placedo from Rich McLean

Hi Placido

Did you watch the video please?

I have news to share about the ombudsman complaint

Can you please call urgently at your convenience on 0400639248

Thanks

Rich McLean

On 17 Jun 2021, at 10:03 am, Principal <principal@ddls.org.au> wrote:
Hi Rich

I will watch the video. Unfortunately I don't have a number I can give other than the office number because we are still working off site.

Kind regards
Placido

Sent from my iPad

On 17 Jun 2021, at 9:36 am, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Placido can I urgently call you please?

Here it is. (Te video-this is how desperate I am)

<https://www.youtube.com/watch?v=NuECEfHA-OI>

I need you to URGENTLY intervene

Crimes I report are:

Conspiracy to pervert the course of justice

Being denied whistleblower status

Conspiracy by ASIO

Rape

Murder

I cannot report this to police - they dont listen

I am scapegoated and blacklisted

I have suffered domestic emotional physical and financial abuse

1.2 millin dollars in tax fraud

Drug dealing

A conspiracy to main me

Medical malpractice
Professional negligence ending in TWO preventable suicides
Both these were covered up
I have suicided less than 16 weeks ago - yet I am unable to complain because I have been blacklisted
I cannot get legal support
I am owed conciliatory separation and have suffered financial disability discrimination
AFCA currently hold the key to millions of dollars of issues they refuse to acknowledge -a and they know I am homeless
I have been denied my rightful life insurance income protection
I have been denied workers compensation from Comcare (I will post another email below in the desperate attempt to have legal representation by YOU

PLEASE HELP ME

I have: schizophrenia, bipolar, chronic depression, ADHD, generalised anxiety disorder, personality disorder and panic disorder. I dont agree with a lot of labels.

I have sentence and deserve that someone advocate for me.

Can this please be you?

I have received an outcome me from the ombudsman re: my whistleblower statement - they have rejected it.

I am not even on a DSP, I cant believe this. This is why the conspiracy is so big.

If one domino falls, I screw the whole country.

This is why they want to kill me.

- 1) I am mad and need help
- 2) I am not mad and I need help

I need YOUR help placed.

I expect though that you will either not have the time, 'be outside what you investigate' etc

This would be a criminal injustice.

I beg you please help me

Can you stand up for me with my workcover claim?

Here are the details:

Commcare are making a determination on my workcover claim - without me seeing a lawyer which is utterly unfair.

See this email:

OFFICIAL

Dear Dr McLean

Thank you for your email of 31 May 2021 in response to my email acknowledging receipt of your reconsideration request in relation the determination of 26 May 2021.

As indicated in the determination letter dated 26 May 2021 if you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it. In your email of 27 May 2021 you requested an appeal, this was considered a request for reconsideration.

My role in this process is to complete your reconsideration, which is an internal review of a determination which is carried out by a reconsiderations officer who was not involved in making the primary determination.

It is not a court process, it is a second look at the information and evidence on the claim to ensure the correct determination was made.

I expect to complete my review and issue a reviewable decision explaining my findings early next week.

If required further information is available at <https://www.comcare.gov.au/claims/disagree-determination/reconsideration>.

Kind Regards

Bernadette White

Assistant Director
Reconsiderations and Appeals
Claims Management Group IComcare

I need representation of a no-win no fee lawyer.
You need to urgently fill out this form if you take on this case:

<reconsideration-request-form.pdf>

In addition I ask you to reconsider this evidence I have rebutted:

<ATT Lara Fleming and Amy Delzoppo URGENT.pdf>

<evidence i can still work ndis Sorry found it Amy and Lara .pdf>

In addition to THAT there is a conspiracy that has its genesis in my former partner who is protected by ASIO as he worked there as a project manager.

I have requested whistleblower status for the many crimes and conspiracy to pervert the course of justice.

I cannot even report these crimes to the police.

This is appealing.

I need you to act firm, and not be held captive by the powers that be.

This TPD from Comcare is worth a damn lot of money.

I can easily prove I am insane.

I have a diagnosis of schizophrenia bi polar add panic disorder personality disorder and adjustment disorder and major depressive disorder plus generalised anxiety disorder.

I need you to confirm:

- 1) You will take this on and be my rep
- 2) you will act without prejudice or control by the powers that be on my behalf
- 3) You have acknowledged all of this material.

Please call me back URGENTLY otherwise they will take this through to a determination (which is in house).

I deserve workers compensation and TPD.

Please help me I am homeless

Rich McLean

On 8 Jun 2021, at 12:02 pm, Michelle Antunovich
<Michelle.Antunovich@slatergordon.com.au> wrote:
Hi Richard,

As discussed, this is my email.

Kind Regards,

Michelle Antunovich Support Team Leader <u><image001.jpg></u> <u><image002.jpg></u> <u><image003.jpg></u> <u><image005.jpg></u>	<image004.png>	SLATER AND GORDON LAWYERS Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131 D (02) 9799 5611 T '+61 2 9799 5611 F (02) 9799 2488 W slatergordon.com.au

From: Michelle Antunovich
Sent: Friday, 4 June 2021 10:06 AM
To: Dr Rich Mclean <rich@richmclean.com.au>
Cc: Richard McLean <richarddrawsstuff@gmail.com>
Subject: RE: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

Dear Richard,

We are unable to access the Determinations. You have sent through emails with a picture of the PDF documents of the determinations but we cannot access them.

Please forward through the Determinations on their own.

Thanks

Michelle Antunovich Support Team Leader <image001.jpg> <image002.jpg> <image003.jpg> <image005.jpg>	<image004.png>	SLATER AND GORDON LAWYERS Ground Floor, 6-8 Holden Street, Ashfield New South Wales 2131 D (02) 9799 5611 T '+61 2 9799 5611 F (02) 9799 2488 W slatergordon.com.au

From: Dr Rich Mclean <rich@richmclean.com.au>

Sent: Wednesday, 2 June 2021 2:09 PM

To: Michelle Antunovich <Michelle.Antunovich@slatergordon.com.au>

Cc: Richard McLean <richarddrawsstuff@gmail.com>

Subject: {Disarmed} Confidential with legal privilege from Dr Rich Mclean

Highly confidential emailed to other witnesses and myself as evidence it has been sent

Hi Michelle.

I have an appointment with Gabriella next Tuesday at midday.

Please treat this email as highly confidential bound by legal privilege and also that it is utterly necessary to be sighted and valued before my appointment next week.

thanks

I wanted to provide some important documents for here to review.

One is the official rejection letter.

Two is how to appeal

Third is my record of an incomplete application that was submitted to Comcare.

Fourth is confirmation that workcover guarantee I am with Slater and Gordon.

The last is some sound recordings I have made of speaking with Lara and Amy both of Comcare. (Actually I will provide this evidence later)

If it is for my legal privilege I have a right to record conversations as an exemption to the surveillance devices 1999 legislation.

In addition to that they know they were being recorded.

In the recordings, you can clearly sense my frustration and the process of them 'kicking the can down the road' because they know I have been maimed via a conspiracy as such, or an institutional, across the board decision to deny me justice and my reputation and any prosperity.

This is linked to a medical malpractice case in which there was a cover up.

It is additionally linked to the fact my millionaire former partner left me five years ago after I spent my nest egg on him - I have evidence he has committed tax fraud and serious crime - and he left me homeless and squatting with his dying dog.

His role was a project manager at ASIO where his boss was David Irvine (Australian Secret Service).

This is all related, is why I record evidence.

I have stated a whistleblower case, that is framed by the knowledge I have and that I am rejected by all local mid and national Government agencies - but already been rejected by:

- The Police
- IBAC
- The Victorian Inspectorate

- The Commonwealth Ombudsman

In this way the powers that protect those with money power and privilege and cover up their crimes have ultimate power here.

My emails have been hacked, I am homeless and squatting. I had nothing left to lose that to be a whistleblower and afforded protection.

The initial financial distress led me to flipantly threaten to 'top myself' (months in advance), if no one paid attention to my issues, I was not serious but I was distressed at becoming bereft of prosperity and my reputation ruined by this 'movement.'

No one did investigate, which is what I wanted to get justice. Slater and Gordon are complicit in not acting for me despite a very solid case(s0 so I am rationally paranoid, you with act with the same methodology - reject me, or kick the can down the road deceptively to ruin me.

However my family incarcerated me - where I told my story. They tried to numb me up with drugs, because they thought I was psychotic. The discharge notes of the hospital state clearly however, I am neither delusional nor psychotic. They gave me a diagnosis of 'adjustment disorder', which is a rational and appropriate reaction to the stressors I have had for at least the last ten years, and the last five years battling.

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And in that way, you will be added to the list of complicit identities seeking to maim me in all ways.

I look forward to talking with you next week.

Regards,

Dr Rich McLean

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572

ABN: 72066207615

On 17 Jun 2021, at 9:19 am, Principal <principal@ddls.org.au> wrote:
Hi Rich

Do you mean there is a video on YouTube about your problem?
Perhaps send me the link to the YouTube video first.

Kind regards
Placido

Sent from my iPad

On 16 Jun 2021, at 7:05 pm, Dr Rich McLean <rich@richmclean.com.au> wrote:

I got a million problems

Can you call?

Or do you want the YouTube video?

Dr Rich McLean
Human Rights Awarded Autobiographer & Registered Therapeutic
Supports Provider for the NDIS | Artist-Life-Coaching | Traditional
drawing / Digital illustrator / International Recovery Expert &
Advocate

Live your best life!

Discover me @ www.richmclean.com.au
Call me @ +61 400639248
Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that
nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of
the land where we live, learn & work.

I'm out and about! This email is sent from my phone

Lawyer

Bernadette

In the below email you give a notice to act for the "employee" for a lawyer

Thanks for that

But they have rejected me for not one but two reasons

One: I am not an employee.

I don't know how you could offer that service if I was not considered a chance for a benefit

Please explicate

The other is to do with my "illness" which is outright incorrect

Please let me know if you would like me to forward you all my work over claims...actually-I will

They are up to date, and the password is 08041973

Can you please let me know you are in receipt of these-and also what Comcare has registered as my illness from the forms

Please treat this as urgent

I will send them now

Thanks

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic Supports Provider for the NDIS | Artist-Life-Coaching | Traditional drawing / Digital illustrator / International Recovery Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

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I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

On 29 Jun 2021, at 10:38 am, Dr Rich McLean <rich@richmclean.com.au> wrote:

Hi Bernadette

Because I have been robbed of income due to Comcare not paying income protection or work cover

I am homeless

I know this is what the powers that be want

However

I have my phone

Please extend it for another month to enable me to respond

It is only just and fair

Please respond that this will be possible

Thanks

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic
Supports Provider for the NDIS | Artist-Life-Coaching | Traditional
drawing / Digital illustrator / International Recovery Expert &
Advocate

Live your best life!

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the land where we live, learn & work.

I'm out and about! This email is sent from my phone

On 29 Jun 2021, at 10:24 am, Reconsiderations.Team
<Team.Reconsiderations@comcare.gov.au> wrote:

OFFICIAL

Dear Mr McLean

I am writing to follow up my email of 17 June 2021, to date we have not
received a response from you. If you would like Comcare to consider an
extension of time to submit information in relation to your reconsideration
request please advise via reply email the date you would like the
extension to.

Please note if we do not receive a response from you by close of
business Thursday 1 July 2021 we will proceed with the reconsideration
based on the information available.

Kind regards

Bernadette

From: Reconsiderations.Team
Sent: Thursday, 17 June 2021 5:11 PM
To: Dr Rich Mclean <rich@richmclean.com.au>
Cc: General.Enquiries <Enquiries.General@comcare.gov.au>
Subject: RE: Reconsideration request 1326583/1 [SEC=OFFICIAL]

OFFICIAL

Dear Dr McLean

Thank you for your email

In reference to your request to nominate a lawyer, I have included below a link to Comcare's authority to act form. If it is your preference that your lawyer only act on your behalf in relation to the reconsideration we are happy to receive an email from yourself or your lawyer providing their details and the scope of the authority.

[Authority \(or Removal of Authority\) to Act on Employee's Behalf form \(comcare.gov.au\)](#)

In terms of approving and extension of time to submit information in relation to your reconsideration request. To allow me to consider this request further could you please let me know via reply email the date you would like the extension to.

Kind Regards

Bernadette

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 17 June 2021 8:37 AM
To: Reconsiderations.Team <Team.Reconsiderations@comcare.gov.au>
Subject: Re: Reconsideration request 1326583/1 [SEC=OFFICIAL]

Dear Bernadette,

I have yet to provide my evidence OR my lawyer representing me.

Please send me the form to nominate my lawyer

Also- DO NOT proceed until I give my evidence and appoint my lawyer please

Can you confirm this by COB today

thanks

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

‘The bad news is - nothing is permanent, however the good news is - nothing is permanent.’

NDIS Registered Provider ID: 4050046572

29 June, I am going bananas...I keep forgetting what's happened

Here are my workcover forms

Dear Bernadette (CC Lara Fleming)

Can you please confirm;

That because you have sent me an authority to act for the “employee” for a lawyer that Comcare is in a “grey area” about considering me an employee, which is one of the basis my claim is rejected

Also that it be acknowledged that the “illness” that is in the rejection letter is utterly wrong

Please refer to the following certificates

Then-re-send the decision to reject my application with the correct issue on it so it is crystal clear and I can move forward with my opposable to the rejection

I cannot do that until the paperwork from your side is correct

Thanks

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic Supports Provider for the NDIS | Artist-Life-Coaching | Traditional drawing / Digital illustrator / International Recovery Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

Begin forwarded message:

From: enquiries@northsideclinic.net.au
Date: 29 June 2021 at 9:29:22 am AEST
To: rich@richmclean.com.au
Subject: WC Cert

Password to open attachment is your date of birth,ddmmyyyy.
Regards

30 June Hasa legal reject me

Hi Rich

Thank you for your recent enquiry.

Unfortunately, your enquiry falls outside our area of specialisation. We are therefore unable to assist you in your enquiry.

For your convenience, listed below is the Law Society Referrals Service that is free to contact and will provide you with contact details of lawyers and/or firms who practise in the areas of law you are seeking:

Law Institute of Victoria

Contact Number: [\(03\) 9607 9550](tel:(03)96079550)

Email: referrals@liv.asn.au

Website: [click here](#)

Kind regards,



	1800 518 114
	claims@hsalegal.com.a u
	hsalegal.com.au

--

I speak with PK Simpson lawyers

Hi Jack.

Mine is a complex one.

I'll share here:

Please excuse all the info.

Contained is:

- 1) HCF latest response
- 2) Comcare outcome (rejection I am URGENTKY appealing and need your help!)
- 3) Document for you to sign to represent me
- 4) The national ombudsman refuse to let me be a whistleblower (extended issues)

5) Tim Gos from AFCA and why he will not consider my issues (That add up to millions of dollars!) The HCF case is before this as well as Australiansuper (TAL)

6) The response from The Australian human Rights Commission (is this even legal?), that they hand-balled an agreed conciliation to Australian super (underwriter TAL), in effect giving them over a million dollars.

I need a senior lawyer to engage all this and please for the mercy of heaven see I am a victim here, and that the lawyer or firm who intervenes now will be very well off!

Davina,

Thanks for the chat.

This is an extremely fortunate time for you to intervene.

Please find below: The latest HCF response:

I will also send the Comcare rejection I am fighting at the moment.

If I get Comcare workers compensation its \$5000 + a month for the rest of my life (possibly if TPD), (bearing in mind I have suicided twice and on a DSP).

If Comcare comes through HCF will pay 'income assist' - that is \$5785 per month from jan 22 2021 for a year over \$75K.

For the whole year it is \$75k+

The matter(s) if before AFCA, however as you know, they will not respond to me in any way and threaten to drop all my cases if I contact them.

I will give you the Comcare outcome here:

It is to do with:

The legislation at:

<https://www.legislation.gov.au/Details/C2019C00158>

This is the '

Safety, Rehabilitation and Compensation Act 1988

They have not specified why I do not suit it. I need to be covered by someone...I justify it in many ways.

If I can get past this hurdle - then it is a multi millionaire dollar TPD payout.

I also copy/past and email from Tim. Gos from AFCA who acts in conformity to hold all these cases up unless I get an advocate. (See below).

In addition to these two cases, there is the case of Australia Super who's underwriter is TAL, they were supposed to come to a conciliation with Australian Human Rights Commission and myself, but denied it, and AHRC hand balled them the outcome in favour of them, and they are supposed to mbe impartial.

They already had the paperwork (legislation) made up to send me, so it seemed like it was prejudiced from the start,.

Paper work from AHRC:

I will send all the AFCA cases at a later date.

Thanks so much

Here is the authority to act for Comcare:



Australian Government

Comcare

AUTHORITY/REMOVAL OF AUTHORITY TO ACT ON EMPLOYEE'S BEHALF

This form is used to collect information needed when an employee advises Comcare that they have legal representation or some other form of representation such as family members, a union delegate or another person, to represent them in claims matters or to deal with Comcare on their behalf.

This form also allows injured workers to revoke any previous authorities for a representative to deal with their claim.

EMPLOYEE'S DETAILS

Your Comcare claim reference number(s)			
Family name			
Given name(s)			
Your residential address			
	State	Postcode	
Home phone number	Mobile		

REPRESENTATIVE'S DETAILS

Title (e.g. Mr, Mrs, Ms)	Family name		
Given name(s)	Date of birth	(for identification purposes only)	
Postal address			
	State	Postcode	
Contact number			
Relationship with injured worker			

I ☐ GIVE OR ☐ NO LONGER GIVE PERMISSION FOR THE PERSON NOMINATED IN THIS FORM TO:
(please tick the appropriate box in the statement)

- ☐ Act on my behalf (this includes receiving all correspondence and making decisions relating to my claim including but not limited to claiming benefits, requesting reviews, requesting personal information)
- ☐ Discuss all matters relating to my claim

EMPLOYEE'S DECLARATION

I declare that the information I have supplied on this form is true and accurate. I am aware that I must notify Comcare in writing if I wish to amend or revoke this authority.

Signature		Date	/ /
-----------	--	------	-----

I NEED TO DO THIS BY TOMORROW

OFFICIAL

Dear Dr McLean

Thank you for your email of 31 May 2021 in response to my email acknowledging receipt of your reconsideration request in relation the determination of 26 May 2021.

As indicated in the determination letter dated 26 May 2021 if you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it. In your email of 27 May 2021 you requested an appeal, this was considered a request for reconsideration.

My role in this process is to complete your reconsideration, which is an internal review of a determination which is carried out by a reconsiderations officer who was not involved in making the primary determination.

It is not a court process, it is a second look at the information and evidence on the claim to ensure the correct determination was made.

I expect to complete my review and issue a reviewable decision explaining my findings early next week.

If required further information is available at <https://www.comcare.gov.au/claims/disagree-determination/reconsideration>.

Kind Regards

Bernadette White

Assistant Director

Reconsiderations and Appeals

Claims Management Group | Comcare

I have five cases before AFCA and this is their position:

THIS IS WHY I NEED YOU

Dear Mr McLean

I refer to your recent emails and my letter dated 21 May 2021. We have previously confirmed that AFCA will no longer engage with you by phone or in writing. However, AFCA will consider reopening and progressing your complaints if you appoint a third-party representative to act on your behalf. Should that occur, AFCA will communicate with you only through your nominated third-party representative.

We have provided you with an agent authority form (copy attached) to be completed and returned to AFCA which will enable us to communicate with your nominated representative. We understood you were in the process of arranging this with your father, however we are yet to receive this completed authority form. Until this is received, AFCA will not be communicating further regarding your closed complaints for the reasons outlined in my letter dated 21 May 2021.

Yours faithfully

Tim Goss

Head of Service Delivery

www.afca.org.au



AFCA continues to provide fair, independent and effective solutions for financial complaints during the COVID-19 pandemic.

Keep us updated – if your situation changes or you need more time to provide a response, please contact your case worker or send an email to info@afca.org.au.

AFCA acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elder's past, present and future.

From: Rich McLean <richarddrawsstuff@gmail.com>

Sent: Monday, 21 June 2021 5:17 PM

To: Tim Goss <tgoss@afca.org.au>; Karyn Bilney <missk007@yahoo.com>; Info@afca.org.au

Cc: Richard McLean <rich@richmclean.com.au>

Subject: Re: Your recent correspondence with AFCA

[CAUTION: EXTERNAL EMAIL] DO NOT reply, click links, or open attachments unless you have verified the sender and know the content is safe.

Dear Tim,

I have not had enough time nor prosperity for an internet connection sometimes.

Plus I am squatting which you well know.

You also well know this is for over 7 cases before AFCA which are unresolved and probably worth a million dollars - some have been there for nearly two years too

I have cc this to Karyn. She will be my contact person from here on in the impossible (maybe not for her) mission to get justice on these issues that is not only just but goes against the malicious movement to rob me of all prosperity.

I'll let Karyn take it from here.

I will provide her all the evidence and lease with her.

Also - I did email you another case, but you have ignored it, proving once again the gaslighting and rejection I face from institutions.

I cannot afford or bear to have thee cancelled and firmly ask (cc Karyn) to urgently take all of these issues to the ombudsman.

I am certain Karyn will be able to work with you to bring these injustices to urgent attention framed by my poverty.

Please acknowledge the most recent claim too please.

Thanks Tim, thanks Karyn.

Karyn over to you!

Tim, please acknowledge this email urgently to myself and Karyn and it is noted that these cases are way overdue for an outcome which is a mechanism to maim me in all ways financially

Or so it seems in bizarre co-incidence

Rich

On 21 May 2021, at 6:46 pm, Tim Goss <tgoss@afca.org.au> wrote:

Dear Dr McLean,
I refer to our recent discussion and your email of 20 May 2021. Please find attached information relating to your complaints with AFCA.

Yours faithfully

Tim Goss

Head of Service Delivery

www.afca.org.au

<image001.png>

AFCA continues to provide fair, independent and effective solutions for financial complaints during the COVID-19 pandemic.

Keep us updated – if your situation changes or you need more time to provide a response, please contact your case worker or send an email to info@afca.org.au.

AFCA acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elder's past, present and future.

IMPORTANT The contents of this email (including any attachments) are confidential and may contain privileged information. Any unauthorised use of the contents is expressly prohibited. If you have received this email in error, please notify us immediately by Telephone: 1800 931 678 (local call) or by email and then destroy the email and any attachments or documents. Our privacy policy is available on our website.

<785105_20210521_19819666.pdf><785105_20210521_19819141.pdf>

They do not understand

not much time

Cheetrs

RM

On 2 Jul 2021, at 2:45 pm, Jack Yow <jyow@pksimpson.com.au> wrote:
Hi Rich,

You need to have been diagnosed by a medical practitioner with an injury/illness when you were employed.

That needs to be reason why you couldn't/can't work any longer.

So your employer's (company) name at the time you were diagnosed is very important for us to open a file a for you.

Previous legal Representation:

Client:

Previous Name:

DOB:

Address:

Address on License:

Contact:

Second contact:

Email:

The work history is as follows:

- Injury/Illness
- DOI/date of initial diagnosis
- Employer as at DOI/initial diagnosis:
 - Role:
 - Duties:
 - Hrs worked prior to DOI:
 - Started there:
 - Reasons for leaving:
- Further employment/RTWs with different employers?
- Last Day Worked:
 - Normal duties:
 - Light/alternate duties:
- Super Fund: membership number:
- TFN:

Treating doctors:

- Does your GP say you can't go back to your usual job?

Qualifications:

If you can fill this out, that'd be great.

I can call you once you send this back.

Does that work for you?

<pksimpson194
d.jpg>

Level 11, 162 Goulburn Street, Sydney NSW 2010
p : (02) 9299 1424 f : (02) 9299 1566 | DX 300 Sydney

e : jyow@pksimpson.com.au

w : www.pksimpson.com.au

Homer doesn't work here but P.K. does

 Please consider the environment before printing this e-mail

<pksimpson-go-green-signature-email-08_latest13f4.jpg>

From: Dr Rich Mclean [<mailto:rich@richmclean.com.au>]

Sent: Friday, 2 July 2021 2:32 PM

To: Jack Yow <jyow@pksimpson.com.au>

Subject: Re: Our conversation about TPD

Hi Jack.

Sorry was distracted before.

What do you mean IF I meet the requirements?

I'll speak to you at 3pm

Thanks

Rich

On 2 Jul 2021, at 11:25 am, Jack Yow <jyow@pksimpson.com.au> wrote:

Hi Rich,

Would you like to proceed with opening a TPD file?

If you meet the requirements and we open a TPD file. You're welcome to put other concerns to your solicitor in the initial consultation.

Thanks,

Jack.

<pksimpson138
a.jpg>

Level 11, 162 Goulburn Street, Sydney NSW 2010
p : (02) 9299 1424 f : (02) 9299 1566 | DX 300 Sydney
e : jyow@pksimpson.com.au
w : www.pksimpson.com.au
Homer doesn't work here but P.K. does
 Please consider the environment before printing this e-mail

<pksimpson-go-green-signature-email-08_latest2959.jpg>

From: Dr Rich Mclean [<mailto:rich@richmclean.com.au>]

Sent: Friday, 2 July 2021 8:27 AM

To: Jack Yow <jyow@pksimpson.com.au>

Subject: Re: Our conversation about TPD

RE: Bernadette from Comcare:

Hi Bernadette

Because I have been robbed of income due to Comcare not paying
income protection or work cover

I am homeless

I know this is what the powers that he want

However

I have my phone

Please extend it for another month to enable me to respond

It is only just and fair

Please respond that this will be possible

Thanks

codea.com

Begin forwarded message:

From: Dr Rich Mclean <rich@richmclean.com.au>

Subject: ATT: Georgia - Fwd: claim number: 1326583/1
determination outcome letter [SEC=OFFICIAL:Sensitive]

Date: 7 July 2021 at 12:51:03 pm AEST

To: gcomans@codea.com.au

Reply-To: Richard McLean <richarddrawsstuff@gmail.com>

Hi Georgioa.

here is the determination and the outcome as well.

I hope to hear back from you by tomorrow.

Kindly

Dr Rich Mclean

0400639248

Begin forwarded message:

From: Reconsiderations.Team

<Team.Reconsiderations@comcare.gov.au>

Subject: RE: claim number: 1326583/1 determination outcome
letter [SEC=OFFICIAL:Sensitive]

Date: 7 July 2021 at 9:00:16 am AEST

To: Dr Rich Mclean <rich@richmclean.com.au>

Cc: General.Enquiries <Enquiries.General@comcare.gov.au>

OFFICIAL: Sensitive

Dear Dr McLean

In response to your email below and your email of 29 June 2021 requesting an additional 30 days to allow you to seek legal support and to provide additional information for your reconsideration request. I have approved your request for extension to **29 July 2021**. Please provide all information you would like to be considered by close of business 29 July 2021. We will then commence the reconsideration in relation to the determination of 26 May 2021.

In response to your specific questions below I refer you to the determination dated 26 May 2021 (copy attached for ease of reference) which relevantly states:

When assessing a claim, Comcare needs to be satisfied that several criteria are met. The first criteria being confirmation that the person is an 'employee' in accordance with section 5 of the SRC Act.

Subsection 5(1) of the SRC Act defines an employee to mean:

- a) A person who is **employed by the Commonwealth or a Commonwealth authority**, whether the person is **employed under a law of the Commonwealth** or of a Territory or **under a contract of service or apprenticeship**; or*
- b) A person who is employed by a licensed corporation.*

Kind Regards

Bernadette

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Tuesday, 6 July 2021 7:29 PM
To: Lara Fleming <Fleming.Lara@comcare.gov.au>;
Reconsiderations.Team <Team.Reconsiderations@comcare.gov.au>
Cc: General.Enquiries <Enquiries.General@comcare.gov.au>
Subject: Re: claim number: 1326583/1 determination outcome letter
[SEC=OFFICIAL:Sensitive]

Dear reconsiderations team,

I hope you are all well! Firstly apologies for not being in touch I have been unwell and bereft of an internet connection and sometimes homeless.

(This is not my final rebuttal to the decision...just touching base and gaining clarity).

I refer to the case of determination from Amy and overseen by Lara that has the outcome of me not being considered for workcover or any compensation for my workplace in jury with Comcare because you consider me not to be an 'employee'.

In addition it is rather unclear whether this is in relation to the issue I faced that stopped me from working, in your words, 'anxiety and depression', which is officially incorrect, and if it was present to some degree - arose out of my line of work due to my own sexual abuse case been thrown out by a magistrate whilst I was caring from 1-6 times a week for a very sick and marginalised man who had severe childhood sexual abuse issues and whom I completed his VOCAT evidence for, a process that took over a year and a half.

You have rejected my claim framed by and under:

'Safety, Rehabilitation and Compensation Act 1988'

At this link:

<https://www.legislation.gov.au/Details/C2019C00158>

Before I make my final application of appeal, can you please articulate to what part of this act are you referring?

It is quite large. I had a read and have made some observations below.

As I can see, regarding:

' (1) In this Act, unless the contrary intention appears:

Chief Minister means the Chief Minister for the Australian Capital Territory.

employee means:

- (a) a person who is employed by the Commonwealth or by a **Commonwealth authority**, whether the person is so employed under a law of the Commonwealth or of a Territory or under a **contract of service** or apprenticeship; or
- (b) a person who is employed by a licensed corporation.'

I am under a contract of service from and for the NDIA. I have provided this to you. (Attached again at the end of this email).

I was absolutely under the auspice of a Government authority, the NDIA. They were the auspice that forwarded me an advance payment complete with ID number and advance payment regarding COVID. Advance payments are not given to some one who is not a regular employee or makes money via work for said auspice consistently and over time.

In regards to your comment relating to my employee status you wrote to me in email that:

'Subsection 5(1) of the SRC Act defines an employee to mean:

1. a) A person who is **employed by the Commonwealth or a Commonwealth authority**, whether the person is **employed under a law of the Commonwealth or of a Territory or under a contract of service or apprenticeship**; or
2. b) A person who is employed by a licensed corporation.'

The NDIA is absolutely a Commonwealth authority.

In fact, it is a statutory agency that is Government run and funded. It is a corporate body functioning as a government agency.

'The National **Disability** Inclusion Strategy 2017-2021 (**NDIS**) is a whole-of-**government** approach to improving the lives of persons with disabilities. ... The **Department** of Children, Equality, **Disability**, Integration and Youth is the coordinating **body** for the **NDIS** (as of October 2020)'

In addition the NDIA does function as a Government agency:

The **NDIA** is the National Disability Insurance Agency. **It is a government agency** whose role **is** to implement and manage the **NDIS** and ensure people with disability continue to get the support they need.

Therefore I am unsure what you mean by this.

In regards to my injury being rejected for what you say (which was in actual fact written in haste on the GP's form yet incorrect), 'anxiety and depression', this was only but a part.

Is that the basis that you are denying me the claim, or is it because you do not consider me an employee?

In actual fact, due to the financial distress of not being covered and becoming homeless, I was hospitalised at Werribee mercy for over two weeks after continuing distress of not being able to work and the effect my working life had had on me over numerous years framed by my own person journey of attempting to gain adult acknowledgement for my own child sexual abuse issue, whilst caring for another person for over a year and a half who had the same issue.

Despite previous incorrect diagnosis it was noted in the discharge notes that my ideas of a 'conspiracy to pervert the course of justice' and other themes, in the first instance were considered delusional and paranoid yet the final observation was that this is not the case, and that I am neither 'psychotic' nor 'delusional', and in fact the label attributed to my never described before issue was 'adjustment disorder.' This manifestation arose from my work with the NDIA and the NDIS, and such forth, I should absolutely be covered for work cover.

Please be aware that this response is not my final rebuttal and that I aim to seek the help of a legal representative, so if you can please be patient with me at this time.

Additionally I have not been able to address this as quickly as I would have because of a lack of prosperity in part caused by my inability to be rightfully granted compensation for a work injury.

I will be in touch in the next week or so but for the meantime could you please acknowledge this email and could you also as a reminder distinguish:

- 1) What elements of the act are you specifically referring to that make sense
- 2) Whether it is because you do not consider me an employee, or the 'injury' of 'anxiety and depression' that you have quoted is the reason, or is it a combination of the two?

It is because of this indistinguishable grey area I also have not been able to correctly identify on exactly what grounds against for which I am making my appeal.

Thanks for your time and hope you are well.

Kindly

Dr Rich McLean

rich@richmclean.com.au

Additionally, because of the conspiracy to pervert the course of justice in which I have made a whistleblower statement to the ombudsman...my emails are hacked and intercepted and emails from ComCare have been noted by me to have disappeared off my server and email client. To make sure emails are getting to me can you please also email:

richarddrawsstuff@gmail.com

‘
=

On 28 May 2021, at 12:42 pm, Lara Fleming
<Fleming.Lara@comcare.gov.au> wrote:

OFFICIAL: Sensitive
Good afternoon Richard,

I'm writing to confirm that I have notified our Reconsiderations team of your request for reconsideration. They have been cc'd into this email and will acknowledge your request shortly.
Kind regards,

Lara Fleming
Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

Comcare
GPO Box 9905, Canberra, ACT 2601
1300 366 979
www.comcare.gov.au

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can contact us via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our COVID-19 guidance.

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act. NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

They refuse to acknowledge email

Begin forwarded message:

From: Dr Rich Mclean <rich@richmclean.com.au>

Subject: Fwd:

Date: 7 July 2021 at 8:43:54 pm AEST

To: claims@hsalegal.com.au

Cc: Richard McLean <rich@richmclean.com.au>

Dear HSA legal

Why won't you acknowledge my issue or email?

RM

0400639248

Begin forwarded message:

From: Dr Rich Mclean <rich@richmclean.com.au>

Date: 5 July 2021 at 9:37:38 am AEST

Please excuse all the info.

Contained is:

- 1) HCF response
- 2) Comcare outcome (rejection)
- 3) Document for you to sign to represent me
- 4) The national ombudsman refuse to let me be a whistleblower (extended issues)
- 5) Tim God from AFCA and why he will not consider my issues (That add up to millions of dollars)
- 6) The response from The Australian human Rights Commission (is this even legal?), that they hand-balled an agreed conciliation to Australian super (underwriter TAL), in effect giving them over a million dollars.

I need a senior lawyer to engage all this and please for the mercy of heaven see I am a victim here, and that the lawyer or firm who intervenes now will be very well off!

Davina,

Thanks for the chat.

This is an extremely fortunate time for you to intervene.

Please find below: The latest HCF response:

I will also send the Comcare rejection I am fighting at the moment.

If I get Comcare workers compensation its \$5000 + a month for the rest of my life (possibly if TPD), (bearing in mind I have suicided twice and on a DSP).

If Comcare comes through HCF will pay 'income assist' - that is \$5785 per month from jan 22 2021 for a year over \$75K.

For the whole year it is \$75k+

The matter(s) if before AFCA, however as you know, they will not respond to me in any way and threaten to drop all my cases if I contact them.

I will give you the Comcare outcome here:

It is to do with:

The legislation at:

<https://www.legislation.gov.au/Details/C2019C00158>

This is the '

Safety, Rehabilitation and Compensation Act 1988

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They already had the paperwork (legislation) made up to send me, so it seemed like it was prejudiced from the start,.

Paper work from AHRC:

I will send all the AFCA cases at a later date.

Thanks so much

Here is the authority to act for Comcare:



Australian Government

Comcare

AUTHORITY/REMOVAL OF AUTHORITY TO ACT ON EMPLOYEE'S BEHALF

This form is used to collect information needed when an employee advises Comcare that they have legal representation or some other form of representation such as family members, a union delegate or another person, to represent them in claims matters or to deal with Comcare on their behalf.

This form also allows injured workers to revoke any previous authorities for a representative to deal with their claim.

EMPLOYEE'S DETAILS

Your Comcare claim reference number(s)			
Family name			
Given name(s)			
Your residential address			
		State	Postcode
Home phone number		Mobile	

REPRESENTATIVE'S DETAILS

Title (e.g. Mr, Mrs, Ms)		Family name		
Given name(s)		Date of birth		
			(for identification purposes only)	
Postal address				
		State		Postcode
Contact number				
Relationship with injured worker				

I ☐ GIVE OR ☐ NO LONGER GIVE PERMISSION FOR THE PERSON NOMINATED IN THIS FORM TO:

(please tick the appropriate box in the statement)

- ☐ Act on my behalf (this includes receiving all correspondence and making decisions relating to my claim including but not limited to claiming benefits, requesting reviews, requesting personal information)
- ☐ Discuss all matters relating to my claim

EMPLOYEE'S DECLARATION

I declare that the information I have supplied on this form is true and accurate. I am aware that I must notify Comcare in writing if I wish to amend or revoke this authority.

Signature		Date	
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I am getting issues confused

Pauline,

This is a shocking display of corruption in favour of money power and privilege.

It is illegal unethical and unfair - that I was able to suicide in the Werribee mercy private Hospital with an agreed illegal contraband - being a glass vape pen that I slit my artery open with because I had been victimised by so many people institutions ombudsman and organisations (I yet to be proven wrong you are not one).

Here is the response that exonerates them from any wrongdoing after Ms Alex Tinter, who is a lawyer - outright refused to send me the response until it had been past a network of legal professional.

I recorded that evidence, she knew it was being recorded, and it is my right as an exemption anyway to record a conversation which defends my rights freedoms prosperity or litigation (Surveillance Act 1999-Vic).

I literally have evidence of her - working for an agent that represents the hospital, not as an impartial person who deals with health complaints as a mental health complaint commissioner.

I will share the link here of that revelation:

<MHCC OUTCOME RESPONSE MHCC 2021 00369 Outcome letter.pdf>

In addition, I responded furiously when Jackson Britt, someone I had never heard of, innocuously gave me the result here:

Dear Jackson Britt,

I am acutely aware now of why I cannot get traction with any person litigation company organisation nor Government

Tell me out of curiosity...

What do I do seeings I am utterly and totally dis-satisfied but not in the slightest surprised by MHCC's ineffective handling of this life or death and highly illegal and immoral and taboo complaint?

Especially framed by Ms Alex Tinter the 'lawyer' (which was found out by myself), who:

...was acting as a double agent in defence of the hospital who had a whole bank of lawyers power money and privilege...

Who victimised and brutalised me...

...the vulnerable person who was in a moment and time of utter weakness...

And they kicked me when I was down...

Then not satisfied having driven me to the brink of death whilst under duty of care - actively rejected and gaslighted me in that I may lose all hope and rid you of the dog nusciance you think I am!

The FOI from Werribee mercy says that the injury was 'fatal' and :

...I had no observable pulse...

How is it you can in clear conscience act in favour and illegally in dance of the hospital when me...the defenceless one...relied on the MHCC for sticking up for me and bringing a semblance of rationale and justice to this issue?

Ms Alex Tinter utterly and downright refused to send me my complaint response when it had arrived from Werribee Mercy Hospital.

That was MY response to MY complaint

It was MINE to have and YOUR ORGANISATION acted not only with gaslighting malice, but in a cruel way that lengthened week by week by week the chance I may kill myself...

Knowing full full well that I may do so...

And knowing FULL WELL that salt water clinic...the arm of Werribee mercy who were also supposed to care for me...

Waited over THREE MONTHS for me to come face to face with a psychiatrist... who STILL denied me my medication.

This whole thing is cooked - and so are you.

I am recording all my evidence.

I want you to call or email and explicate to me the reasoning for this ludicrous outcome that wants me to die like a malicious extorting DOG

...because that's the word on the street, isn't it?

Go on...

I want you to email me my original complaint and go through every step.

I'll await your reply.

If it is not within three days your name and identity along with Alex Tinter and the other people with no conscience will be added to the list of mere whoreish pawns of the evil veneer in the movement to cease any justice or prosperity for me and sit back whilst I kill myself and rot - and you will all be charged and made to beg for my exoneration

Its a ten to fourteen year jail sentence, pertverting the course of justice mate...

You know what they did with seers and agents of change archetypal and throughout history mate?

They killed them.

They have tried with me.

But I'm alive - and unless I hear from you in three days I'll have you for dinner, you sick dog

I'm waiting for you to justify this.

I have Alex tinters recording and all the other evidence

She is well and truly fucked like so many others.

...you're next in line mate.

So: now that your response is shit and utterly gaping with injustice - do you want me to destroy you now...or wait for a while...or you gonna renew that outcome and explain the 'process' by which I complain about complaint?

(Ps Im 48...I got decades in me yet to slowly bake you)

RM

On 23 Jun 2021, at 9:04 am, Help (MHCC) <help@mhcc.vic.gov.au> wrote:
Dear Mr McLean

Please find attached a letter from the Mental Health Complaints Commissioner, regarding outcome of your complaint about Mercy Public Hospitals Incorporated.

Yours sincerely,

Jackson Britt
Resolutions Administration Support Officer
Pronouns: He/Him/His
<[image001.jpg](#)>

Mental Health Complaints Commissioner
T: (03) 9032 3336 | F: (03) 9949 1506
Level 26, 570 Bourke Street, Melbourne, VIC 3000
mhcc.vic.gov.au

<[image002.jpg](#)> <[image003.jpg](#)> <[image004.jpg](#)> <[image005.jpg](#)>
<[image006.jpg](#)> <[image007.jpg](#)>

We respectfully acknowledge the [Aboriginal lands](#) on which we live and work and pay respect to Traditional Owners, ancestors and Elders.

CONFIDENTIALITY AND PRIVACY: This email and in any attachments may be confidential. If you are not the intended recipient please notify the sender immediately, delete all copies of the email

and any attachments, and do not use, print, copy or share them. The MHCC's Privacy Policy can be found at <https://www.mhcc.vic.gov.au/about-the-mhcc/privacy>

Upon this email, and numerous follow up calls and further emails: I received this response from the MHCC without the agency nor the opportunity for appeal or rebuttal of the wildly skewed interpretation exonerating the hospital from all wrong doing:

RE: CONFIDENTIAL MHCC Ref. 2021/00369 - Outcome Letter

Dear Dr McLean

Our reasons for closing this complaint are contained in our letter dated 21 June 2021.

As previously advised, the appropriate avenue for seeking review of our decisions is the Victorian Ombudsman.

Having responded to this email, we will not be responding further to any correspondence from you.

Yours sincerely
Hayley

Hayley Marano
Principal Investigator & Manager, Investigations & Review
Mental Health Complaints Commissioner (MHCC)

Pronouns: she/her/hers

We're still here

Just working remotely due to COVID-19.

Please contact us by replying to this email, sending an email to help@mhcc.vic.gov.au or leaving a message on **1800 246 054**.

We will respond as soon as possible.
Thank you for your patience.

Mental Health Complaints Commissioner (MHCC)
T: 1800 246 054 | F: (03) 9949 1506
Level 26, 570 Bourke Street, Melbourne, VIC 3000
mhcc.vic.gov.au | **1800 246 054**

Hayley manado is a principal investigator who has outright flat-denied me the opportunity to respond.

This is because they know I speak truth to power.

I remind you again Pauline, it is an abhorrent abandonment of duty of care if I am able to suicide in a hospital - after they needlessly-when they all knew full well the conspiracy to maim me by every doctor policeman and government agency is alive and well.

In this - they acutely and systemically victimised me - such was my sadness at being taken away from the only sentient thing I love now - my dog - and stripped of my phone (illegal) and not explained my rights (illegal) and blocked and rejected medication(s) I had taken for years that enabled me to do a doctorate and run a business for two years (medical malpractice and professional negligence), it is an abhorrent group mentality that is long standing systemic and malicious in order to maim me demonise me victimise me and desecrate me in every possible way.

If you DO NOT react to this and provide a concrete platform for action that results in at the extreme least an admission of guilt and apology, the very least a conciliation with Weribee mercy hospital (and all the other agencies that have rejected blacklisted and ignored ostracised excluded and rejected me),

Ot preferably act as an agent by which I may pursue overly just and due litigation - there is surely something devastatingly wrong with the man made law that you represent which is bereft of any human compassion or civility that allows encourages abides by and abets this kind of vile victimisation & discrimination.

I hope two be proven wrong...but I do not hold much hope for your courage or intentions to set the record straight out do more than 'consider' the response then predictably tell me 'it is outside the jurisdiction of what we do.'

Consistent with battling for years - I will be utterly astounded if you break from the pack and be brave and honest and stick up for a marginalised man who has spent the best part of twenty years helping other less fortunate people than himself in hundreds of talks, TV and radio presentations and interviews in recovery from trauma and a lifetime of advocacy in the mental health realm(s).

It is implausible that you actively allow a suicide in a public health institution to occur abandoning the duty of care; where the FOI from the hospital says the injury and attempt was 'fatal' and I was found unresponsive and with no pulse.

You simply as an ombudsman cannot let that be covered up via conspiracy to pervert the course of justice by another agency.

It is simply impossible? It must be.

I pray someone in this world has compassion for my worth and in addition the incredibly strong person I have had to be in order to survive such systemic malicious and vile abuse that has aided and abetted in my rejection my utter rejection of any prosperity or justice, the inability to go to the police or authorities, and the onion by onion layer domino effect of rejection that has occurred over so so many years in which I have played by the rules and I have attended the issues in the most appropriate way - and again and again I have been knocked down and left to rot - and hopefully die before I get any justice.

They aim to do this by the violence of neglect and they are succeeding, and have already done so twice.

I cant believe I am typing this; I am a celebrated human rights awarded advocate with a public profile and a PhD and I have already died twice of medical malpractice and professional neglect and

misconduct - and not only the absence of such but an INTENTIONAL movement that is endemic systemic and embedded in all agencies organisations and institutions- with the aim of killing me.

I simply cant believe it

I may well have been gaslighted to madness.

I am so isolated I made a YouTube video - hanging onto what strands of virile determination I have left to express myself and that video is here - and once you see it you will know and be aware of things and cannot be unknown and if you are a responsible and accountable ombudsman, action will occur.

Here is that video. I will beg you to view it - it is over an hour long. Can you please confirm you will watch it?

<https://youtu.be/NuECEfHA-OI>

One things is explicitly clear:

- 1) I am sick - and I need help**
- 2) I am not sick and I need help**

Lastly, (apologies for the long email) - I had an epiphany why my name has been dredged through the mud and brutalised. I wrote it in a text to my dad the other night, and I reproduce it here:

Short answer is I've been framed.

My reputation is ruined and I could not find a single person to complain you included about that Dr Whitaker debacle to have my back

This is because I have just gone over the FOI and his lawyer stated as a fact more or less...

I'm an evil genius and I made that recording on purpose and with malicious forward thinking in an elaborate plan in order to set the GP up and extort money out of him and sue him

That's what the lawyer told AHPRA- they didn't oppose it

Short of it is: I've fought to bring it to justice for so so so long- and all I did was promote the recording in the end when in utter disbelief I could not think of a case more worthy...and I actively spread the lawyers lie that everyone believes - the unspoken and invisible behind the scenes dialogue - that I'm a fucking manipulative dog who set him up for a quick buck

Not one person on this earth backed me

And that's how successful money power and privilege is in opposition to a single vulnerable person that simply was trying to ask for help

Further to that: this conspiracy of lies to pervert the course of justice actually did - again - lead me to death

In a way that is almost inconceivable...not one family member or friend has acted or complained on my behalf about that vile and malicious victimisation

My faith in humanity has taken a dive and I have been personally victimised tarred and feathered and put in a public arena to be stoned to death by thousands

Then after I die again...no one says anything

You know...because he's a mad poofter and druggo

That's my reality

I =beg of you to indulge my words and my video and:

- 1) Acknowledge me in an institutional way whilst
- 2) Respecting I am vulnerable and not made of steel with a now frail sentence
- 4) Act as an authority with agency that will depend...well...a sad person who has lost everything...friends...family...my reputation...my business...my home...

I beg of you.

Can you?

Os I can also provide evidence in the form of thousands of emails and recordings that I started to make when my gut was telling me something is so so wrong...

I knew I should have trusted it.

And I did.

Something is very wrong.

The bad thing about being rejected from the psychiatric unit where I survived death to be rejected to squatting, no money, no car, no food and no hope - to be told by your father in the first 3 minutes of being home: 'Pay the rent yourself', despite him incarcerating me exonerated me from my job, my brother, quote, 'you've got fucking problems', my sister, 'you're a drug and a schizo and get the f*^k out of all our lives' and then as an utterly vulnerable client at salt water clinic - the mental health unit in Footscray delegated to my care - waited three months and three days for me to see someone - a psychiatrist - os more than a bad public mental health system - that is a vile malicious way to kick the can down the road and tow the hospital line of denting me my medication...whilst they watch on as I self medicate...trying to hang onto life...

Its true - they want me dead

...and I am not one person's priority.

Make this your opportunity to be that change...and if not I sadly will not be surprised...extremely sad...and hopeless...but neutrally and innocuously not surprised lest the hole in my heart hurt any more if I care

Dr Rich Mclean

PS if you would indulge me I have rejections from the following :

HCC

AHPRA

NHPOPC

The Footscray Police

The Maribyrnong investigations unit

IBAC

The Victorian Inspectorate

The office of the public advocate

The commonwealth ombudsman

Jack health CEO of SANE

Patrick McGorry (bless him anyway)

Professor Gordon Parker, (Blackdog Institute)

The federal police

My insurer

AFCA have threatened to halt my claims if I dare contact them whilst I wait homeless

The banks Commbank bendigo

Mental health Complaints Commissioner

Health Complaints Commissioner

Werribee Mercy

Millenium Medical centre

The agency that represent the GP(s)

I have been banned from two clinics and forbidden to call AHPRA

I get rationally paranoid I am followed

My computer is intercepted

I cant get insurance nor workcover

Comcare reject my claim I get my funds (when I worked) from the NDIA

I could go on...

The autsrtlain human rights commission hand

balled a case to a super company

Super companies have denied me

Centrelink messed me over

I cant believe this is happening to me.

There are two genesis points I have enormous evidence of:

1) The GP medical malpractice and professional negligence cover up

2) My former partner, who's boss was David Irvine, and who brutally financially abused me physically and emotionally as well - and admitted he was

present at more that one murdert in his cocaine dealing days - he sold a house worth over 1.3 million \$ and locked it away in an offshore tax haven...and was busted by ASIO...he got a slap on the wrist and they protect their own...I wanted a conciliation with him to equitably seperate and he buried me and threatened a hit man on me and still does and I am in fear of my life - my dignity and my agency of freedom and prosperity and the abiloty to work or complain or be a democratic citizen in a democracy has already been denied

Unless you act you will be complicit

I'm sorry - I am a sensitive and lovely person...and I dont believe Ive done anything wrong.

:-(

On 5 Jul 2021, at 5:04 pm, Dr Rich Mclean <rich@richmclean.com.au> wrote:
You did not acknowledge my email, pauline.

On 25 Jun 2021, at 11:46 am, Dr Rich McLean <rich@richmclean.com.au> wrote:

Dear Pauline

It is profoundly disturbing that I was able to suicide under duty of care and be found with no observable pulse

In addition

Werrabee mercy have refused all contact

They directed me to the Health Complaints Commissioner for a conciliation

This is because I threatened to sue

They rejected me hence the mental health complaints commissioner

However

I have evidence that the mental health complaints commissioner were double agents for the hospital

Ask me for this evidence

They outright refused to give me the outcome - My response- from Werrabee nervy unless it went past their "legal team"

This is illegal inequitable unjust and unfair

I have this evidence backed up by the fact the outcome for me is:

The IS no outcome

Dying in a public place under duty of care and then being maliciously rejected of your crucial medication is medical malpractice and professional negligence

This is illegal

In addition being incarcerated to a place you then acquire golden staph is wrong

I wish for you to keep this open

This is because the MHCC are in a ploy to pervert the course of justice via conspiracy

In addition they released me seven days after death with no food no home and no money or car and it took OVER THREE and a half MONTHS to see a psychiatrist who still insisted she deny my medication

This is ludicrous

I expect you to keep this case open

It is not over

At the extreme least is an apology-likely conciliation and more likely litigation to MHCC and HCC and Mercy Hospital and all the doctors that rejected my medication they had absolute evidence that I needed

Please email me back and acknowledge this email

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered
Therapeutic Supports Provider for the NDIS | Artist-Life-
Coaching | Traditional drawing / Digital illustrator /
International Recovery Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

"The bad news is that nothing is permanent, but the good news is that nothing is permanent." - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

On 25 Jun 2021, at 9:08 am, Pauline Lionnet
<Pauline.Lionnet@ombudsman.vic.gov.au> wrote:

Dear Richard McClean

Thank you for your complaint about the processes and delays in handling your complaint to the Mental Health Complaints Commission related to your prior complaint about your treatment at Werribee Mercy Hospital. Although you raised several issues, I advised that the Ombudsman enquiry would be limited to enquiring on the progress of the complaint as it had taken some time.

I was advised yesterday by the Mental Health Complaints Commission that a formal outcome was provided to you on Wednesday 23 June. The actual outcome was not provided to me.

This concludes our enquiry.

Should you wish to discuss this further, you may call but please note I will be on leave until 1 July 2021.

Yours sincerely

Pauline Lionnet

Investigation Officer

Level 2, 570 Bourke Street

MELBOURNE VIC 3000

<https://www.ombudsman.vic.gov.au>

Phone: +61 3 9613
6222

Regional Callers (excl. mob.): 1800
806 314

Fax: +61 3 9602
4761

DX: 210174
Melbourne

Got a complaint? Watch our short [videos](#) on how we can help

The Victorian Ombudsman pays respect to First Nations custodians of Country throughout Victoria. This respect is extended to their Elders past, present and emerging. We acknowledge their sovereignty was never ceded.

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**yes...I got angry I've been
fighting for too long**

Hi Bernadette

So I am still unsure as to what you are referring to could you please identify it acutely and explicate?

I am employed under a law of the commonwealth - the NDIS and their guidelines and rules.

I do not know why you have attached b) licensed coorporation - I dont know what that has to do with the price of fish?

Additionally you have explicated this paragraph and suggested it is entirely self explanatory and obvious but it is not.

Can you please point out in plain language why I am denied?

Additionally the legislation is a large document - I have had a look through and there are many instances whereby I fir the criteria but you seem to have cherry picked a vague one for me to decipher.

Can you please end this sentence for example instead of posting vague legislation:

ComCare have denied your claim because...(insert plain language simple statement)

Additionally:

ComCare deny your claim because of your 'illness' 'anxiety' and 'depression' (True or False)

ComCare deny your claim explicitly because of these words in the legislation (insert them) and it is our opinion this is relevant to you because (insert your response)

That would be much better!

Then I will know which but to acknowledge and have something to work with.

I will email this to Lara too-because she may be able to garner responsibility to answer this directly either/or - just need compares concrete transparent and crystal clear reason.

Thanks so much, I will hear from you tomorrow or so.

Rich

On 7 Jul 2021, at 9:00 am, Reconsiderations.Team
<Team.Reconsiderations@comcare.gov.au> wrote:

OFFICIAL: Sensitive

Dear Dr McLean

In response to your email below and your email of 29 June 2021 requesting an additional 30 days to allow you to seek legal support and to provide additional information for your reconsideration request. I have approved your request for extension to **29 July 2021**. Please provide all information you would like to be considered by close of business 29 July 2021. We will then commence the reconsideration in relation to the determination of 26 May 2021.

In response to your specific questions below I refer you to the determination dated 26 May 2021 (copy attached for ease of reference) which relevantly states:

When assessing a claim, Comcare needs to be satisfied that several criteria are met. The first criteria being confirmation that the person is an 'employee' in accordance with section 5 of the SRC Act.

Subsection 5(1) of the SRC Act defines an employee to mean:

- a) A person who is **employed by the Commonwealth or a Commonwealth authority**, whether the person is **employed under a law of the Commonwealth** or of a Territory or **under a contract of service or apprenticeship**; or*
- b) A person who is employed by a licensed corporation.*

Kind Regards

Bernadette

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Tuesday, 6 July 2021 7:29 PM

To: Lara Fleming <Fleming.Lara@comcare.gov.au>;
Reconsiderations.Team <Team.Reconsiderations@comcare.gov.au>
Cc: General.Enquiries <Enquiries.General@comcare.gov.au>
Subject: Re: claim number: 1326583/1 determination outcome letter
[SEC=OFFICIAL:Sensitive]

Dear reconsiderations team,

I hope you are all well! Firstly apologies for not being in touch I have been unwell and bereft of an internet connection and sometimes homeless.

(This is not my final rebuttal to the decision...just touching base and gaining clarity).

I refer to the case of determination from Amy and overseen by Lara that has the outcome of me not being considered for workcover or any compensation for my workplace in jury with Comcare because you consider me not to be an 'employee'.

In addition it is rather unclear whether this is in relation to the issue I faced that stopped me from working, in your words, 'anxiety and depression', which is officially incorrect, and if it was present to some degree - arose out of my line of work due to my own sexual abuse case been thrown out by a magistrate whilst I was caring from 1-6 times a week for a very sick and marginalised man who had severe childhood sexual abuse issues and whom I completed his VOCAT evidence for, a process that took over a year and a half.

You have rejected my claim framed by and under:

'Safety, Rehabilitation and Compensation Act 1988'

At this link:

<https://www.legislation.gov.au/Details/C2019C00158>

Before I make my final application of appeal, can you please articulate to what part of this act are you referring?

It is quite large. I had a read and have made some observations below.

As I can see, regarding:

' (1) In this Act, unless the contrary intention appears:

Chief Minister means the Chief Minister for the Australian Capital Territory.

employee means:

- (a) a person who is employed by the Commonwealth or by a **Commonwealth authority**, whether the person is so employed under a law of the Commonwealth or of a Territory or under a **contract of service** or apprenticeship; or
- (b) a person who is employed by a licensed corporation.'

I am under a contract of service from and for the NDIA. I have provided this to you. (Attached again at the end of this email).

I was absolutely under the auspice of a Government authority, the **NDIA**. They were the auspice that forwarded me an advance payment complete with ID number and advance payment regarding COVID. Advance payments are not given to some one who is not a regular employee or makes money via work for said auspice consistently and over time.

In regards to your comment relating to my employee status you wrote to me in email that:

'Subsection 5(1) of the SRC Act defines an employee to mean:

- 1. a) A person who is **employed by the Commonwealth or a Commonwealth authority**, whether the person is employed under a law of the Commonwealth or of a Territory or under a contract of service or apprenticeship; or
- 2. b) A person who is employed by a licensed corporation.'

The NDIA is absolutely a Commonwealth authority.

In fact, it is a statutory agency that is Government run and funded. It is a corporate body functioning as a government agency.

'The National **Disability** Inclusion Strategy 2017-2021 (**NDIS**) is a whole-of-government approach to improving the lives of persons with disabilities. ... The **Department** of Children, Equality, **Disability**, Integration and Youth is the coordinating **body** for the **NDIS** (as of October 2020).'

In addition the NDIA does function as a Government agency:

The **NDIA** is the National Disability Insurance Agency. **It is a government agency** whose role **is** to implement and manage the **NDIS** and ensure people with disability continue to get the support they need.

Therefore I am unsure what you mean by this.

In regards to my injury being rejected for what you say (which was in actual fact written in haste on the GP's form yet incorrect), 'anxiety and depression', this was only but a part.

Is that the basis that you are denying me the claim, or is it because you do not consider me an employee?

In actual fact, due to the financial distress of not being covered and becoming homeless, I was hospitalised at Werribee mercy for over two weeks after continuing distress of not being able to work and the effect my working life had had on me over numerous years framed by my own person journey of attempting to gain adult acknowledgement for my own child sexual abuse issue, whilst caring for another person for over a year and a half who had the same issue.

Despite previous incorrect diagnosis it was noted in the discharge notes that my ideas of a 'conspiracy to pervert the course of justice' and other themes, in the first instance were considered delusional and paranoid yet the final observation was that this is not the case, and that I am neither 'psychotic' nor 'delusional', and in fact the label attributed to my never described before issue was 'adjustment disorder.' This manifestation arose from my work with the NDIA and the NDIS, and such forth, I should absolutely be covered for work cover.

Please be aware that this response is not my final rebuttal and that I aim to seek the help of a legal representative, so if you can please be patient with me at this time.

Additionally I have not been able to address this as quickly as I would have because of a lack of prosperity in part caused by my inability to be rightfully granted compensation for a work injury.

I will be in touch in the next week or so but for the meantime could you please acknowledge this email and could you also as a reminder distinguish:

- 1) What elements of the act are you specifically referring to that make sense
- 2) Whether it is because you do not consider me an employee, or the 'injury' of 'anxiety and depression' that you have quoted is the reason, or is it a combination of the two?

It is because of this indistinguishable grey area I also have not been able to correctly identify on exactly what grounds against for which I am making my appeal.

Thanks for your time and hope you are well.

Kindly

Dr Rich McLean

rich@richmclean.com.au

Additionally, because of the conspiracy to pervert the course of justice in which I have made a whistleblower statement to the ombudsman...my emails are hacked and intercepted and emails from ComCare have been noted by me to have disappeared off my server and email client. To make sure emails are getting to me can you please also email:

richarddrawsstuff@gmail.com

‘
=

On 28 May 2021, at 12:42 pm, Lara Fleming
<Fleming.Lara@comcare.gov.au> wrote:

OFFICIAL: Sensitive
Good afternoon Richard,

I'm writing to confirm that I have notified our Reconsiderations team of your request for reconsideration. They have been cc'd into this email and will acknowledge your request shortly.

Kind regards,

Lara Fleming
Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

Comcare
GPO Box 9905, Canberra, ACT 2601
1300 366 979
www.comcare.gov.au

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can contact us via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our COVID-19 guidance.

-----Original Message-----

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 27 May 2021 7:24 PM
To: General.Enquiries <Enquiries.General@comcare.gov.au>; Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>; Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>; Rich McLean <richarddrawsstuff@gmail.com>
Subject: Re: claim number: 1326583/1 determination outcome letter[SEC=OFFICIAL:Sensitive]

Dear Amy,

No no thanks for your time and evidence, as you know it was recorded and if my lawyer states that I should be covered when you have such a weak argument you will be held to account as an individual who is a mere pawn of a greater entity designed to financially ruin and maim me - that is

why I am a whistleblower, and why I am warning people if they don't want to spend up to 12 years in jail for making a decision on someone like they were told to by someone higher in authority than them. :-)

Hence, I'm helping you.

I disagree with the weak argument.

I have not even read the safety, rehabilitation and compensation Act 1999, yet I don't need to yet as you have really poorly identified, or actually, not at all successfully identified the reasons why I am rejected.

In addition, Lara is a weak conversationalist-you already rejected me then she un-rejected me as your boss-then she didn't know and was kind of just bobbing along aimlessly with nothing to say.

I request an appeal.

Send me the Act.

This is exactly the mechanism that the 'conspiracy' utilises - the exact methodology of rejecting rejecting and 'kicking the can down the road', knowing full well they are in breach of all human compassion because I deserve cover and allowed it and will prove it with my litigation team if necessary. You know I am homeless.

I provided a copy of my registration - which you were utilising as a mechanism for 'kicking the can down the road', utilising delaying tactics once you knew I said I was disadvantaged and had moved house many times had computer problems and didn't have it.

I had it all along, but obviously it was merely a tactic employed by yourself to lengthen the time it takes me to get a result.

It is not a determination if it is decided by you with little to no evidence or critical thinking, then undecided by your boss, mulled over a bit more, can be kicked down the road and waiting weeks just to reject me anyway.

This is often a mechanism through which narcissistic abusers and the law try and destroy people their faith and their confidence.

But I promise you I will expose this should I be a millionaire, between the sheets or on the streets!

Its hilarious its like a game.

Im sure you're lovely but honestly someone at quote 'Comcare' (who's position you refer to), is paying you to well...be a horrible person, and you accept that then smile and wish me well.

Its really obnoxious and I think ill fitting of any decent type of human being.

I'll give you a call tomorrow, and record it, citing this email and I'll even read it to you to get your response after I have literally cornered and caught out both of you for whistleblower purposes - the thing is - you done even know why you are rejecting me - you are just a puppet you muppet lol

Anyway I cant wait to chat.

I hope you have a lovely evening and your nerves tingle with relaxation at the thought of being a pointless pawn prostituting yourself to be inhumane as a horrible person for cash, much like a whore, except with a sex worker you at least get your rocks off.

With you you are just paid, rented really, to keep up the veneer as a pawn in the facade with no idea what's going on like a neutral pleb, with money from Comcare that protect the very people and institutions positions of power and privilege. (Which you have no idea what I am talking about).

Anyway I feel amazing today, and I look forward to seeing the statement and if necessary exposing crimes against individuals just for advocating for themselves when a exploit concealed and inherent systemic conspiracy exists to protect people like my GP and the malpractice suit and the conspiracy that happened after that, and my former partner, who's Boss was David Irvine of ASIO - ohh... the things I know about them!

(And you)

Kindly.

Rich

